

**ITEGEKO RYA PEREZIDA NO 85/01 RYO KU WA 02/09/2002 RISHYIRAHU
AMABWIRIZA RUSANGE AGENGA IMIHANDA N'UBURYO BWO
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Igice 1. AMATEGEKO ABANZA

Umutwe 1. IBIREBWA N'IRI TEKA

Ingingo 1:

Iri teka rigenga uburyo bwo kugenda mu nzira. nyabagendwa, bwerekeye abanyamaguru, ibinyabiziga, inyamaswa zikurura, izikorera ibintu, cyangwa izo bagenderaho kimwe n'amatungo.

Umutwe 2. IBISOBANURO

Ingingo 2:

Mu gukurikiza ibivugwa muri iri teka:

1. Ijambo "Inzira nyabagendwa" rivuga imbago zose z'imihanda minini, amabarabara, aho abantu nyamwinshi baturira, aho imodoka zihagarara, inzira n'utuyira two ku muhanda, ibiraro, ibyombo, mbese ku buryo rusange, imihanda nyabagendwa yose igendwamo ku butaka;
2. Ijambo "umuhanda", rivuga igice cyangwa ibice by'inzira nyabagendwa bigendwamo n'ibinyabiziga, iyo nzira nyabagendwa ikaba yagira imihanda myinshi itandukanyijwe ku buryo bugaragara n'ubutaka bwayo cyangwa ubusumbane;
3. Ijambo "inzira y'ibinyabiziga", rivuga umuhanda n'inzira ziwukikije;
4. Ijambo "igisate cy'umuhanda" rivuga kimwe mu bice bigabanyije umuhanda mu burebure bwawo bishobora kugaragazwa n'umurongo umwe ukomeje cyangwa ugizwe n'uduce dukulikiranye ariko icyo gisate kikagira ubugari buhagije ku buryo ibinyabiziga bitali amagare, velomoteri cyangwa amapikipiki bigenda bibangikanye;
5. Ijambo "agahanda k'amagare" bivuga igice cy'inzira nyabagendwa cyagenewe kunyurwamo n'amagare na velomoteri bikagaragazwa n'ikimenyetso cyabigenewe.
6. Amagambo "isangano" ni "inkomane" bivuga ahantu hose imihanda ihurira, aho umuhanda wisukira mu wundi cyangwa mu maharakubiri y'inzira nyabagendwa, ubwo hakabarirwamo imyanya igizwe n'ayo mahuriro n'izo nkomane cyangwa n'ayo maharakubiri y'imihanda.
7. Ijambo "akayira" bivuga inzira nyabagendwa ifunganye yagenewe gusa abanyamaguru cyangwa ibinyabiziga bigendera ku biziga bibiri.
8. Ijambo "inzira y'igitaka" bivuga inzira nyabagendwa yagutse kurusha akayira ariko

ubusanzwe ikaba itaragenewe ibinyabiziga bibiri. Inzira y'igitaka ikomeza kwitwa ityo iyo isa n'umuhanda igihe irasutse gusa mu yindi nzira nyabagendwa.

9. Ijambo "urusisiro" bivuga ahantu hose hari amazu yegeranye cyangwa afatanye, ari ku ruhande urwo arirwo rwose rw'inzira nyabagendwa cyangwa se aho binjirira n'aho basohokera hagaragazwa n'ibyapa by'aho hantu;

10. Ijambo "umuyobozi" bivuga umuntu wese utwaye ikinyabiziga cyangwa uyobora mu nzira nyabagendwa inyamaswa zikurura, zikorera cyangwa zigenderwaho, cyangwa amatungo, yaba ubushyamba cyangwa imwe imwe;

11. Ijambo "umukozi ubifitiye ububasha" bivuga umwe mu bakozi bavugwa mu ngingo ya 3 y'iri teka, wambaye ku buryo bugaragaza ibimenyetso by'imirimo ashinzwe.

Iyo umugenzi ahagaze, umukozi ubifitiye ububasha ashobora kuba adafite ibyo bimenyetso, ariko rero agomba kugaragaza ko abifitiye ububasha.

12. Ijambo "ikinyabiziga" bivuga ikintu cyose gikoreshwa mu gutwara abantu n'ibintu ku butaka, kimwe n'igikoresho cyose kigendeshwa, gihingishwa, gikoreshwa mu nganda cyangwa ahandi.

13. Ijambo "ikinyamitende" bivuga ikinyabiziga cyose, nk'igare ry'ikiziga kimwe, ry'ibiziga bibiri, bitatu cyangwa bine, kigendeshwa n'ingufu z'abantu bakiriho nko kuba bakoresha ibirenge cyangwa intoki.

14. a) Ijambo "igare" bivuga ikinyamitende cy'ibiziga bibiri;

b) Ijambo "velomoteri" bivuga ikinyabiziga gifite ibiziga bitarenze bibiri kandi gifite moteri itarengeje santimetero kibe 50 cyangwa imbaraga zitarenga KvA 4 kandi, hakurikijwe uko cyakozwe; umuvuduko wacyo nturunge Km 60 mu isaha.

c) Igarere na velomoteri bidahetse ababigenderaho ntibifatwa nk'ibinyabiziga.

15. Ijambo "ipikipiki" bivuga ikinyabiziga cyose cy'ibiziga bibiri gifite moteri, ukuyemo za velomoteri;

16. Amagambo "ikinyamitende itatu n'ikinyamitende ine bifite moteri" bivuga ibinyabiziga by'ibiziga bitatu cyangwa bine bitarengeje uburemere bw'ibiro 400, kandi moteri ikaba itarengeje santimetero kibe 350 cyangwa imbaraga zayo zikaba zitarengeje KvA 15.

Gushyira intebe ku ruhande cyangwa romoruki inyuma y'ibinyabiziga byavuzwe ku bika 13, 14, 15 na 16 ntacyo bihindura ku rwego birimo.

17. Ijambo "ikinyabiziga kigendeshwa na moteri" bivuga ikinyabiziga cyose gifite moteri ikigendesha kandi kigendeshwa n'ibikigize;

18. Ijambo "imodoka" bivuga ikinyabiziga cyose kigendeshwa na moteri, uretse za velomoteri, ipikipiki, ibinyamitende itatu cyangwa ine bifite moteri, n'imashini zikurura n'izindi zihinga zifite moteri zikaba kandi ku busanzwe zitwara mu nzira nyabagendwa abantu cyangwa ibintu cyangwa se zigenewe gukururwa ibindi binyabiziga bitwara abantu cyangwa ibintu;

19. Ijambo "romoruki" bivuga ikinyabiziga kigenewe gukururwa n'ikindi; iryo jambo rikoresheye kandi kuri za makuzungu;

20. Ijambo "makuzungu" bivuga romoruki iyo ariyo yose yagenewe gufatishwa ku kinyabiziga gikururwa ku buryo igice cyayo kiba kikiryamyeho kandi igice cy'uburemere bwacyo ndetse n'ubw'ibyo itwaye bukaba bushikamiye icyo kinyabiziga;

21. Ijambo "romoruki ntoya" bivuga romoruki iyo ariyo yose ifite uburemere butarenga ibiro 7

22. Amagambo "ibinyabiziga bikomatanye" n' "ibinyabiziga bikururana" bivuga ibinyabiziga bifatanye bikagenda nk'aho ari kimwe;

23. Ijambo "ikinyabiziga gifatanije" bivuga ikinyabiziga gikomatanye, kimwe ari ikinyabiziga gikururwa, ikindi ari makuzungu ;

24. Ijambo "ikinyabiziga gikururana kabiri" bivuga ibinyabiziga bikomatanye bikururana

bigizwe n'ikinyabiziga gifatanije kandi kiriho romoruki yacyo;

25. Amagambo "uburemere bwite" n'"uburemere bw'ikidapakiye", bivuga uburemere bw'ikinyabiziga kizima gifite karosori n'ibikoresho byacyo ngombwa kandi cyuzuye lisansi, mazutu cyangwa gazi, amazi n'amavuta, aliko hatabariwemo abagitwaye, abantu cyangwa imizigo cyikoreye;

26. Ijambo "uburemere bwikorewe" bivuga uburemere bwite bw'ikinyabiziga kizima hongereweho uburemere bw'imizigo cyikoreye, ubw'ugitwaye n'ubw'undi muntu wese gitwaye;

27. Ijambo "uburemere ntarengwa bwemewe" bivuga uburemere bwose ntarengwa bw'ikinyabiziga, bwemejwe hakurikijwe ibivugwa muli iri teka, uburemere ntarengwa bwemewe bw'ibinyabiziga bikomatanye, bw'ikinyabiziga gifatanije cyangwa bw'ikinyabiziga gikururana kabiri, bwitwa "uburemere bugendanwa";

28. Ijambo "guhagarara umwanya muto" bivuga igihe cya ngombwa ikinyabiziga kimara gihagaze kugirango abantu cyangwa ibintu byinjire cyangwa bisohoke;

29. Ijambo "guhagarara umwanya munini" bivuga igihe kirenze icya ngombwa ikinyabiziga kimara gihagaze kugira ngo abantu cyangwa ibintu byinjire cyangwa bisohoke;

30. Ijambo "akagarura-rumuri" bivuga akantu karabagirana gasubiza imirasire y'urumuri ku kintu kiyohereje;

31. Ijambo "ikinyabiziga - ndakumirwa" ni ibinyabiziga by'abapolisi, ibizimya-nkongi ndetse n'ibinyabiziga bitwara abarwayi, iyo bijya aho bigomba gutabara byihutirwa kandi bikarangwa n'intabaza irabagirana cyangwa irangurura ijwi;

32. Ijambo "Amatara y'urugendo" (amatara maremare) bivuga amatara y'ikinyabiziga amurika umuhanda mu ntambwe ndende imbere y'icyo kinyabiziga;

33. Ijambo "Amatara yo kubisikana" (amatara magufi) bivuga amatara y'ikinyabiziga amurika inzira nyabagendwa imbere y'icyo kinyabiziga kitagombye guhuma cyangwa kubangamira abayobozi bava mu cyerekezo.

34. Ijambo "amatara ndangambere" bivuga amatara y'ikinyabiziga akiranga kandi agaragaza ubugari bwacyo burebwe imbere.

35. Ijambo "amatara ndanganyuma" bivuga amatara y'ikinyabiziga akiranga kandi yerekana ubugari bwacyo burebwe inyuma;

36. Ijambo "amatara kamena-bihu y'imbere" bivuga amatara y'ikinyabiziga abonesha neza inzira imbere yacyo igihe cy'igihu, cy'imvura nyinshi, cy'urubura cyangwa cy'umukungugu.

37. Ijambo "amatara kamena-bihu y'inyuma" bivuga amatara y'ikinyabiziga akiranga kandi yerekana ubugari bwacyo kirebwe inyuma igihe cy'igihu, cy'imvura nyinshi, cy'urubura cyangwa cy'umukungugu mwinshi;

38. Ijambo "amatara yo gusubira inyuma" bivuga amatara y'ikinyabiziga agenewe kubonesha inzira inyuma y'ikinyabiziga no kumenyesha abandi bagenzi ko ikinyabiziga gisubira inyuma cyangwa kigiye gusubira inyuma;

39. Ijambo "itara ndanga-cyerekezo" cyangwa ikinyoteri" bivuga itara ry'ikinyabiziga rigenewe kwereka abandi bagenzi ko umuyobozi ashaka kugana iburyo cyangwa ibumoso;

40. Amagambo "itara rishakisha" n'"itara rihindukizwa" bivuga, itara ry'ikinyabiziga gishobora guhindukizwa n'umuyobozi bidatwe n'uko ikinyabiziga kigenda kandi rishobora kumurika ikintu kiri mu nzira nyabagendwa cyangwa hirya yayo;

41. Amagambo "itara ndangamubyimba" n'"itara ndanga burumbarare" bivuga itara ry'ikinyabiziga ryerekana ubugari bwacyo, ahagana imbere cyangwa inyuma igihe uburebure bwacyo burenga metero 6 cyangwa iyo ubugari bwacyo, habariwemo ibyo cyikoreye, burenga metero 2,10

42. Ijambo "ubuso bubonesha" bivuga ku byerekeye amatara, ubuso busohokana urumuri, naho ku byerekeye utugarura rumuri bikavuga ubuso burabagiranamo urumuri.

43. Ijambo "itara ry'umuhondo" bivuga itara ryose ry'umuhondo wiganje, ry'umuhondo nyawo cyangwa usa n'icunga hakurikijwe ibisobanuro bivugwa mu ngereka ya 7 y'iri teka.

Umutwe 3. ABAKOZI BABIFITIYE UBUBASHA

Ingingo 3:

Bitabujije ububasha abagenza-cyaha bahawe n'amategeko y'umwihariko, abashinzwe cyane cyane kubahiriza iri teka ni:

1. Ba ofisiye na ba suzofisiye bo muri Polisi y'igihugu igihe bari mu kazi;
2. Ba kaporari n'abapolisi bo muri Polisi y'igihugu igihe bari mu kazi, babitumwe na Prokireri wa Repubulika wo muri iyo fasi;
3. Abapolisi bo mu mutwe ushinze umutekano mu muhanda;
4. Abakozi bo mu biro by'amateme n'imihanda, ku byerekeye ibivugwa mu ngingo ya 8 n'ya 9, iya 40, 60 kugeza kuya 68, iya 72 n'ya 73 iya 113 n'ya 114, iya 117 kugeza kuya 120 z'iri teka;
5. Abakozi ba gasutamo, ku byerekeye ibivugwa mu ngingo ya 132;
6. Abakozi bo mu biro by'imisoro, ku byerekeye ibivugwa mu ngingo ya 121 kugeza ku ya 135.
7. Abakozi b'ikigo cy'ubukerarugendo na pariki z'igihugu babihereye uburenganzira na Minisitiri w'Ubutabera;
8. Ba Ofisiye bashinzwe Polisi y'Ingabo igihe bayobora abasilikare bagenda ku mirongo;
9. Abakozi bo mu biro bya Minisitiri ushinze Gutwara Abantu n'Tbintu mu mirimo yayo babihereye uburenganzira na Minisitiri w'Ubutabera. Abakozi bavugwa muri iyi ngingo bafite ububasha bwo kugenza ibyaha byica iri teka batarengereye imilimo bashinzwe n'ifasi bakoramo.

Umutwe 4. IMPANUKA.

Ingingo 4:

Bitabangamiye ibiteganywa n'amategeko ahana, umugenzi wese uguweho n'impanuka agomba:

- 1°. Guhita ahagarara igihe bimushobokeye kandi atagombye kubangamira bundibushya uburyo bwo kugenda mu muhanda cyangwa kwriteza ibyago ubwe;
- 2°. Gukora uko ashoboye kwose kugirango uburyo bwo kugenda mu muhanda bw'aho impanuka yabereye bwoye guhungabana ashyira ibimenyetso ahashobora kubara inkomyi, nko gukoresha ikimenyetso n°A,29,Kwakiriza icyarimwe amatara yose ndangacyerekezo y'ikinyabiziga, cyangwa kuhatereka itara rimyatsa, ry'umuhondo cyangwa risa n'icunga;
- 3°. Iyo umuntu yafiriye mu mpanuka cyangwa yakomerekeyemo bikabije kandi bikaba bidahungabanya uburyo bwo kugenda mu muhanda, kwirinda guhindura uko ibintu bimeze, gusibanganya ibimenyetso bishobora kugaragaza abari mu makosa, no kubimenyesha cyangwa gutumaho abubahiriza amahoro bari hafi aho;
- 4°. Iyo abandi bantu bahuye n'iyi mpanuka babimusabye, kubabwira umwirondoro we;
- 5°. Iyo umuntu yafiriye muri iyi mpanuka cyangwa yakomerekeyemo bikabije, ariko

akabona nta byago bishobora kumutera, kuguma aho impanuka yabereye cyangwa kuhagaruka kugez'igihe abubahiriza amahoro bahagereye, cyeretse iyo bamwemeraye kuhava cyangwa iyo agomba gutabara abakomeretse cyangwa kujya kwivuza ubwe bwite;

6° Iyo impanuka yangije ibintu gusa cyangwa hakaba hari abakomeretse byoroheje, kugana aho impanuka yabereye, kugirango, abyumvikanyeho n'uwo bagonganye, bagaragaze uko byagenze, cyangwa niba batabyumvikanyeho, afashe umukozi ubishinzwe kubyirebera.

Ariko rero, iyo umukozi ubifitiye ububasha adashobora cyangwa atashoboye kugera aho byabereye mu gihe kiringaniye, abahuye n'impanuka bashobora buri wese kubimureba, igihe bishoboka, kubimenyesha umutegetsi ushinze kubahiriza amahoro uri hafi cyangwa uri aho batuye.

Nk'uko iyi ngingo ibiteganya:

- "umuntu wakomeretse cyane" bivuga umuntu wagize igikomere bishobora kumuviramo urupfu, kumushegesha wese, kumutesha igice cy'umubiri cyangwa wacitse ururingo.

- "igikomere cyoroheje" bivuga igikomere cyose umuntu asanga kitahungabanya ubuzima, kitamushegesha wese cyangwa kitatuma atakaza igice cy'umubiri cyangwa ururingo.

Umutwe 5. IBYAKWA-IBIMENYETSO

Ingingo 5:

1. Umugenzi wese uri mu nzira nyabagendwa agomba guhita yumvira ibitegetswe n'abakozi babifitiye ububasha. 2. Ibitegekwa ni nk'ibi:

a) ukuboko kuzamuye, gutegeka abagenzi bose guhagarara keretse abageze mu isangano bagomba guhita bahava;

b) ukuboko cyangwa amaboko atambitse ategeka guhagarara abaturuka mu byerekezo bisanganya icyerekezo cyerekanwa n'ukuboko cyangwa amaboko arambuye.

c) kuzunguza intambike itara ritukura, bitegeka guhagarara abo iryo tara riganishallo.

3. Umugenzi wese ategetswe kugaragaza umwirondoro we igihe umukozi ubifitiye ububasha abimusabye bitewe n'ikosa akoze ryica iri teka, cyangwa habaye impanuka.

4. Umuyobozi w'ikinyabiziga gihagaze umwanya muto cyangwa munini ategetswe kugikuraho igihe abisabwe n'umukozi ubifitiye ububasha.

5. Umugenzi wese agomba kubahiriza ibimenyetso byashyiriweho gutunganya uburyo bwo kugenda mu muhanda igihe cyose ibyo bimenyetso biteye uko byagenwe kandi bigaragara bihagije.

6. Ibitegekwa n'abakozi babifitiye ububasha birusha agaciro ibindi bimenyetso.

Umutwe 6. URUHUSHYA RWO GUTWARA IBINYABIZIGA.

Icyiciro 1. Uruhushya rwo gutwara ibinyabiziga rutangiwe mu Rwanda.

Ingingo 6:

1. Ntawe ushobora gutwara ikinyabiziga kigendeshwa na moteri mu nzira nyabagendwa adafite kandi atitwaje uruhushya rwo gutwara ibinyabiziga rwatanzwe na Polisi

y'igihugu.

Uko uruhushya rwo gutwara ikinyabiziga ruteye n'uko rutangwa, bigenwa n'Iteka rya Minisitiri ushinze Gutwara Abantu n'Tbintu abisabwe na Komite y'Igihugu ishinze umutekano mu mihanda;

Umuyobozi agomba kwerekana ako kanya uruhushya rwo gutwara ibinyabiziga arubajijwe n'umukozi ubifitiye ububasha.

2. Uruhushya rwo gutwara ibinyabiziga rwerekana urwego cyangwa inzego z'ibinyabiziga cyatangiye. Inzego z'ibinyabiziga zisabirwa uruhushya ni izi:

Urwego A : Amapikipiki n'ibinyamitende itatu bifite moteri biriho cyangwa bidafite intebe ku ruhande.

Urwego B: Imodoka zakorewe gutwara abantu kandi zifite imyanya munani ntarengwa yo kwicarwamo hatabariwemo uw'umuyobozi.

- Ibinyamitende ine bifite moteri.

Ku binyabiziga byo muri urwo rwego bashobora gushyiraho romoruki ntoya ifite umutambiko umwe.

Urwego C: Imodoka zagenewe gutwara ibintu bifite uburemere ntarengwa bwemewe burenga ibiro 5.000. Ku binyabiziga by'urwo rwego bashoboraga gushyiraho romoruki ntoya.

Urwego D: Imodoka zakorewe gutwara abantu kandi zifite imyanya irenga umunani yo kwicarwamo, hatabariwemo uw'umuyobozi.

Urwego E: Ibinyabiziga bikomatanye bifite ikinyabiziga gikurura kiri muri rumwe mu nzego B, C na D umuyobozi afitiye uruhushya kandi romoruki yabyo ikaba ifite uburemere ntarengwa bwemewe burenga ibiro 750.

Urwego F: Ibinyabiziga bidasanzwe (ibimashini bihinga, bikora imihanda , biterura, ...).

3. Imodoka zigenda mu nzira nyabagendwa zitabarirwa muri rumwe mu nzego zimaze kuvugwa, nk'imashini z'ubuhinzi cyangwa z'inganda zibarirwa mu rwego B, nta kwita ku buremere bwazo.

4. Uruhushya rwo gutwara ibinyabiziga rutangwa burundu abarusaba bamaze gutsinda ibizamini bikurikira kandi herekanywe icyemezo gitangwa na muganga wemewe akurikije ibivugwa mu gika cya 8 cy'iyi ngingo:

a) ikizamini ku masomo cyerekana ko ubazwa azi bihagije amategeko y'umuhanda;

b) ikizamini cyerekana ko ubazwa azi gutwara ikinyabiziga cyo mu rwego asabira uruhushya rwo gutwara.

Ibizamini byerekeye amasomo no gutwara ibinyabiziga kugirango hatangwe uburenganzira bwo gutwara ibinyabiziga bikorwa mu buryo bwashyizweho na Minisitiri ishinze gutwara abantu n'ibintu.

5. a) uruhushya rw'agateganyo rwo gutwara ibinyabiziga rushobora guhabwa umuntu wese urusabye kugirango bimufashe kugera ku bumenyi buhagije bwo gutwara ibinyabiziga buzatuma abona icyemezo cy'uburenganzira burunduye.

Uruhushya rw'agateganyo rwo gutwara ibinyabiziga rutangwa ari uko urwaka atsinze ikizamini cy'amasomo giteganywa mu gika cya 4 a), cy'iyi ngingo.

b) Uruhushya rw'agateganyo rwo gutwara ibinyabiziga rufite agaciro ku nzego zose z'ibinyabiziga.

c) Uruhushya rw'agateganyo rwo gutwara ibinyabiziga rumara amezi atatu; icyo gihe rushobora kwongerwa inshuro eshatu gusa.

d) Ufite uruhushya rw'agateganyo rwo gutwara ibinyabiziga ntiyemerewe gutwara imodoka keretse ari kumwe n'umwigisha ufite uburenganzira bwo mu rwego rw'imodoka

atwaye.

Umwigisha agomba kuba iruhande rw'uwo yigisha kugira ngo ashobore kureba neza ibyo akora kandi amugobo mu gihe cyo kuyitwara iyo bibaye ngombwa.

Ikinyabiziga cyigirwaho kigomba kuba gifite inyuma ikimenyetso kigizwe n'inyuguti L yera yanditswe mu ibara ry'ubururu kandi ifite uburebure butari hasi ya santimetero 15 cyangwa icyapa cy'umweru cyanditseho "AUTO-ECOLE" mu nyuguti z'umukara.

6. Iyo rwatakaye, rwibwe cyangwa rwangiritse, uruhushya rwo gutwara ikinyabiziga rusimburwa by'agateganyo, mu gihe gihagije kugirango habe habonetse inyandiko yarwo, kandi icyo gihe ntikirenge iminsi cumi n'itanu n'urupapuro rufite agaciro nk'ak'uruhushya rwo gutwara imodoka rutangwa na prokireri wa Repubulika. Bisabwe n'uwari afite uruhushya rwo gutwara ikinyabiziga rwatakaye, rwibwe cyangwa rwangiritse, abategetsibwaho batanga urwa mbere batanga n'inyandiko nshungu yarwo.

7. (iteka rya perezida n° 72/01 ryo ku wa 30/10/2003) Uruhushya rwo gutwara ibinyabiziga n'inyandiko-nshungu yarwo bitangwa ari uko harishywe aya mafaranga: - Uruhushya rwo gutwara ikinyabiziga ku rwego rutangirirwaho: 20.000 frw:

Kuri buri rwego rwiyoungereyeho: 5.000 frw.

Uruhushya rw'agateganyo rwo gutwara ibinyabiziga: 5.000frw.

Inyandiko-nshungu y'uruhushya rwo gutwara ibinyabiziga: 5.000 frw

Inyandiko-nshungu y'uruhushya rw'agateganyo rwo gutwara ibinyabiziga:

2.500 frw Kunguruzwa uruhushya rw'agateganyo rwo gutwara ibinyabiziga :

1.000 frw Guhinduza Uruhushya rwo gutwara ibinyabiziga rw'amahanga :

10.000 frw

Nyamara, abafite uruhushya rw'agateganyo rugifite agaciro, batanga gusa amafaranga yari asigaye ngo babone uruhushya rwa burundu rwo gutwara ikinyabiziga .Gukora ikizamini cy'uruhushya rw'agateganyo n'icy'urwego rutangirirwaho : 5.000 frw.

8. a) Uruhushya rwo gutwara ibinyabiziga rwimwa cyangwa rwamburwa abantu barwaye indwara zikurikira:

- ku byerekeye uruhushya rwo mu rwego C, D, E, na F, ukubona kw'ijisho kugomba kugira 8/10 kuri buri jisho cyangwa 7/10 ku jisho rimwe na 9/10 ku rindi jisho, cyangwa se 6/10 ku jisho rimwe na 10/10 ku rindi. Biremewe ko uburwayi bw'amaso bukosorwa n'amataratara abigenewe.

- Ukumva: kutumva cyangwa kumva buhoro bikabije kandi ku matwi yombi.

- Izindi ndwara z'ubuzima zibuza bikabije ingingo gukora neza cyangwa zihungabanya imikorere y'ubwonko.

b) Prokireri wa Repubulika ashobora gutumiza umuntu wese ufite uruhushya rwo gutwara ibinyabiziga akekaho bumwe mu burwayi bumaze kuvugwa kugira ngo asuzumwe na muganga amutegetse; muganga yoherereza Prokireri ibyo yabonye mu gihe kitarengeje iminsi umunani.

c) Prokireri wa Repubulika ashobora kwambura by'agateganyo uruhushya rwo gutwara ikinyabiziga umuntu wese wanze gusuzumwa na muganga; ashobora na none kwambura uruhushya umuntu wese uzwiho uburwayi bumaze kuvugwa.

d) icyemezo cya Prokireri wa Repubulika kiri kumwe n'inyandikuro yemewe ya raporo ya muganga wa Leta, cyohererezwa nyirubwite mu ibaruwa ishinganywe mu iposita ikanatangirwa icyemezo cy'uko bayibonye.

e) icyemezo cya Prokireri wa Repubulika ntikijulirirwa iyo cyafashwe kubera kwanga gusuzumwa na muganga.

f) Ku zindi mpamvu, icyemezo gishobora kujuririrwa kwa prokireri mukuru w'urukiko rw'ubujurire mu gihe cy'iminsi 30 nyirubwite amaze kubona icyemezo cya Prokireri wa

Repubulika. Igihe cyemewe cyo kujurira n'ubujulire ntibihagarika icyemezo.

g) Uwajuliye asuzumwa n'akanama k'abaganga batatu, umwe muri bo agashyirwaho na Prokireri mukuru, uwa kabiri agashyirwaho n'uwajuriye, uwa gatatu agashakwa n'abo bagahga babiri ba mbere.

Ukwamburwa uruhushya rwo gutwara ikinyabiziga kugumaho ari uko byemejwe n'ubwiganze bw'amajwi y'abagize ako kanama; muri icyo gihe amafranga agomba gutangwa aherera k'uwajuriye.

Icyemezo cyo kwambura burundu uruhushya rwo gutwara ikinyabiziga kimenyeshwa ubutegetswe bwabutanze.

9. Binyuranyije n'ibimaze kuvugwa, ntibategetswe kugendana uruhushya rwo gutwara ibinyabiziga, abayobozi bataramara umwaka mu Rwanda iyo bafite: uruhushya mpuzamahanga rwo gutwara ikinyabiziga ruteye kimwe n'urugero rugize umugereka wa 7 w'amasezerano yakorewe i Viyeni kuwa 8 Ugushyingo 1968, yerekeye uburyo bwo kugenda mu muhanda ;

- uruhushya mva-mahanga rwo gutwara ikinyabiziga ruhuje n'amategeko ari ku mugereka wa 6 w'amasezerano y'i Viyeni yo kuwa 8 ugushyingo 1968; ariko urwo ruhushya rukaba rufite agaciro, kandi rwaratanze n'igihugu cyasinye ayo masezerano cyangwa n'ikigo cyabihereye ububasha n'ikindi gihugu cyasinye ayo masezerano. Abafite kimwe muri izo mpushya, bagomba guhita barwerekana iyo babisabwe n'umukozi ubifitiye ububasha.

Batagombye gukora ikizamini cy'amasomo n'icyo gutwara ikinyabiziga, bashobora kubona uruhushya rutangirwa mu Rwanda rwo gutwara ikinyabiziga iyo berekanye uruhushya mpuzamahanga cyangwa mvamahanga, bapfa gusa kubisaba mbere y'irangira ry'igihe cy'umwaka giteganywa ku gice cya mbere cy'iki gika.

Icyiciro 2. Uruhushya mpuzamahanga rwo gutwara ikinyabiziga

Ingingo 7:

1. Polisi y'igihugu ifite ububasha bwo gutanga uruhushya mpuzamahanga rwo gutwara ikinyabiziga hakurikijwe ibiri ku rugero rugize umugereka wa 7 w'amasezerano y'i Viyeni yo kuwa 8 ugushyingo 1968 yerekeranye n'uburyo bwo kugenda mu muhanda ;
2. Uruhushya mpuzamahanga rwo gutwara ikinyabiziga rushobora guhabwa gusa abafite icyemezo cyo gutwara ikinyabiziga cyatanzwe n'igihugu cyabo kandi kigifite agaciro; abagihawe batanga amafranga 20.000 y' u Rwanda.

Igice 2. UBURYO BWO KUGENDA MU MUHANDA

Umutwe 1. AMATEGEKO RUSANGE

Icyiciro 1. Kurinda inzira nyabagendwa n'abayigendamo

Ingingo 8:

1. Birabujijwe kubangamira uburyo bwo kugenda mu muhanda cyangwa gutuma watera ibyago kubera kujugunya, kurunda, gusiga cyangwa kugusha mu nzira nyabagendwa ibintu ibyo aribyo byose, nk'ibisate by'ibirahure, mazutu, lisansi, gazi n'amavuta, kuhuka umwotsi cyangwa ibyuka, cyangwa se kuhashyira ikintu cyose cy'inkomyi. Ibyo ntibujijwe ku bakozi b'imirimu ya Leta, igihe bari mu kazi kabo bakoresha ibyuma bivubura imyotsi, ibyuka cyangwa ibifu.

Ni kimwe no ku bikorera ubwabo bakoresha nk'ibyo kandi imirimo bakora ikaba ari iya Leta cyangwa se bakaba bayikora bafite uruhushya bahawe na Perefe.

Mu gihe iyo mirimo ikorwa, abagenzi niba bagomba gukora uko bashoboye kwose kugirango birinde impanuka ishobora kuba.

2. Iyo ikinyabiziga gihagaze kubera impanuka cyangwa iyo ibyo gitwaye cyangwa bimwe muri ibyo biguye mu nzira nyabagendwa, umuyobozi wacyo agomba gukora uko ashoboye kwose kugira ngo inzira igendwemo nta nkomyi.

Iyo umuyobozi atabishoboye umuherekeje niwe ugomba kubikora yaba ntawe afite bigakorwa n'undi mugenzi wese waguweho n'iyi mpanuka.

3. Birabujijwe kwonona inzira nyabagendwa, kuvanaho, kwimura, kwangiza, guhirika cyangwa gusenya imbago, ibimenyetso, ibyapa biyiteyeho cyangwa ibiyubatseho.

Ingingo 9:

Umuyobozi agomba gukora uko ashoboye kugirango yirinde kwangiza umuhanda agenda buhoro, agabanya ibyo ikinyabiziga kikoreye cyangwa se anyura indi nzira. Ku by'umwihariko ibinyabiziga bifite iminyururu, iyo bigenda mu nzira nyabagendwa bigomba gushyirwaho ibya ngombwa bituma bitagira icyo byangiza ku muhanda. Nta na rimwe bishobora kugenda ku mihanda ya kaburimbo, uretse ibinyabiziga bya gisirikare mu bihe bidasanzwe.

Icyiciro 2. Ibyerekeye abayobozi

Ingingo 10:

1. Ikinyabiziga cyose cyangwa ibinyabiziga bikururana, iyo bigenda, bigomba kugira ubiyobora. Inyamaswa zikurura, zikorera cyangwa zigenderwaho, kimwe n'amatungo, yaba rimwe cyangwa ubushyo, zigomba kugira uzinyobora iyo zigenda mu nzira nyabagendwa.

2. Umuyobozi agomba kuba ashobora kuyobora, gukora igihe cyose ibyo ategetswe kandi agomba kugenga igihe cyose ikinyabiziga cyangwa inyamaswa ayoboye. By'umwihariko, umuyobozi ntagomba guterwa imbogamizi igihe ayobora no gukingirizwa bitewe n'umubare w'abagenzi cyangwa n'uko bafashe imyanya, cyangwa bitewe n'ibintu bitabonerana byometse ku birahure.

Ingingo 11:

Imyaka y'ifatizo ni:

- Imyaka 20 ku bayobozi b'imodoka ziri mu nzego C,D,E na F zivugwa ku gice cya 2 cy'ingingo 6 y'iri teka;
- Imyaka 18 ku bayobozi b'ibinyabiziga biri mu nzego A na B ;
- Imyaka 15 ku bayobozi ba velomoteri, mu gihe ariko nta wundi uyiraho uretse uyitwaye, na 17 mu bindi bihe;
- Imyaka 14 ku bayobozi b'inyamaswa zikurura, zaba ziziritse cyangwa zitaziritse ku cyo zikurura no ku bayobozi b'inyamaswa zikoreye cyangwa zigenderwaho; Imyaka 12 ku bayobozi b'amatungo.

Ingingo 11: Inyamanswa

Usibye igihe hatanzwe amabwiriza yihariye yo kwimuka, inyamaswa zigomba kugabanywa mu ibice by'imirongo ifite uburebure bukinganiye kandi itandukanyijwe n'intera ihagije kugirango bitabangamira uburyo bwo kugenda.

Icyiciro 3. Uruhande rugenderwamo mu muhanda

Ingingo 12:

1. Umuyobozi wese w'ikinyabiziga, igihe cyose bishoboka, agomba gukomeza kugendesha ikinyabiziga atwaye ku ruhande rw'iburyo rw'umuhanda kandi akegera inkombe yawo y'iburyo igihe abonye undi aturutse aho agana cyangwa agiye kumunyuraho kimwe n'igihe cyose atabona imbere ye neza. Inyamanswa zigenda mu muhanda zigomba, uko bishobotse kwose, gukomeza kugendera ku nkombe y'iburyo.
2. Keretse hari amategeko yihariye, iyo inzira nyabagendwa igabanyijwemo imihanda ibiri cyangwa itatu itandukanyijwe ku buryo bugaragazwa n'akarondorondo k'ubutaka, umwanya utanyurwamo n'ibinyabiziga, ubusumbane bw'imihanda, cyangwa itandukanyijwe n'umurongo w'umweru urombereje, abayobozi ntibashobora kunyura mu muhanda ubangikanye n'uwo bagenderamo.
3. Iyo umuhanda ugabanyijwemo ibisate bine kandi kuwugendamo bigakorwa mu byerekezo bibiri, umuyobozi wese abujijwe kunyura mu bisate bibiri biri ibumoso kandi kugenda ku mirongo ibangikanye byemewe gusa ku gice cya kabiri cy'iburyo bw'umuhanda.

Kugenda ku mirongo ibangikanye byemewe na none ku mihanda igenderwamo mu cyerekezo kimwe kandi igabanyijwemo nibura ibisate bibiri.

Ibyo aribyo byose, abakozi babifitiye ububasha bashobora gutegeka kugenda ku mirongo ibangikanye.

Iyo, kubera ubucucike bw'ibigenda mu muhanda hiremye imirongo ibangikanye kandi irombereje abayobozi bagomba gukomeza kugendesha ibinyabiziga ku murongo umwe, keretse igihe bashaka guhindura icyerekezo kandi bakabigira ku buryo batabangamira bikabije imigendere myiza y'ibindi binyabiziga. Ibyo kugenda ku mirongo ibangikanye byemewe kandi ibisate by'umuhanda bikaba bigaragazwa n'imirongo irombereje cyangwa icyemo uduce, abayobozi babujijwe kunyura hejuru y'iyi mirongo.

4. Iyo umuhanda ugabanyijwemo ibisate bitatu kandi ukaba ugenderwamo mu byerekezo byombi, umuyobozi wese abujijwe kugendera mu gisate cyerekeye inkombe y'ibumoso bw'umuhanda. Iyo umuhanda ugabanyijwemo ibisate bibiri kandi ukaba ugenderwamo mu byerekezo byombi, umuyobozi wese abujijwe kugendera mu gisate kiri ibumoso bw'umuhanda, keretse iyo kugana muri urwo ruhande byemewe.

Umuyobozi wese ugenda mu muhanda agomba gusiga ibumoso bwe ubwikingo, imbago n'ibindi bimenyetso byerekana aho bagomba kunyura ku buryo buboneye, keretse iyo hashinzwe ikimenyetso n°D; 1.b aribwo bashobora kunyura iburyo cyangwa ibumoso uko bashatse.

Ingingo 13:

1. Umuyobozi wese ugenda mu muhanda abujijwe kurengera inzira y'abanyamaguru, ubwikingo, inkombe z'umuhanda cyangwa uduhanda tw'amagare, abigilishije uruhande urwo arirwo rwose rw'ikinyabiziga cyangwa ibyo cyikoreye.
2. Bitanyuranyije n'ibivugwa mu ngingo ya 59, birabujijwe kugenza cyangwa gukomeza kugenza ikinyabiziga gifite ubuhagarike burengeje metero enye, habaliwemo ibyo cyikoreye.

Ingingo 14:

Iyo banyuze iruhande rw'inkomyi abanyamaguru bagomba gukikira banyuze mu muhanda, abayobozi bagomba gusiga umwanya ufite ubugari bwa metero imwe nibura

hagati yabo n'iyi nkomyi.

Iyo bidashobora kubahirizwa kandi umunyamaguru akaba anyura hafi y'iyi nkomyi, umuyobozi agomba kuyikikira afite umuvuduko utarengeje kilometero eshanu mu isaha.

Icyiciro 4. Inkomane-Gutambuka mbere

Ingingo 15:

1. Umuyobozi wese ugiye kugera mu nkomane agomba gukoresha ubwitonzi buhagije bujyana n'uko aho ageze hameze kandi akareba neza niba umuhanda agiye kwinjiramo utarimo inkomyi, akagenda agabanya umuvuduko akurikije uko asanga atabona neza kandi byaba ngombwa agatanga ikimenyetso cy'uko ageze haft.

Umuyobozi w'ikinyabiziga agomba by'umwihariko kwegera isangano agenda ku buryo ashobora guhagarara kugira ngo ibinyabiziga bitambuka mbere bihite; ndetse n'iyi ibimenyetso by'umuriro bimwemerera gutambuka ntashobora kwinjira mu isangano iyo ikinyabiziga cye gishobora kuhahagarara kandi kikabuza guhita ibinyabiziga bigenda mu muhanda usanganya.

2. Umuyobozi wese uvuye mu nzira nyabagendwa ifite ibyerekezo bibiri akaba ashaka kwinjira mu y'indi ifite icyerekezo kimwe, agomba kureka ibinyabiziga biyigendamo bigatambuka.

3. Umuyobozi wese uvuye mu nzira nyabagendwa idafite umuhanda wa kaburimbo cyangwa ukozwe nk'urimo kaburimbo akaba yinjira mu nzira ya kaburimbo n'ibimeze nkayo agomba kureka ibinyabiziga biyigendamo bigatambuka. 4. Umuyobozi wese uvuye mu kayira cyangwa mu nzira y'igitaka akaba ajya mu nzira nyabagendwa itari akayira ntibe n'inzira y'igitaka agomba kureka ibinyabiziga bigenda muri iyo nzira nyabagendwa bigatambuka.

5. Umuyobozi wese uvuye ahantu hahana imbibi n'inzira nyabagendwa agiye kwinjiramo agomba kureka ibinyabiziga biyigendamo bigatambuka.

Ingingo 16:

1. Bitanyuraniye n'ibivugwa mu ingingo ya 15, umuyobozi wese agomba kureka ibinyabiziga bituruka mu kuboko kwe kw'iburyo bigatambuka keretse iyo ari mu isangano aho agomba kubahiriza amategeko yo gutambuka mbere yerekanwa n'ibyapamenyetso B.1, cyangwa B.2b na A. 22 cyangwa yerekanwa n'ibimenyetso by'amatare. Utegetswe kureka abandi bagahita ntashobora gukomeza urugendo atari uko abona adashobora gutera impanuka, agereranije n'uko ibindi binyabiziga biri mu muhanda bimuri kure n'umuvuduko bifite.

2. Umuyobozi ugiye kwinjira mu isangano aho bagomba kuzenguruka, agomba kureka ibinyabiziga byagezemo bikabanza bigatambuka.

3. Umuyobozi wese ugeze mu masangano aho ibinyabiziga biyoborwa n'ibimenyetso by'umuriro agomba kuva muri iryo sangano adategereje ko kugenda mu kerekezo aganamo byemerwa, ariko akabikora ku buryo atabera inkomyi ibindi binyabiziga bigana mu cyerekezo cyemerewe kugendwamo..

Icyiciro 5. Imiyoborere.

Ingingo 17:

Umuyobozi wese ushaka kugira aho agana ntashobora kubigira atabanje kwiringira ko nabigira ataza gutera ibyago cyangwa ngo abere inkomyi abandi bagenzi bamukulikiye,

bamuri imbere cyangwa bagiye kubisikana, akabigira akurikije uko abandi bagenzi bari mu muhanda, aho bagana n'umuvuduko bafite.

Ni nako bigenda nko ku muyobozi wese uvuye ku murongo w'ibinyabiziga cyangwa awugiyemo, ugana ibumoso cyangwa iburyo, mu muhanda, wambukiranyije umuhanda ukase ibumoso cyangwa iburyo agira ngo anyure mu yindi nzira nyabagendwa cyangwa kugira ngo yinjire ahantu hahana imbibi n'iyi nzira nyabagendwa, avuye aho yaramaze umwanya munini ahagaze, uhaguruka aho yari ahagaze akanya gato, uhindukira cyangwa usubira inyuma.

2. Mbere yo gukata cyangwa kujya ku ruhande rw'umuhanda, umuyobozi wese agomba mbere y'igihe kubigaragaza ku buryo budashidikanywa akoresheje indanga-cyerekezo cyangwa ibiranga-cyerekerezo by'ikinyabiziga cye cyangwa byaba bidakora, byamushobokera akabyerekanisha ukuboko.

Icyo kimenyetso gitanzwe kigomba gukomeza kwerekanwa mu gihe cyose ikinyabiziga kikiyoborwa, ntigikomeza kwerekanwa, iyo imiyoborere irangiye.

Ingingo 18:

Mu nsisiro, kugirango ibinyabiziga bisanzwe bitwarira hamwe abantu bigende neza, abayobozi b'ibindi binyabiziga bagomba, bitanyuranyije n'ibivugwa mu ingingo ya 17,1, kugenda buhoro, ndetse byaba ngombwa, bagahagarara akanya gato kugirango ibyo binyabiziga bitwarira hamwe abantu bishobore kongera kugenda bihaguruka aho bigomba guhagarara.

Itegeko ritanzwe mu gika kibanza ntacyo rihindura ku itegeko rireba abayobozi b'ibinyabiziga bitwarira hamwe abantu kubyerekeye ubwitonzi buhagije bwo kwirinda impanuka iyo ariyo yose, iyo bamaze kugaragaza ko bashaka kongera kugenda bakoresheje ibiranga cyerekezo.

Icyiciro 6. Kubisikana no kunyuranaho

Ingingo 19:

1. Kubyerekeye imyubahirize y'iri teka, kubisikana no kunyuranaho bireba gusa ibinyabiziga bigenda.
2. Aho ibinyabiziga bigenda ku mirongo ibangikanye, gutambukira iburyo abayobozi bagenda ku murongo w'ibumoso ntibifatwa nk'aho ari ukunyuranaho bisobanurwa n'iri teka

Ingingo 20:

1. Kubisikana bikorerwa ku ruhande rw'iburyo
2. Umuyobozi wese ubisikana n'undi, agomba gusiga ibumoso bwe umwanya uhagije kugira ngo itambuka ry'undi ryorohere, ndetse byaba ngombwa, akegera inkombe y'iburyo bw'umuhanda, iyo mu gihe cyo kubisikana abangamiwe n'inkomyi cyangwa n'abandi bagenzi, agomba kugenda buhoro kandi byaba ngombwa agahagarara akanya gato kugirango umugenzi cyangwa abagenzi bava mu cyerekezo aganamo bahite.
3. Iyo ubugari bw'umuhanda budahagije kugira ngo ibisikana ryorohere, abayobozi bashobora kunyura mu nzira z'impande z'abanyamaguru, ariko bigakorwa ku buryo butateza impanuka abagenzi bazirimo.
4. Iyo ubugari bw'inzira nyabagendwa igendwamo n'ibinyabiziga budahagije kugira ngo bibisikane nta nkomyi, abagenzi bategetswe kworoherana kugira ngo batambuke.
5. Mu mihanda yo mu misozi no mu zindi nzira nyabagendwa zicuramye cyane cyane

aho ibisikana ridashoboka cyangwa riruhije, umuyobozi w'ikinyabiziga kimanuka agomba gushyira ku ruhande ikinyabiziga atwaye kugira ngo areke ikinyabiziga cyose kizamuka gitambuke.

Keretse iyo hari ubwikingo ibinyabiziga bishobora guhagararamo, uwo mwanya ukaba uteye neza ku buryo, hakurikijwe umuvuduko n'aho ibinyabiziga biri, ikinyabiziga kizamuka cyaba gifite ubwikingo cyangwa kimwe muri ibyo binyabiziga kikaba kigomba gusubira inyuma niba ikinyabiziga kizamuka kitagiye muri ubwo bwikingo. Iyo byanze bikunze kimwe mu binyabiziga bigiye kubisikana kigomba gusubira inyuma, abayobozi bagomba gusubira inyuma ni abatwaye ibinyabiziga bidakomatanye bahuye n'abatwaye ibikomatanze, abatwaye ibinyabiziga bito bahuye y'abatwaye ibinini, n'abatwaye ibinyabiziga byikoreye imizigo bahuye n'abatwaye ibinyabiziga bitwarira hamwe abantu.

Iyo ibinyabiziga bigomba kubisikana ari ibyo mu rwego rumwe, ugomba gusubira inyuma ni umuyobozi w'ikinyabiziga kimanuka, keretse iyo bigaragara neza ko gusubira inyuma byoroheye kurushaho ikinyabiziga kizamuka.

Ingingo 21:

1. Kunyuranaho bikorerwa mu ruhande rw'ibumoso.

Ariko rero kunyuranaho bigomba gukorerwa iburyo iyo umuyobozi unyurwaho, amaze kwerekana ko ashaka kugana ibumoso; yajyanye ikinyabiziga cyangwa inyamaswa ayoboye ibumoso bw'umuhanda kugira ngo:

agane ibumoso anyura mu yindi nzira nyabagendwa;

yinjire ahantu hahana imbibi n'uwo muhanda cyangwa ahagarare ibumoso bwawo.

2. Mbere yo kugira uwo anyuraho umuyobozi wese agomba kwiringira ko:

a) nta wundi umuyobozi umukurikiye watagiye kumunyuraho;

b) umuyobozi umuri imbere atagaragaje ko ashaka kunyura ku wundi cyangwa atashatse gukatira ibumoso;

c) igisate cy'umuhanda agiye kunyuramo kitarimo inkomyi mu ntambwe zihagije kugira ngo hakurikijwe ikinyuranyo cy'umuvuduko w'ikinyabiziga atwaye n'uwo abo agiye kunyuraho, imiyoborere ye itatera impanuka cyangwa ngo ibangamire abagenzi bava aho agana ;

d) ashobora kugaruka iburyo bw'umuhanda atabangamiye umugenzi cyangwa abagenzi yanyuzeho, keretse iyo yinjiye mu nzira nyabagendwa igenderwamo mu cyerekezo kimwe.

Agomba na none iyo ari ngombwa kandi nta kwirengagiza ibindi yaba abujijwe, kwerekana icyo ashaka gukora hakurikijwe ibivugwa mu ngingo ya 17,2, kandi akanabyereka uwo agiye kunyuraho

3. Umuyobozi wese ushaka kunyuranaho agomba kwitaza umugenzi cyangwa abagenzi yanyuzeho ku buryo asiga umwanya utarimo inkomyi uhagije utagomba igihe cyose kujya muni ya santimetero 50 iyo ikinyabiziga ashaka kunyuraho ari igikuruwe n'inyamaswa na none uwo mwanya ntujye muni ya metero imwe iyo ashaka kunyura ku munyamaguru, ku kinyamitende cyangwa ku nyamaswa ihetse cyangwa idahetse umuntu.

4. Umuyobozi uagenda mu muhanda, igihe ubugari bwawo budatuma anyuranaho nta nkomyi ashobora kunyura mu kayira k'abanyamaguru ariko amaze kureba umuvuduko w'ibinyabiziga n'uko ubutaka bumeze, kandi akabigira ku buryo adateza ibyago abandi bagenzi.

5. Mu nzira nyabagendwa zifite nibura ibisate bibiri bigendwamo mu cyerekezo aganamo mu gihe ashatse kongera kunyuranaho ako kanya cyangwa nyumaho gato amaze gusubira ku ruhande rw'umuhanda, umuyobozi w'imodoka ifite uburemere ntarengwa bwemewe butarenga ibiro 3500 cyangwa hakurikijwe uko yakozwe, ikaba ifite umuvuduko urenga km 40 mu isaha, umuyobozi ashobora, kugirango yongere kunyuranaho, kuguma mu gisate yari arimo anyuranaho bwa mbere, apfa kutabangamira cyane abayobozi b'ibinyabiziga byihuta kurusha icye biturutse inyuma.

6. Umuyobozi ubonye ko hari undi umukurikiye ushaka kumunyuraho agomba kwegera uruhande rw'iburyo rw'umuhanda atongereye umuvuduko, keretse mu bihe byateganyijwe mu ngingo ya 25,1,B).

Hakurikijwe ubwinshi bw'ibinyabiziga bituruka mu cyerekezo kigibwamo, iyo ubugari, imiterere, imimerere cyangwa ubwigoronzore bw'umuhanda bidatuma kunyuranaho bitaruhaniye kandi nta nkomyi ku kinyabiziga cyugariye, kigenda buhoro cyangwa kigomba kwubahiriza umuvuduko ntarengwa umuyobozi wacyo agomba kugabanya umuvuduko ndetse byaba ngombwa akagana ku ruhande kandi agahita ahagarara iyo bishoboka kugirango areke ikinyabiziga cyangwa ibinyabiziga bimukurikiye byihuta kurusha icye bihite.

Umuyobozi wese w'ikinyabiziga gifite uburebure burenga metero 8 agomba, akoresheje ikimenyetso cyabigenewe cy'icyo,kinyabiziga, kugaragaza ko yabonye ikimenyetso cy'umuyobozi ugiye kumunyuraho.

Umuyobozi wese w'ikinyabiziga ushaka kwongera kugenda agornba gukomeza guhagarika ikinyabiziga cye kandi akareka ibinyabiziga bigiye kumunyuraho cyangwa guhura nawe bigahita

Ingingo 22:

1. Mu mihanda bagendamo mu byerekezo byombi, kunyuranaho ibumoso birabujijwe, bitewe n'impamvu 1, nk'ibihu cyangwa kuba hafi y'ikoni cyangwa y'impinga y'umupando, iyo umuyobozi adashobora kubonera abagenzi bamuturutse imbere mu ntambwe zihagije kugira ngo imiyoborere ikorwe nta kwikanga impanuka keretse imiyoborere ishobora gukorerwa ku ruhande rw'umuhanda, ruri iburyo bw'umurongo wera urombereje uhuje n'uvugwa mu ngingo ya 110, 2 y'iri teka.
2. Kunyuranaho mu ruhande rw'ibumoso birabujijwe iyo umuyobozi ugiye kunyurwaho yerekanye ko ashaka ukatira ibumoso nkuko bivugwa ku ngingo ya 21,1 igika cya 2 cy'iri teka.
3. Kunyura ku binyabiziga bindi uretse icy'ibiziga bibiri bibujijwe:

- a) ahantu hari ikimenyetso n°C, 13a kiri ku mugereka wa 2 w'iri teka;
- b) ako kanya mbere y'uko no mu gihe bava mu masangano yose, atari ayo bagendamo bazengurutse keretse:

- 1°. iyo kugenda mu muhanda biyoborwa n'umukozi ubifitiye ububasha cyangwa n'ibimenyetso by'umuriro;
- 2°. iyo inzira nyabagendwa inyuranirwamo itambukirwamo mbere y'izindi nzira zirasuka mu masangano;
- 3°. iyo ari ukunyura iburyo bw'umuyobozi werekanye ko ashaka gukatira ibumoso nk'uko bivugwa ku ngingo ya 21,1 igika cya 2 cy'iri teka;
- c) mu mihanda ifite ibisate bitarenga 3 iyo umuyobozi unyurwaho nawe ubwe anyura ku kinyabiziga gifite ibiziga bibiri;
- d) hafi y'iteme iyo hari umuhanda ufunganye;
- e) hafi y'ibice by'umuhanda bimeze nabi cyangwa byerekanywe bityo;

f) haft y'aho abanyamaguru banyura.

Icyiciro 7. Icyerekezo kimwe.

Ingingo 23:

1. Kugira ngo habe umutekano mu kugenda mu muhanda, Umukuru w'Intara , ashobora, mu ifasi ashinzwe, gutegeka ko mu mihanda avuze haba icyerekezo kimwe.
2. Iyo icyerekezo kimwe kireba ishami ry'inzira nyabagendwa mu Ntara nyinshi, icyemezo gifatwa na Minisitiri ushinze Imilimo ya Leta akoresheje iteka.

Ingingo 24:

Icyerekezo kimwe gishobora kubaho buri gihe cyangwa kigashyirwa ku masaha amwe n'amwe gusa.

Iyo kugenda mu muhanda bidashobora kunyuzwa mu yindi nzira ku buryo bworoshye, icyerekezo kimwe gishobora gushyirwaho mu buryo busimburana.

Icyiciro 8. Guhindura icyerekezo

Ingingo 25:

1. Umuyobozi wese ushaka gukatira iburyo cyangwa ibumoso aha mu muhanda cyangwa ahagarika ikinyabiziga cye ibumoso bw'umuhanda agomba mbere na mbere kwerekana aho ashaka kujya nkuko biteganywa n'ingingo 44 y'iri teka:

a) yaba akatira iburyo, akegera uko bishobotse kwose iburyo bw'umuhanda na none uko bishobotse kose akabikorera ahantu hato kandi agabanyije umuvuduko, ariko rero ashobora kugana ibumoso iyo imiterere y'aho hantu cyangwa ingano y'ikinyabiziga cyangwa ibyo gitwaye bidatuma yegera uruhande rw'iburyo rw'umuhanda kandi akabikora amaze kumenya ko nta muyobozi umukurikiye watangiye kumunyuraho ko kandi bitakururira ibyago abayobozi bagenda uko bisanzwe mu nzira nyabagendwa agiye kuvamo n'icyo agiye kujyamo;

b) yaba akatira ibumoso akagana ibumoso kandi akegera uko bishobotse kwose umurongo ugabanya umuhanda mu kabiri, ariko atawugiyeho hejuru, cyangwa akegera ibumoso bw'igisate cy'umuhanda cyabigenewe, iyo ari umuhanda ugenderwamo mu byerekezo byombi, cyangwa se akegera uruhande rw'ibumoso rw'umuhanda iyo ari umuhanda w'icyerekezo kimwe kandi akabigira agabanyije umuvuduko yashaka nanone kugana mu wundi muhanda ugenderwamo mu byerekezo byombi akabigira ku buryo yawujyamo anyuze iburyo.

2. Iyo ari ukugenda ku mirongo ibangikanye, umuyobozi ashobora gukatira iburyo ari uko ari mu murongo w'iburyo, kandi akajya ibumoso ari uko ari mu murongo w'ibumoso.

3. Mu gibe ahindura icyerekezo umuyobozi wese agomba kubigira agabanyije umuvuduko kandi. akareka bagahita:

a) ibinyabiziga n'abanyamaguru bigenda mu muhanda avuyemo cyangwa biwugenda ku ruhande;

b) abanyamaguru bambukiranya umuhanda avuyemo cyangwa uwo aganamo.

Icyiciro 9. Umuvuduko n'umwanya hagati y'ibinyabizi

Ingingo 26:

1. Umuyobozi wese agomba buri gihe kuyobora ikinyabiziga cye yitonze, kandi akaringaniza umuvuduko wacyo n'uko ahantu hameze, uko habona, imimerere y'umuhanda, imimerere y'ikinyabizigai n'ibyo cyikoreye, imiterere y'ikirere, ubwinshi bw'ibigenda kugira ngo uwo muvuduko utaba intandaro y'impanuka n'imbogamizi, y'uburyo bwo kugenda mu muhanda.

Agomba gushobora guhagarika ikinyabiziga cye akurikije aho ageza amaso n'imbere y'inkomyi yose idatunguranye.

Agomba kugabanya umuvuduko kandi byaba ngombwa agahagarara bitewe nuko ahantu hameze nk'igihe hatabona neza, iyo umuhanda urimo inkomyi, iyo ari mu makoni, ahamanuka, iyo amashami y'inziya nyabagendwa afunganye cyangwa akikijwe n'amazu, hafi y'impinga z'imipando n'amasangano, kimwe ndetse n'igihe cy'ibisikana cyangwa cyo kunyura ku gatsiko k'abanyamaguru, k'ibinyabiziga bihagaze cyangwa, ishya ry'inyamaswa n'igihe ari hafi y'aho abantu bateraniye.

2. Birabujijwe kubangamira imigendere isanzwe y'ibindi binyabiziga kubera kugabanya umuvuduko ku buryo budasanzwe cyangwa gukacira feri bidatwe no kwirinda ibyago.

3. Birabujijwe kwoshya cyangwa gutuma umuyobozi agendana umuvuduko urenze urugero hakurikijwe ibivugwa mu gika cya mbere cy'iyi ingingo.

Ingingo 27:

Iyo umunyamaguru yageze mu mwanya wabagenewe, aho uburyo bwo kugenda mu muhanda butagengwa n'umukozi ubifitiye ububasha cyangwa n'ibimenyetso by'umuriro, abayobozi bashobora kuhinjira bagabanyije umuvuduko kandi bakahatambuka babonye ko batateza umunyamaguru impanuka; bibaye ngombwa bagomba guhagarara kugira ngo umunyamaguru abanze atambuke.

Ingingo 28:

Iyo abayobozi b'ibinyabiziga bifite moteri bageze hafi y'inyamaswa zikurura, zikorera, zigenderwaho cyangwa iyo bageze hafi y'amatungo agatangira kwikanga, bagomba kugenda buhoro, kwitaza cyangwa guhagarara.

Ingingo 29:

1. Umuyobozi wese agomba kutarenza umuvuduko ntarengwa washyizweho n'amategeko.

2. Iyo nta mategeko awugabanya by'umwihariko, umuvuduko ntarengwa w'ibinyabiziga ushyizweho ku buryo bukurikira:

a) Amapikipiki n'imodoka zifite uburemere ntarengwa bwemewe butarenga ibiro 3500 uretse amavetiri cyangwa tagisi n'ibinyabiziga bitwarira hamwe abantu: ibirometero 80 mu isaha;

b) imodoka zikoreshwa nk'amavetiri y'ifasi cyangwa amatagisi zifite uburemere bwemewe butarenga kilogarama 3.500: ibirometero 70 mu isaha.

c) Imodoka zifite uburemere ntarengwa bwemewe buri hagati ya kilogarama 3500 na 12500, kimwe n'ibinyabiziga bitwarira abantu hamwe bitari ibyavuzwe kuri b): ibirometero 60 mu isaha;

d) Imodoka cyangwa ibinyabiziga bikomatanye bifite uburemere ntarengwa bwemewe cyangwa uburemere bugandanwa burenga ibiro 12.500 kimwe na velomoteri: ibirometero 50 mu isaha;

e) Ibinyabiziga by'ubuhinzi, ibifite imipira irambuka cyangwa itarambuka imodoka zidafite ibizibuza kwiceka kubera ko ariko zakozwe, izindi modoka zose zikoze k'uburyo bwihariye, zitari mu rwego rw'izimaze kuvugwa: ibirometero 25 ku isaha.

3 Mu nsisiro, umuvuduko ntarengwa w'ibinyabiziga ushyizweho ku buryo bukurikira:

a) imodoka zagenewe gusa gutwara abantu, uretse ibinyabiziga bitwarira abantu hamwe, kimwe n'imodoka zidashobora kwikorera ibirenze toni imwe: ibirometero 50 ku isaha;

b) ibindi binyabiziga byose: ibirometero 40 mu isaha.

Ba perefere bashobora gutegeka ko mu nsisiro no mu nzira nyabagendwa bavuze haba umuvuduko uri munsi y'imaze kuvugwa.

4. Ikinyabiziga cyose gifite uburemere ntarengwa bwemewe burenga toni eshanu kigomba gushyirwaho na nyiracyo cyangwa se ugikoreshe, icyapa gihuje n'urugero rwa 1 ruri ku mugereka wa 8 w'iri teka kandi cyerekana umuvuduko ntarengwa ikinyabiziga kidashobora kurenza,

5. Icyo cyapa kigomba gushyirwa ku buryo bugaragara inyuma y'ikinyabiziga ku ruhande rw'iburyo. Kigomba kugira umurambararo wa santimetero 21 kandi ubugari bw'umuzenguruko utukura bugomba kugira santimetero 3, imibare ikagira ubuhagarike bwa santimetero 17 n'ubugari bwa milimetero 45, n'ubunini bwa santimetero 1.

6. Ariko rero, kuberekeye ibinyabiziga by'ingabo z'igihugu, ikimenyetso cy'umuvuduko ntarengwa ikinyabiziga kigomba kugira gishobora kwandikwa inyuma yacyo ku ruhande rw'iburyo hakurikijwe ishusho, ubunini n'amabara amwe nk'ay'iby'icyapa kimaze kuvugwa haruguru.

Ingingo 30:

Hanyuranyijwe n'ibimaze kuvugwa, iteka rya Minisitiri ushinze Imirimo ya Leta rishobora gushyiraho imivuduko ntarengwa inyuranye ku nzira nyabagendwa zimwe cyangwa zose.

Ingingo 31:

1. Umuyobozi w'ikinyabiziga gikurikiye ibindi agomba gusiga umwanya witajwe uhagije hagati y'icye n'icyo akurikiye kugira ngo atakigonga mu gihe kigabaniye umuvuduko cyangwa gihagaze ku buryo butunguranye.

2. Ahatari mu nsisiro, umuyobozi wese ugenza ikinyabiziga kimwe cyangwa ibinyabiziga bikomatanye bifite uburemere ntarengwa bwemewe burenga ibiro 3500 cyangwa bifite uburebure bwite burenga metero 10, agomba, keretse iyo anyuze cyangwa agiye kunyura ku bindi binyabiziga, gusiga hagati y'ikinyabiziga cye n'ikimuri imbere umwanya uhagije kugirango ibinyabiziga bimuhiseho bishobore kuhigobeka bidateje impanuka igihe bibaye ngombwa.

3. Nyamara ariko, ibi bitegetswe ntibikurikizwa mu gihe ibigendera mu muhanda ari byinshi kimwe no mu duce tw'inzira nyabagendwa aho kunyuranaho bibujijwe.

Icyiciro 10. Guhagarara umwanya muto no guhagarara umwanya munini.

Ingingo 32:

1. Uretse igihe hari amategeko yihariye akurikizwa muri ako karere cyangwa imitunganyirize bwite y'aho, ikinyabiziga cyose cyangwa inyamaswa ihagaze umwanya muto cyangwa munini igomba kuba iri:

a) mu kuboko kw'iburyo hakurikijwe aho yaganaga keretse iyo ari umuhanda w'icyerekezo kimwe, ari nabwo na none ishobora kuba iri ibumoso bw'umuhanda;
b) ahegereye bishobotse akayira k'abanyamaguru iyo umuhanda ugafite, ariko umwanya uri hagati y'ibinyabiziga n'akayira ntube urenga santimetero 50;
c) kure cyane bishobotse y'umurongo ugabanya umuhanda mo kabiri kandi byaba ngombwa ikaba iri ahitaruye umuhanda mu mwanya uri mu mpande zawo cyangwa, ahatarari insisiro, ku ruhande rwose rutagenewe ku buryo bw'umwihariko abandi bagenzi;
d) iyo ari umwanya wo ku ruhande wagenewe abanyamaguru, umuyobozi agomba kubasigira akanya gafite, byibura metero imwe y'ubugari kugira ngo bashobore kugenda batagombye kunyura mu muhanda.

2. Uretse igihe hari amategeko yihariye y'aho hantu cyangwa imitunganyirize bwite y'aho, ibinyabiziga bihagaze mu muhanda umwanya muto cyangwa munini bigomba kuba bitonze umurongo ubangikanye n'inkombe y'umuhanda.

3. Birabujijwe guhagarika umwanya munini mu gihe kirenze iminsi 7 ku nzira nyabagendwa: v a) ibinyabiziga bifite moteri bitagishoboye kugenda kimwe na romoruki b) mu nsisiro, ibinyabiziga n'ibinyabiziga bikomatanye bifite uburemere ntarengwa bwemewe burengeje ibiro 3500, keretse ahantu hari ikimenyetso n° E, 20.

4. Umuyobozi ntashobora gusiga ikinyabiziga cye cyangwa inyamanswa ze atabanje kwiringira ko nta mpanuka iyo ariyo yose iri bube, kandi na none yaba ari ikinyabiziga gifite moteri, atabanje kwiringira ko kitakoreshwa nta ruhushya rwe.

5. Birabujijwe gukingura umuryango cyangwa kuva mu kinyabiziga cyangwa kukijyamo utabanje kwiringira ko bidashobora gutera ibyago cyangwa bitabera imbogamizi abandi bali mu nzira nyabagendwa.

6. Ikinyabiziga cyose uretse velomoteri cyangwa ipikipiki idafite akanyabiziga kari ku ruhande gihagaritswe ku muhanda kigomba kurangirwa kure n'ikimenyetso cyabigenewe kiri ahantu hagaragara, kugira ngo kiburire hakiri kare abandi bayobozi baza bagisanga:

a) iyo ikinyabiziga gihagaritswe n'ijoro ku buryo abayobozi bakigana badashobora kumenya ko kibabereye imbogamizi;

b) iyo umuyobozi agombye guhagarika ikinyabiziga ahantu habujijwe guhagarara. Ikinyabiziga cyahagaritswe gishobora kurangwa n'uko ibintu bimeze, n'ikimenyetso cya mpande eshatu yerekana ahashobora gutera ibyago yateganijwe ku ngingo ya 88, 5,a), no gucanira rimwe amatara ndanga cyerekezo amyatsa cyangwa se bagakoresha itara ritwarwa mu ntoki rimyatsa ry'umuhondo cyangwa risa n'icunga rihishije.

7. Uretse amategeko yihariye akurikizwa muri ako karere, umwanya usigara hagati y'ibinyabiziga bibiri bihagaze umwanya munini ku ruhande rumwe rw'umuhanda ubisikanirwamo kandi utuma hahita ibinyabiziga bibiri gusa, ugomba kuba nibura metero 5 iyo ari mu nsisiro, na metero 20 ahatarari mu nsisiro.

Ingingo 33:

1. Birabujijwe guhagarika akanya gato cyangwa kanini ikinyabiziga cyangwa inyamaswa ahantu hose bigaragara ko hashobora guteza ibyago cyangwa kubera imbogamizi abandi bagenzi bitari ngombwa.

2. Guhagarara akanya gato no guhagarara akanya kanini bibujijwe cyane cyane:

a) mu duhanda tw'abanyamaguru no mu bice by'umuhanda byagenewe abanyamaguru velomoteri, n'abagenzi bambukiranya umuhanda no mu muhanda ahatarari nibura metero 5 hino yaho abanyamaguru bambukira;

b) mu nzira z'abanyamaguru, no mu nsisiro, ari ku nkengero zigiye hejuru, keretse iyo

hari amategeko yihariye akurikizwa muri ako karere

c) mu ruhande ruteganye n'urwo ikindi kinyabiziga gihagazemo akanya gato cyangwa kanini ari:

ku mihanda ibisikanirwamo, iyo ubugari bw'umwanya w'ibinyabiziga bigomba gutuma bibisikanirwamo butagifite metero 6;

ku mihanda y'icyerekezo kimwe iyo ubugali bw'umuhanda usigaye buba butagifite metero eshatu;

d) hejuru no munsu y'amateme no mu mihanda inyura ikuzimu, keretse hari amategeko yihariye akurikizwa muri ako karere;

e) muri metero ziri hasi yi 10 uhereye ku nkombe iri bugufi bw'umuhanda wambukiranya keretse iyo hari amategeko yandi yakurikizwa muri ako karere kimwe no mu mwanya ugizwe naho iyo mihanda ihuriye;

f) mu ikoni cyangwa hafi y'impinga y'umupando iyo kureba mu byerekezo byombi bihuriye kuri metero 20 nibura mu nsisiro cyangwa kuri metero 100 nibura ari ahatari insisiro.

g) ahatagejeje muri metero 2 nibura hino y'ikimenyetso cy'umuhanda cyangwa hino y'ikimenyetso cy'umuliro cyerekana uburyo bwo kugenda mu muhanda;

h) ku mihanda ibisikanirwamo, iyo kunyura ku kinyabiziga gihagaze akanya gato byatuma barenga umurongo urombereje mu muhanda;

i) ahari ibimenyetso bibuza byabigenewe.

3. Ikinyabiziga kibujijwe guhagarara akanya kanini:

a) imbere y'ahantu nyabagendwa hinjirwa n' ahasohokerwa n'abantu benshi;

b) mu masaha bafunguriraho imbere y'ahinjirirwa n'ahasohokerwa hagenewe imyidagaduro, h'amashuri n'amazu y'imyidagaduro;

c) imbere y'aho binjirira mu duhanda tujya mu bibanza byadikanye usibye ibinyabiziga bifite numero z'ibyapa byazo zanditswe aho hantu ku buryo busomeka;

d) ahantu hose ikinyabiziga cyabuza kugera ahateganyirijwe guhagararamo hari hirya y'umuhanda;

e) ahantu abanyamaguru bagomba kunyura mu muhanda kugirango bakikire inkomyi;

f) ahatagejeje muri metero 1, haba imbere cyangwa inyuma y'ikindi kinyabiziga gihagaze akanya gato cyangwa kanini, n'ahandi hantu hose ikinyabiziga cyabuza kugera ku kindi kinyabiziga gisanze gihagaze mu buryo bukwiye cyangwa cyahita cyihava;

g) ahatagejeje muri metero 15 kuva imbere n'inyuma z'ikimenyetso cyerekana aho ikinyabiziga cyagenewe gutwara abantu gihagarara akanya gato;

h) ahatagejeje muri metero 10 imbere n'inyuma y'ikimenyetso E1, na E-19 bis, cyerekana ahantu hagenewe guhagarara akanya gato ikinyabiziga gitwara abantu mull rusange, uretse ibinyabiziga bitwara abakozi ba Leta muri rusange;

i) mu muhanda aho ugabanyijemo ibisate bigaragazwa n'imirongo idacagaguye;

j) mu muhanda, ahakurikiye umurongo w'ibara ry'umuhondo ugizwe n'uduce, wateganyijwe ku ngingo ya 110,8, y'iri teka;

k) mu muhanda wo hagati mu nzira ugizwe n'imihanda itatu;

l) ahatari mu nsisiro, ku muhanda w'inzira nyabagendwa w'abagomba gutambuka mbere ugaragazwa n'ikimenyetso n° B, 3; m) iyo ubugari bw'umwanya usigaye ku muhanda bwaba butagifite metero 3;

n) ahadafite metero 1 kuva ku mpande z'ahashyizwe uruhombo amazi azimya umuriro;

o) ahantu ho kugenda ibinyabiziga byo ku marayirayi byabangamirwa;

p) ahantu hari ibimenyetso bibuza byabigenewe.

Ingingo 34:

Ikinyabiziga kibujijwe guhagarara akanya ahantu hagaragazwa n'icyapa n° C,20a cyangwa C,20b;

Ingingo 35:

Iyo umuyobozi w'ikinyabiziga adahari, umukozi ubifitiye ububasha ashobora guhita agikuzaho, ariko i ibyacyangirikaho n'amafaranga yo kugikuzaho, bikabarwa kuri Leta, keretse iyo icyo kinyabiziga cyahashyizwe ku buryo bunyuranije n'amategeko yerekeye guhagarara akanya gato cyangwa kanini.

Ubwo buryo ntibushobora gukoreshwa mu nzira nyabagendwa n'undi mugenzi atabifashijwemo n'umukozi ubifitiye ububasha.

Icyiciro 11. Ibinyabiziga ndakumirwa**Ingingo 36:**

1. Intabaza zihariye zirabagirana z'ibinyabiziga ndakumirwa zigizwe n'itara rimwe cyangwa n'amata menshi amyatsa ya bururu zigomba gukoreshwa mu gihe ikinyabiziga ndakumirwa kiri mu butumwa bwihutirwa.
2. Uretse intabaza ndangururajwi ziteganijwe ku ngingo ya 83, ibinyabiziga ndakumirwa bifite intabaza yihariye itanga amajwi nk'arongoroye cyangwa y'inshengera-matwi.
3. Intabaza ndangururajwi ikoreshwa gusa mu gihe ikinyabiziga ndakumirwa kiri mu butumwa bwihutirwa.

Ingingo 37:

1. Iyo umugenzi ari mu nzira nyabagendwa asatiriwe n'ikinyabiziga ndakumirwa kirangwa n'intabaza ndangururajwi yihariye, agomba kugihigamira ako kanya, ndetse byaba ngombwa agahagarara.
2. Uretse ibyo bategekwa n'abakozi babifitiye ububasha bakaba kandi batateza ibyago, abayobozi b'ibinyabiziga ndakumirwa, ntibategetswe kubahiriza amategeko yerekeye umuvuduko ntarengwa n'ayerekeye ibimenyetso by'umuriro byerekana uburyo bwo kugendera mu nzira nyabagendwa iyo guhita kwabyo kurangwa n'intabaza yihariye.

Icyiciro 12. Imirongo y'abasilikare, udutsiko tw'abanyeshuri, impererekane.**Ingingo 38:**

1. Imirongo yose y'ingabo n'agatsiko kose k'abanyamaguru bari mu muhanda bategetswe kugendera ku ruhande rw'iburyo bw'umuhanda no gusiga ibumoso umwanya uhagije kugirango ibinyabiziga bihite.
2. Abagendera mu nzira nyabagendwa babujijwe kwata:
 - a) umurongo w'abasirikare bagenda cyangwa imirongo y'ibinyabiziga by'ingabo z'igihugu zigenda mu muhanda;
 - b) mu murongo w'abanyeshuri bashorewe n'umwarimu;
 - c) uruherekane.Izi nkomyi ntizikurikizwa ku binyabiziga ndakumirwa
3. Abagenzi bari mu nzira nyabagendwa bagomba kumvira ibyo bategetswe n'abasilikare bubahiliza umutekano kugirango abasilikare bari ku murongo batambuke neza.

Icyiciro 13. Amasiganwa n'andi marushanwa mu mikino.

Ingingo 39:

1. Uretse iyo ubutegetsu bwabitangiye uruhusa, birabujijwe gusiganirwa mu nzira nyabagendwa, mu muhanda no mu duhanda tw'amagare, kuhakinira cyangwa kuhakorera ibindi bikorwa by'imikino byabera imbogamizi uburyo bwo kugendera mu muhanda.
2. Urushyashya rugomba gusabwa Umuyobozi w'akarere, Umukuru w'Intara, cyangwa Minisitiri ushinze Ubutegetsu bw'Igihugu, iyo ibyo bibera mu karere kamwe, mu gice kirenze akarere kamwe gusa cyangwa kirenze Intara imwe.
3. Urushyashya ruvugwa muri iyi ngingo ruhabwa gusa abategura amasiganwa cyangwa andi marushanwa y'ibinyabiziga, iyo berekanye ko bafite ubwishingizi bwemeza ko uburyozwe cyangwa ibizaba ku mubiri w'abarushanwa cyangwa ku bizangirika ku bintu by'abaje kureba iyo mikino byagombaga kubabarwaho bizatangirwa indishyi.
4. Abategura amarushanwa y'imikino ku nzira nyabagendwa bagomba na none kwishingira amafaranga atangwa hakurikije uburyo bushyizweho n'iteka rya Perezida mu gihe cyo kubahiriza ku budasanze umutekano wa rubanda no kubahiriza amategeko y'uburyo bwo kugendera mu muhanda.

Icyiciro 14. Kwambuka amateme n'ibyome

Ingingo 40:

1. Iyo kunyura ku iteme biteye impungenge uburemere ntarengwa bwemewe kimwe n'amabwiriza agomba gukurikizwa byerekanwa n'ibyapa bishyirwa mu ntangiriro z'iryo teme ku buryo abayobozi b'ibyo binyabiziga babibona ku buryo buhagije. Iyo byihutirwa, Umuyobozi w'akarere cyangwa umukozi w'ahongaho ushinze amateme n'imihanda ashobora gufata ibyemezo by'agateganyo kugira ngo abahanyura batagira impanuka.
2. Uretse igihe icyapa kibyerekanwa ukundi, uburemere ntarengwa ku mateme akozwe mu ngiga z'ibiti cyangwa mu mbaho ni toni 8. Cyakora, Perefe ashobora gushyira uburemere ntarengwa buri muni y'izo toni, bitewe n'uko ibintu byifashe, nk'igihe iteme rishaje.
3. Iyo begereye ibyome, abayobozi bagomba gutonda umurongo umwe no guhagarara iburyo bw'umuhanda igihe bagitegereje gutambuka. Nyamara ibinyabiziga bigiye kuvugwa bitambuka mbere y'ibindi kandi mu buryo bukurikira:
 - a) ibinyabiziga bitwaye abarwayi cyangwa inkomere kimwe n'ibijyanye abaganga bahururijwe kuvura byihutirwa;
 - b) ibinyabiziga ndakumirwa bifite uburenganzira bwo guhita mbere bivugwa ku ngingo ya 2, 31 y'iri teka;
 - c) ibinyabiziga bitwaye umuntu ufite icyemezo kimwanditseho cyo guhita mbere cyatanzwe na Perefe, bitewe n'uko bifitiye rubanda akamaro;
 - d) ibinyabiziga bitwaye ubutumwa bwanditse bifite ikimenyetso kibiranga;
 - e) ibinyabiziga bitwara amatungo.
4. Uretse umuyobozi n'abagiherekeje abantu bose bari mu kinyabiziga bagomba kukivamo mbere yuko gishyirwa mu cyome. Igihe bava mu cyome ku nkombe yo hakurya umuyobozi n'abaherekeje ikinyabiziga nibo bonyine bashobora kujyamo.
5. Umuyobozi w'imodoka agomba kumanura ibirahuri mbere yo kugishyira mu cyome

na mbere yo kuyikuramo ageze ku nkombe yo hakurya.

6. Uburemere ntarengwa bwemewe bujya mu cyome bwerekanwa n'ibyapa biri kuri buri nkombe. Perefe ashobora gushyiraho amabwiriza yose abona ko ari ngombwa mu kubahiriza umutekano w'abambukira mu byome.

Icyiciro 15. Uko amatara akoreshwa

Ingingo 41:

Kubyerekeye kwerekana ibinyabiziga n'ukumurika kwabyo, ndetse no kwerekana ihindura ry'ibyerekezo byacyo n'umuvuduko, birabujijwe gukora andi matara cyangwa utugarururumuri uretse ibitegetswe cyangwa ibiteganywa n'iri teka.

Ibimaze kuvugwa ntibyerekeye gukoresha amatara ari imbere mu modoka mu gihe bitabangamiye abandi bayobozi.

I. Amatara-Ndanga.

Ingingo 42:

1. Iyo kuva bwije kugeza bukeye cyangwa bitewe n'uko ibihe bimeze, nk'igihe cy'ibihu cyangwa cy'imvura nyinshi biba bitagishoboka kubona neza muri metero 200, ukuba mu nzira nyabagendwa kw'abagenzi, kw'ikinyabiziga, kw'imitwaro n'amatungo kugomba kugaragazwa ku buryo bukurikira:

a) Ibinyamitende, velomoteri n'amapikipiki bidafite akanyabiziga ko kuruhande uretse ikinyamitende na velomoteri bidafite umuyobozi:

- imbere itara rimwe ryera cyangwa ry'umuhondo cyangwa se rise n'icunga rihishije (itara ndanga-mbere);
- inyuma, itara rimwe ritukura (itara ndanganyuma);

Ibi bimaze kuvugwa ntibikurikizwa ku binyabiziga bimaze kuvugwa haruguru, iyo kubera uko byahanzwe, bidafite batiri, kandi bikaba bihagaze akanya gato cyangwa kanini mu rusisiro kimwe no ku ruhande rw'umuhanda.

b) ibinyabiziga bigendeshwa na moteri bitari velomoteri n'amapikipiki bidafite akanyabiziga ku ruhande: - inyuma, n'amatara abiri atukura (amatara ndanganyuma).

c) imodoka zikuruwe n'inyamaswa, ingorofani, inyamaswa zitwaye imizigo cyangwa zigenderwamo kimwe n'amatungo bigomba kurangwa:

- imbere n'itara ryera cyangwa ry'umuhondo cyangwa se risa n'icunga rihishije (itara ndanga-mbere);
- inyuma n'itara rimwe ritukura (itara ndanganyuma).

Ayo matara ashobora guturuka kw'isoko imwe itanga ahagana imbere urumuli rwera cyangwa rw'umuhondo cyangwa se rusa n'icunga rihishije, kandi igatanga inyuma urumuri rutukura cyangwa ayo matara agasimburwa n'itara rimwe ritanga mu byerekezo byose urumuri rusa n'icunga rihishije cyangwa ry'umuhondo, keretse iyo ikinyabiziga cyangwa se ibinyabiziga bikomatanye bikururwa n'inyamaswa bifite uburebure burenga metero 6 harimo n'imitwaro cyangwa iyo inyamaswa zigize umukumbi w'inyamaswa 6 byibura. Ayo matara ashobora gutwarwa n'umuyobozi cyangwa umuherekeza uagenda ahagereye ibumoso bw'ikinyabiziga cyangwa bw'inyamaswa.

d) ibinyabiziga bihinga n'ibindi bikoresho byihariye bikoreshwa n'ibigo bipatana imirimo:

- byaba amatara ateganyijwe ku mugemo b);
 - cyangwa amatara ateganyijwe ku mugemo c);
- ibyo binyabiziga bipfa kutarenza gusa umuvuduko wa kilometero 20 mu isaha kandi uburebure bwabyo, habariwemo ibyo bitwaye bukaba butarengeje metero 6.

e) Ibindi binyabiziga iyo bigenda mu muhanda bigomba kugira:

- imbere, itara ryera cyangwa ry'umuhondo cyangwa risa n'icunga rihishije riri ku ruhande rw'ibumoso rw'ikinyabiziga;
- inyuma, n'itara ritukura riri ku ruhande rw'ibumoso bw'ikinyabiziga.

Ayo matara ashobora guturuka kw'isoko imwe ishobora gutanga urumuri rwera cyangwa rusa n'icunga rihishije kandi igatanga ahagana inyuma urumuri rutukura cyangwa ayo matara agasimburana n'itara rimwe ritanga mu byerekezo byombi urumuli rusa n'icunga rihishije cyangwa risa n'umuhondo iyo ikinyabiziga cyangwa ibinyabiziga bikomatanye birengeje metero 6 habariweho ibyo byikoreye.

Ibinyabiziga bigendwamo n'abana kimwe n'ingorofani n'ibimuga cyangwa abarwayi ntibitegetswe kugira ibimenyetso bibyerekana iyo byambukiranya umuhanda cyangwa bigenda ku ruhande rwawo.

f) Imirongo y'ingabo z'igihugu zigendera kuri gahunda n'utundi dutsiko twose tw'abanyamaguru nk'imperekerane cyangwa udutsiko tw'abanyeshuri bari ku murongo bayobowe n'umwarimu, iyo bagenda mu muhanda, kw'isonga hakaba hari abantu barenze umwe

- imbere, n'itara ryera ritwariwe ku ruhande rw'ibumoso n'umuntu uri ku murongo w'imbere, hafi y'umurongo ugabanya umuhanda mo kabiri;
- inyuma, n'itara ry'umutuku ritwariwe ku ruhande rw'ibumoso n'umuntu uri ku murongo w'inyuma hafi y'umurongo ugabanya umuhanda mo kabuki.

Impande z'iyi mirongo cyangwa z'utwo dutsiko; iyo uburebure bwazo burenga metero 6, zigomba kugaragazwa n'itara rimwe cyangwa menshi yera, cyangwa y'umuhondo cyangwa asa n'icunga rihishije.

Imitwe y'ingabo ziri mu myitozo ntizitegetswe kugira ibimenyetso biziranga; muri icyo gihe ibigomba gukorwa kugira ngo abagenzi bagire umutekano bitegekwa na Minisitiri ushinze Ingabo z'Igihugu.

g) Romoruki:

- iyo ziziritse ku binyabiziga bivugwa ku mugemo a): itara ryera cyangwa ry'umuhondo cyangwa risa n'icunga rihishije riri kuri romoruki inyuma iyo uburumbarare bwayo cyangwa by'ibyo yikoreye bituma itara ry'ikinyabiziga gikurura ritagaragara;
- iyo ziziritse ku bindi binyabiziga byose; n'amatara ndanga-mbere n'aya ndanga-nyuma ateganyijwe ku binyabiziga bikurura.

h) Ibinyabiziga cyangwa imitwaro bifite ubugari burenga metero 2,50

- imbere n'inyuma; n'amatara ateganywa ku mugemo
- b) w'iyi ngingo;

- imbere n'inyuma kandi kuri buri ruhande, ndetse byaba ngombwa no ku mpera y'amabondo y'ikinyabiziga cyangwa y'imitwaro, n'itara ndangaburumbarare risa n'icunga rihishije cyangwa ry'umuhondo.

2. Iyo ikinyabiziga gihagaze umwanya muto cyangwa munini, gukoresha amatara ateganywa ku gika cya mbere cy'iyi ngingo bitegetswe gusa iyo amatara yo ku muhanda adatumye ikinyabiziga kigaragara neza muri metero 100, kandi n'igihe ikinyabiziga gihagaze umwanya muto cyangwa munini inyuma y'imyanya yabiteganyirijwe, by'umwihariko yerekanwa n'ikimenyetso n°E, 20.

3. Amatara ndanga mbere n'aya ndanga nyuma y'imodoka zitarengeje metero 6 z'uburebure na metero ebyiri z'ubugari habariwemo imitwaro kandi nta kindi kinyabiziga kiziritseho, ashobora gusimbura n'amatara yo guhagarara umwanya munini iyo ibyo binyabiziga bihagaze umwanya muto cyangwa munini mu nsisiro bibangikanye ku ruhande rw'umuhanda.

Ayo matara azaba yera cyangwa asa n'umuhondo ahagana imbere n'umutuku cyangwa umuhondo inyuma.

Itara cyangwa amatara yo guhagarara umwanya munini ku ruhande rw'umurongo ugabanya umuhanda mu kabiri niyo yonyine agomba gucanwa.

4. Amatara kamenabihu y'inyuma ntashobora gukoreshwa atari uko inkomyi zo kubona neza, imiterere y'ikirere mu buryo bwo kubona neza nk'igihu cyangwa imvura nyinshi bituma ntawe ubona hirya ya metero 100.

II. Amatara magufi n'amatara maremare

Ingingo 43:

1. Amatara magufi n'amatara maremare agomba gucanirwa rimwe n'amatara ndanga iyo hagati yo kurenga no kurasa kw'izuba cyangwa bitewe n'uko ibihe byifashe, nk'igihe cy'igihu cyangwa cy'imvura nyinshi, bidashobotse kubona neza muri metero zigeze ku 100.

2. Nyamara, amatara magufi n'amatara maremare agomba kuzima iyo ikinyabiziga gihagaze umwanya muto cyangwa munini.

3. Amatara maremare y'ikinyabiziga agomba kuzimwa:

a) iyo umuhanda umurikiwe hose kandi bikaba bihagije kugira ngo umuyobozi ashobore kureba neza muri metero zigeze ku 100;

b) iyo ikinyabiziga kigiye kubisikana n'ikindi, hakiri intambwe zihagije kugirango icyo kinyabiziga gishobore gukomeza kugenda ku buryo bucyoroheye kandi butagitera ibyago, akabigira buri gihe cyose umuyobozi acana azimya vuba vuba amatara maremare yerekana ko ahumwe;

c) iyo ikinyabiziga gikurikiye ikindi mu ntambwe zitagera kuri metero 50, keretse iyo umuyobozi wacyo ashaka kunyura kucyo akurikiye acana azimya vuba vuba amatara maremare.

4. Amatara magufi y'amapikipiki na velomoteri bigenda mu nzira nyabagendwa agomba gukoreshwa igihe cyose no mu buryo bwose.

5. Amatara kamenabihu y'imbere y'ikinyabiziga akoreshwa gusa iyo imiterere y'ikirere nk'igihe cy'igihu cyangwa cy'imvura nyinshi bituma ntawe ubona neza nko muri metero 100, iyo ikinyabiziga kigenda mu nzira nyabagendwa ifunganye irimo amakoni menshi. Ayo matara kamenabihu ashobora gusimbura amatara yo kubisikana cyangwa amatara y'urugendo.

6. Amatara-ndanga agomba gucanirwa rimwe n'amatara yo kubisikana, n'amatara y'urugendo cyangwa n'amatara kamenabihu.

7. Amatara yo gusubira inyuma acanwa gusa igihe cyo gusubira inyuma, nta na rimwe agomba kubangamira abandi bagenzi.
8. Amatara ashakisha acanwa gusa igihe ari ngombwa kandi atabangamiye abandi bayobozi.

III. Kwerekana guhindura icyerekezo n'umuvuduko.

Ingingo 44:

Umuyobozi ushaka guhindukiza ikinyabiziga cyangwa kukiganisha ku ruhande, nko kugikata mu masangano kuva mu muhanda, cyangwa kugihagarika ibumoso bw'umuhanda, agomba kubanza kubigaragaza neza kandi ku buryo buhagije, akiri muri m50 nibura, akoresheje itara cyangwa amatara ndanga-cyerekezo y'ikinyabiziga cye cyangwa yaba atayafite, akabikoresha ukuboko kwe.
Uko kubyerekana kugomba kurangirana n'icyo yashakaga gukora.

Ingingo 45:

Umuyobozi ushaka kugabanya umuvuduko w'ikinyabiziga cye agomba kubyerekana. Uko kubyerekana kugomba kugaragazwa n'amatara yo guhagarara, yaba ntayo bikerekanishwa ukuboko.

Ingingo 46:

Ukwerekana guhindura icyerekezo cyangwa umuvuduko ntibibuza umuyobozi gukurikiza ibyo agomba gukora bitewe n'umwanya abandi bagenzi barimo n'umuvuduko bafite.

Icyiciro 16. Gukoresha imburira n'imikandara yo kwirinda ibyago

Ingingo 47:

1. Birabujijwe gukoresha izindi mburira zitari izateganijwe n'iri teka.
2. Gukoresha amahoni bigomba kumara umwanya muto uko bishobotse kose kandi bikaba gusa igihe hari impamvu zo kwirinda impanuka, cyangwa igihe atari mu nsisiro, kugira ngo umuyobozi uri imbere amenyeshwe ko bagiye kumunyuraho.
3. Hagati ya saa kumi n'ebyiri za nijoro no kurasa kw'izuba, keretse iyo bagiye kuba impanuka, amahoni, agomba gusimbuzwa imburira zimurika, hakoreshejwe gucana uzimya vuba vuba amatara magufi cyangwa hasimburana vuba vuba amatara magufi n'amatara maremare.
4. Imburira zimurika zemewe gukoreshwa kugira ngo bamenyeshe umuyobozi ko bagiye kumunyuraho haba mu nsisiro cyangwa ahandi hose.
5. Birabujijwe gukoresha amahoni cyangwa gusakurisha cyane moteri ahagereye inyamaswa zikurura, izikoreye ibintu cyangwa amatungo.
6. Ibivugwa mu gika cya 2 n'icya 3 by'iyi ngingo ntibikurikizwa kubyerekeye ibinyabiziga ndakumirwa.

Ingingo 47:

Abagenzi bicaye ku ntebe zifite imikandara kimwe n'umuyobozi w'ikinyabiziga bagomba kurumanya neza imikandara yabo.

Umutwe 2. AMATEGEKO Y'UMWIHARIKO AREBA BAMWE MU BAGENZI

Icyiciro 1. Abanyamaguru

Ingingo 48:

1. Uretse iyo hari amategeko yihariye yerekanwa n'ibimenyetso, utuyira turi ku mpande z'umuhanda n'inkengero zigiye hejuru bihariwe abanyamaguru, Abanyamaguru batatanye cyangwa bagize udutsiko tudafatanyije gahunda kandi batanayobowe n'umwalimu, bategetswe kunyura mu tuyira turi ku mpande z'umuhanda no ku nkengero zigiye hejuru uretse ubutaka butsingagiye butandukanya imihanda ibiri bwo bunyurwamo gusa n'abanyamaguru bashaka guhagarara akanya gato igihe bambukiranya iyo mihanda.
2. Iyo hatari utuyira two ku mpande z'umuhanda cyangwa inkengero zigiye hejuru, cyangwa bidashobora kugendwa, abanyamaguru bagomba kunyura mu tuyira turi ku musezero w'umuhanda, bapfa gusa kutabuza cyangwa kutabangamira uburyo bwo guhagarara akanya gato, bwo kubisikana cyangwa kunyuranaho by'abayobozi, bibaye ngombwa bagomba kwegera uruhande rw'inyuma rw'inkengero y'umuhanda.
3. Iyo nta nkengero y'umuhanda iringaniye cyangwa idashobora kugendwamo, abanyamaguru bashobora kunyura mu kayira k'abanyamagare cyangwa se mu muhanda. Iyo banyuze mu kayira k'abanyamagare, abanyamaguru bagomba kureka abanyamagare n'abagendera kuli velomoteri bagahita Iyo banyuze mu muhanda abanyamaguru bagomba gukikira inkengero yawo kandi, uretse habaye izindi mpamvu, bakagenda ibumoso bw'umuhanda, ukurikije aho bagana, keretse iyo ari imihanda y'ikerekezo kimwe. Ibyo aribyo byose, abanyamaguru bacunga ikinyamitende, velomoteri cyangwa ipikipiki kimwe n'udutsiko tw'abanyamaguru bayobowe n'umwarimu cyangwa bagize uruherekerane, bagomba igihe cyose kugendera iburyo bw'umuhanda.
4. Uretse iyo bagize uruherekerane, abanyamaguru bagenda mu muhanda igihe cya nijoro cyangwa, hatabona neza, kimwe no ku manywa igihe hari ibinyabiziga byinshi bigenda, bagomba kugenda ku murongo umwe.'
5. Abanyamaguru ntibashobora kwambukiranya umuhanda batabanje kumenya ko bashobora kubigira bitabateye ibyago kandi bitabangamiye ibinyabiziga bigenda. Bagomba kunyura mu myanya yabateganyirijwe iyo iri ahatageze ku metero 50.
6. Iyo hafi y'inkomane nta mwanya wabateganyilijwe, abanyamaguru bagomba kunyura mu gice cy'umuhanda kirombereje akayira ko ku mpande z'umuhanda cyangwa inkengero z'umuhanda; ahandi hose bategetswe kwambukiranya umuhanda banyuze mu kinyanguni cyawo.
7. Ahari ibimenyetso by'amatare byagenewe abanyamaguru, abo bagomba kubahiriza ibyerekanwa n'ayo matare. Aho uburyo bwo kugenda mu muhanda butanzwe n'umukozi ubifitiye ububasha cyangwa amatare, abagenzi bashobora kwambukiranya umuhanda uko uburyo bwo kugenda mu muhanda butanzwe mu cyerekezo bajyamo.
8. Nta na rimwe abanyamaguru bashobora gutinda mu muhanda cyangwa kuhahagarara nta mpamvu nyakuri ibiteye.
- 9.. Iyo umuhanda ugabanijwemo ibice byinshi bitandukanijwe n'akihugiko kamwe cyangwa ubutaka butsingagiye, abanyamaguru bageze muri kimwe muli byo, ntibashobora kwambuka ikindi gice gikurikiraho batubahirije ibivugwa cyangwa ibitegetswe n'iyi ngingo.
10. Abantu batwaye utunyabiziga tw'abana, tw'abarwayi, cyangwa utw'ibimuga bubahiriza ibyo abanyamaguru bategetswe; ni nako ibimuga byitwaye mu tunyabiziga

twabyo bigomba kubigenza, bipfa gusa kutihuta birengeje umunyamaguru ugenda bisanzwe.

Icyiciro 2. ibinyabiziga biherekeranyije mu butumwa.

Ingingo 49:

1. Hagati y'imodoka ziherekeranyije mu butumwa zigamije urugendo rumwe hagomba kuba byibura metero 30.

Ibinyabiziga biherekeranyije mu butumwa ntibishobora gutonda uburebure burenga umurongo wa metero 500. Iyo bibaye bityo ibinyabiziga biherekeranyije mu butumwa bishobora kugabanywamo amatsinda atonze umurongo atarengeje metero 500 z'uburebure kandi hagati yayo hakaba byibura metero 50. Ariko rero ayo mategeko amaze kuvugwa haruguru ntakurikizwa ku binyabiziga by'abasirikare biherekeranyije:

- a) munsisiro;
- b) kuva bwije kugeza bukeye;
- c) igihe igihu cyabuditse, kigatuma badashobora kureba neza muri metero 30 byibura.

2. Ikinyabiziga cya mbere mu biherekeranyije mu butumwa, kigomba gushyirwaho imbere icyapa cy'umuhondo cyanditseho mu nyuguti zitukura "ATTENTION CONVOI", aya magambo akaba asomwe neza ku manywa muri metero 100.

Ikinyabiziga cya nyuma mu biherekeranyije mu butumwa kigomba gushyirwaho inyuma icyapa cy'umuhondo cyanditseho mu nyuguti zitukura "FIN DE CONVOI", aya magambo akaba asomwe neza ku manywa muri metero 100.

Ibinyabiziga biherekeranyije mu butumwa bya gisirikare birangwa n'amabwiriza ashyirwaho na Minisitiri w'Ingabo z'Igihugu.

3. Ibinyabiziga bikururwa n'inyamaswa biherekeranyije mu butumwa bigomba kugabanywamo amatsinda afite uburebure butarengeje metero 500 kandi hagati yayo hakaba nibura metero 30.

Ingingo 50:

Ku mateme, hagati y'ibinyabiziga bifite ibimenyetso byerekana umuvuduko nkuko biteganywa ku ngingo ya 29, 4, hagomba kuba nibura metero 10.

Icyiciro 3. Ibinyabiziga bikururwa n'inyamaswa.

Ingingo 51:

1. Umubare w'inyamaswa zikurura ikinyabiziga ntushobora kurenga enye zikurikiranye n'eshatu zibangikanye.

2. Uburyo bwo kuyobora no kuzirika ibikururwa ku kibikurura, bugomba gutuma umuyobozi ahora agenga inyamaswa zikurura kandi akayoborana ikinyabiziga cye ubuhanga n'ubwitonzi.

3. Ibinyabiziga bikururwa n'inyamaswa bigomba kujyana n'umubare uhagije w'abaherekeza kugira ngo bitabangamira uburyo bwo kugenda mu muhanda. Cyakora iyo umubare w'inyamaswa zikurura urenze 5, hashyirwaho umuherekeza wunganira umuyobozi w'ikinyabiziga.

4. Iyo ikinyabiziga gikururwa n'inyamaswa nacyo gikuruye ikindi kandi uburebure

bw'ibikururwa bukaba burenga metero 18, hatabariwemo icyo ikinyabiziga cya mbere kiziritseho, hagomba umuherekeza, w'ikinyabiziga cya kabiri.

5. Iyo uburebure bw'imizigo iri ku kanyamizigo gakururwa burenga metero 12, hagomba umuherekeza ukurikira icyo kinyabiziga ku maguru.

Icyiciro 4. Utunyamizigo dusunikwa- Ingorofani

Ingingo 52:

1. Iyo akanyamizigo gasunikwa cyangwa ibyo gatwaye bidatuma umuyobozi abona neza imbere ye, uwo muyobozi agomba gukurura ikinyabiziga cye.

2. Ingorofani zinyuzwa ku nkengero zegutse iyo inzira nyabagendwa idafite inkengero iringaniye n'umuhanda cyangwa iyo aho hatagendeka.

Icyiciro 5. Amagare, Velomoteri n'Amapikipiki

Ingingo 53:

1. Abayobozi b'amagare na velomoteri babujijwe:

a) kuyobora

- badafashe amahembe;

- badakandagiye ku birenge;

- bakurura inyamaswa;

- bakururwa;

- batwaye, bakurura cyangwa basunika ibintu byabangamira imiyoborere y'ikinyabiziga cyangwa byateza ibyago abandi bagenzi bari mu nzira nyabagendwa.

b) kunyura mu muhanda kandi hari akayira k'amagare kagendeka;

c) kurenza umuvuduko wa kilometero 40 mu isaha iyo bagenda mu kayira k'amagare d) gukoresha amahoni yandi atari igikoresho cyateganyijwe n'ingingo 83 e) kunyura hagati y'imirongo ibiri ibangikanye y'ibinyabiziga bikurikiranye

2. Hanyuranyijwe n'ibivugwa mu ngingo ya 12 y'iri teka, abayobozi b'amagare na velomoteri bashobora kugenda mu muhanda babangikanye.

Ariko rero bagomba kugenda bashoreranye mu nsiro kimwe n'iyo bwije n'iyo bagiye guhura n'ikinyabiziga kigendeshwa na moteri cyangwa n'ikinyabiziga gikururwa n'inyamaswa.

3. Abayobozi ba velomoteri n'amapikipiki n'ababihetsweho bagomba kwambara ingofero yo kubarinda yabigenewe ku buryo bw'umwihariko, iyo ngofero igomba kuba ifunze ku buryo bufashe.

4. Abayobozi b'amagare, velomoteri n'amapikipiki bagomba kuyobora ikinyabiziga cyabo bacyicayeho kandi bakaba batwara undi muntu hakurikijwe amabwiriza y'uwigikoze.

5. Abayobozi b'amagare na velomoteri bubahiriza amategeko agenga abanyamaguru iyo bayoboze ikinyabiziga cyabo batacyicayeho

6. Ibivugwa muri iyi ngingo ntibireba abasirikare bagenda ku murongo kimwe n'abarushanwa kwihuta babifitiye uruhushya nk'uko biteganywa n'ingingo 39.

Icyiciro 6. Inyamaswa.

Ingingo 54:

1. Umuyobozi w'inyamaswa zikurura,. izikorera ibintu cyangwa izo bagenderaho kimwe n'uwo amatungo, agomba, bibaye ngombwa, kubifashwamo n'umubare uhagije w'abaherekeza be kugira ngo hubahirizwe umutekano mu muhanda, ibyo aribyo byose kandi uwo mubare ntushobora kujya munsu y'umuherekeza umwe ku nyamaswa umunani.
2. Abayobozi n'abaherekeza bagomba igihe cyose kuba hafi y'inyamaswa, no gushobora kuzikumira no kuzibuza kubera imbogamizi uburyo bwo kugendera mu muhanda no kudateza impanuka; bagomba cyane cyane kugumisha inyamaswa bayoboye ku ruhande rw'iburyo bw'inzira nyabagendwa, urundi ruhande rukarekerwa abandi bagenzi.
3. Ahantu hari utuyira twatangajwe ku buryo bwihariye kandi tugaragazwa n'ikimenyetso n° D,7, birabujijwe ko amatungo agenda mu bindi bice by'inzira nyabagendwa.
4. Iyo igenda mu nzira nyabagendwa, imikumbi igomba kugabanywamo udutsiko tugizwe n'inyamaswa zitarenze icumi kandi dutandukanijwe n'intera ya metero 20 nibura.
5. Birabujijwe kubyagiza imikumbi y'inyamaswa mu nzira nyabagendwa.

Ingingo 55:

1. Mu nsisiro, birabujijwe gukinagiza inyamaswa zikurura, izikorera ibintu cyangwa izo bagenderaho, kimwe n'amatungo.
2. Birabujijwe kubyagiza inyamaswa zikurura, izikorera ibintu cyangwa izo bagenderaho n'amatungo mu nzira nyabagendwa.

Icyiciro 7. Uburyo bwo kugenda mu byambu no ku bibuga by'indege

Ingingo 56:

1. Hashobora gushyirwaho amategeko yihariye kugira ngo bahagarike cyangwa bahindure ugukurikiza iri teka ku byerekeye kugenda mu mbago z'ibyambu n'iz'ibibuga by'indege.
2. Amategeko yihariye azaba yarashyizweho agomba kumanikwa n'umutegetsi ushinzwe uturere akurikizwamo kuri buri nzira banyuramo batujyamo.
Abagenzi bazabimenyeshwa n'ikimenyetso cyerekana gihuye n'urugero E, 21, ruri ku ngereka ya 4 y'iri teka ibivugwa muri iryo tegeko ry'umwihariko bizahita bimanikwa munsu y'icyapa cy'icyo kimenyetso.
3. Amategeko ntayegayezwa cyangwa atihutirwa, ashirwaho n'amateka ya Perezida. Ubundi amategeko yihariye ashirwaho na Perefe kandi ntashobora kumara igihe kirenze amezi atatu.

Ingingo 56:

Ku mihanda y'uturere dufite aho binjirira harangwa n'ikimenyetso E,9, kiri hejuru y'ikimenyetso E,19 bis, ibinyabiziga bisanzwe bigenewe gutwara abantu bishyura amafaranga kandi bishobora gutwara abantu barenze batanu bicaye, uretse ibinyabiziga bya Leta bitwara abantu muri rusange, bishobora gusa guhagarara bishyiramo, cyangwa bikuramo abantu cyangwa ibintu ahantu harangwa n'ikimenyetso E, 19 bis kandi mu ntera zitarenga metero 10 ku mpande zombi z'icyo kimenyetso.

Igice 3. IBINYABIZIGA UMUTWE WA MBERE : UBURUMBARARE

Umutwe 1. UBURUMBARARE

Ingingo 57:

Uburumbarare bw'ikinyabiziga cyangwa ubw'ibinyabiziga bikururana n'ibirenze ku mubyimba wabyo hatabariwemo amatara yerekana icyerekezo n'indorerwamo zibonesha ibiturutse inyuma, ntibishobora kurenza izi ngero:

1. Ubugari bupimiwe mu butambike ubwo aribwo bwose: metero 2 na santimetero 65.

Ariko ubugari bwa romoruki ntiburenza

a) santimetero 75 iyo ikuruwe n'igare cyangwa velomoteri;

b) metero 1 na santimetero 25 iyo ikuruwe n'ipikipiki idafite akanyabiziga kometse ku ruhande;

c) ubugari bw'ikinyabiziga gikurura iyo ikuruwe n'ipikipiki ifite akanyabiziga kometse ku ruhande rwayo, cyangwa iyo ikuruwe n'ikinyamitende itatu cyangwa ine, gifite cyangwa kidafite moteri.

Byongeye kandi, ibinyabiziga bihinga, iyo biva aho biba bijya mu mirima cyangwa iyo bitahuka, kandi bikaba bitarengeje umuvuduko wa kilometero 20 mu isaha, bishobora kugeza ku bugari ntarengwa bwa metero

Ariko ibice by'inyuma bihindukizwa cyangwa bishobora gukurwaho nta ngorane, bigomba guhinwa cyangwa gukurwaho kugira ngo ubugari bugabanuke mu gihe bikigendera mu nzira nyabagendwa.

Uburenganzira buvugwa mu gika kibanziriza iki bukurikizwa ku mashini zikoreshwa n'abapatanye imilimo, iyo zivuye mu igaraji zijya aho imilimo ikorerwa, cyangwa iyo zivuye aho imilimo ikorerwa zimukiye ahandi, ariko ntizirenze umuvuduko wa kilometero 20 mu isaha.

2. Uburebure bw'ikinyabiziga cyangwa ubw'ibinyabiziga bikururana:

a) uburebure ntiburenza metero 7 ku kinyabiziga gifite:

- umutambiko umwe uhuza imipira;

- imitambiko ibiri ikurikiranye mu bugari bwayo, n'ukuvuga imitambiko yihindukiza kucyo ifungiyeho;

- imitambiko ibiri ifite ikiyihuza, kandi intera hagati yayo ntirenze metero 1 na santimetero 60, ni ukuvuga imitambiko ikoranye ariko hatabariwemo icyuma cyagenewe ibikurura.

b) uburebure ntiburenza metero 11 ku binyabiziga bifite imitambiko ibiri cyangwa irenga, hadashyizweho icyuma gituma zifata iyo ari ikinyabiziga gikuruwe n'ikindi cyangwa gikuruwe n'inyamaswa.

c) Uburebure bwa makuzungu ntiburenza metero 17 na santimetero 40;

d) Mu gihe umuhanda umeze neza, Minisitiri ushinze Gutwara Abantu n'Tbintu ashobora kwemerera ibigo bya Leta cyangwa ibindi bigenewe gutwara abantu, kuwunyuzamo ibinyabiziga byazo bifite uburebure butarenze metero 13-

e) Uburebure bw'ibinyabiziga bikururana, hashyizwemo ibituma zikururana, icya mbere kikaba gikururwa n'inyamaswa, ntiburenza metero 18.

3. Ubuhagarike bw'ikinyabiziga: metero 4 na santimetero 20.

4. Igice kirenga ku biziga:

- by'inyuma: metero 3 na santimetero 50;

- by'imbere: metero 2 na santimetero 70

- . Na none kandi, ku binyabiziga bifite imitambiko ibiri, hagati ya za agisi hakaba hasumba m 1 na santimetero 60, igice kirenga ku biziga by'inyuma ntigishobora kurenza

65/100 by'uburebure buri hagati y'ibiziga by'inyuma n'iby'imbere, naho ikirenga ku biziga by'imbere ntikirenza 55/100 by'ubwo burebure. Iyo ikinyabiziga gifite imitambiko irenga ibiri, muri yo ikaba ikurikiranye; uburebure buri hagati y'imipira y'inyuma n'iy'imbere n'uburebure bw'ibice birenga ku mipira, bupimwa bahereye hagati y'imitambiko iteganywe.

Ingingo 58:

Iminyururu n'ibindi byuma bifashisha bishobora kuvanwaho cyangwa binagana, hatabariwemo ibimenyetso byerekana ibyerekezo, bigomba gufungirwa ku kinyabiziga ku buryo igihe byizunguza bitarenga impande zihaze uburumbarare bw'ikinyabiziga. Ibyo byuma bifashisha ntibigomba gukururuka ku butaka, ibyo nyamara ntibubijwe ku mashini zihingira no ku byerekeye iminyururu, ku binyabiziga bitwaye ibintu bishobora gufata inkongi.

Ingingo 59:

Ku buryo budasanze kandi binyuranyije n'ibivugwa mu ngingo ya 57, Ministiri ushinze Gutwara Abantu n'ibintu cyangwa intumwa ye, ashobora igihe hari impamvu ikomeye cyane, kwemerera kugenda mu muhanda ibinyabiziga byakorewe imirimo yihariye kandi bifite uburumbarare burenga ubuteganyijwe ntarengwa.

Umutwe 2. IMIZIGO

Ingingo 60:

1. Imizigo ikinyabiziga cyikoreye igomba gupakirwa no gupangwa ku buryo idashobora:

- a) guteza abantu ibyago mu rugendo;
- b) kwangiza mu rugendo inzira nyabagendwa, impande zayo, ibiyubatsweho cyangwa umutungo uyikikije;
- c) kubuza umuyobozi kubona neza cyangwa kubangamira gufata ku muhanda cyangwa imiyoborere y'ikinyabiziga;
- d) gukingiriza amatara, uturebanyuma two hanze, ibimenyetso byerekana icyerekezo, utugarura-rumuri, nimero ziranga ikinyabiziga cyangwa ibimenyetso umuyobozi yerekanisha ukuboko.

Imizigo igomba gupangwa kandi iyo ari ngombwa ikazirika ku modoka ku buryo idashobora kugwa no gukururuka mu nzira nyabagendwa no kugusha ikinyabiziga. Ibintu byose bifashisha nk'iminyururu, amahema, n'ibindi bigenewe kuzirika imizigo cyangwa kuyirinda kwangirika, bigomba kuyizenguruka ku buryo budanangiye.

2. Umuyobozi w'ikinyabiziga agomba gukora uko ashoboye kugirango imizigo itagenda ibomborana ku buryo bukabije.

Ingingo 61:

Uburumbarare bw'ikinyabiziga gipakiye yaba imodoka, cyaba ikinyabiziga gikururwa n'inyamaswa cyangwa romoruki ikuruwe n'ibyo binyabiziga, hapimiwemo n'ibirenze ku mubyimba ntibushobora kurenga ingero zikurikira:

- 1. Ubugari bupimiwe mu butambike ubwo ari bwo bwose; metoro 2 na santimetero 50. Nyamara:

a) iyo imizigo igizwe n'ibinyampeke, ikawa, amakara, ipamba idatonoye, ibishara, ibyatsi, ibishami cyangwa ubwatsi bw'amatungo bidahambiriye uretse amapaki afunze, ubugari bwayo bushobora kugera kuri metero 2 na santimetero 75;

b) iyo imizigo igizwe n'ibimaze kuvugwa haruguru kandi ikaba ijyanwa mu karere katarenga kilometero uvuye aho yapakiriwe, ubugari bwayo bushobora kugera kuri metero 3 usibye mu nsisiro.

Mu biteganyijwe mu migemo a) na b) ibanza, nta nkingi n'imwe ikomeye ishobora gushyirwaho ku buryo igice cyayo icyo aricyo cyose cyarenga metero 1 na santimetero 25 uhareye ku murongo ugabanya ikinyabiziga mo kabiri mu burebure bwacyo.

2. Uburebure: hasagurirwe amategeko yerekeye gutwara ibintu birebire cyane, imizigo ntishobora gusumba ibinyabiziga cyangwa, cyaba ari ikinyabiziga gikuruwe n'inyamaswa, umutwe w'ibikururwa.

3. Ubuhagarike: metero 4, keretse iyo hari uruhushya rudasanze rutanzwe na Minisitiri ushinze Gutwara Abantu n'ibintu cyangwa rutanzwe n'Umukuru w'Intara iyo gutwara ibintu ku buryo budasanze bikorewe mu ifasi y' Intara imwe gusa.

Ingingo 62:

1. Iyo ikinyabiziga cyikoreye ibintu birebire bidashobora kugabanywa, icyo gibe imizigo ntishobora kurenza" metero 3 ku mpera y'inyuma y'ikinyabiziga.

2. Imitwaro miremire igomba guhambirana ku buryo budanangiye no kuzirikwa ku kinyabiziga kugirango igihe yicunda itarenga impande z'ikinyabiziga.

Ingingo 63:

Iyo imizigo isumba impera y'inyuma y'ikinyabiziga ho metero irenga, igice gihera cy'imizigo kigomba kugaragazwa:

- ku manywa: n'agatambaro gatukura gafite byibura santimetero 50 z'uruhande;

- iyo amatara y'ibinyabiziga agomba gucanwa: n'itara ritukura cyangwa akagarururumuri gatukura.

Ibimenyetso bikorehwa kugirango berekane impera y'inyuma y'imizigo ntibishobora gushyirwa ku buhagarike burenze metero 1 na santimetero 55 uhareye ku butaka.

Ingingo 64:

1. Ubugari bw'imizigo yikorewe n'amagare, na velomoteri kimwe na romoruki zikuruwe n'ibyo binyabiziga ntibushobora kurenga santimetero 75. 2. a) Ubugari bw'imizigo yikorewe n'amapikipiki adafite akanyabiziga ko kuruhande kimwe na romoruki zikururwa ry'ibyo binyabiziga, ntibushobora kurenga metero 1,25.

b) Ubugari bw'imizigo yikorewe n'ipikipiki ifite akanyabiziga ko ku ruhande kimwe n'ubw'iya romoruki ikuruwe na bene icyo kinyabiziga ntibushobora kurenza -santimetero 30 ku bugari bw'icyo kinyabiziga kidapakiye.

3. Ubugari bw'imizigo yikorewe n'ibinyamitende itatu n'ubw'iyikorewe n'ibinyamitende ine bifite cyangwa

bidafite moteri kimwe n'ubw'iyikorewe na romoruki zikuruwe n'ibyo binyabiziga ntibushobora kurenza santimetero 30 ku bugari bw'icyo kinyabiziga kidapakiye, kandi ubugari ntarengwa budakuka bukabura metero 2 na santimetero 50.

Ingingo 65:

1. Ubugari bw'imizigo yikorewe n'amagare, na velomoteri kimwe na romoruki zikuruwe n'ibyo binyabiziga ntibushobora kurenga santimetero 75.
2. a) Ubugari bw'imizigo yikorewe n'amapikipiki adafite akanyabiziga ko kuruhande kimwe na romoruki zikururwa ry'ibyo binyabiziga, ntibushobora kurenga metero 1,25.
b) Ubugari bw'imizigo yikorewe n'ipikipiki ifite akanyabiziga ko ku ruhande kimwe n'ubw'iya romuruki ikuruwe na bene icyo kinyabiziga ntibushobora kurenza -santimetero 30 ku bugari bw'icyo kinyabiziga kidapakiye.
3. Ubugari bw'imizigo yikorewe n'ibinyamitende itatu n'ubw'iyikorewe n'ibinyamitende ine bifite cyangwa bidafite moteri kimwe n'ubw'iyikorewe na romoruki zikuruwe n'ibyo binyabiziga ntibushobora kurenza santimetero 30 ku bugari bw'icyo kinyabiziga kidapakiye, kandi ubugari ntarengwa budakuka bukaba metero 2 na santimetero 50.

Ingingo 66:

1. Umuyobozi w'ikinyabiziga cyangwa uw'ikinyamitende itatu cyangwa uw'ikinyamitende ine bifite moteri agomba kugira aho yicara hafite ubugari butari muni ya santimetero 55.
Umuyobozi wa kimwe mu binyabiziga bivugwa mu gika kibanziriza iki ntashobora kwemerera abandi bantu kwicarana nawe mu gihe umwe muri bo adafite umwanya wo kwicaramo ungana nibura na santimetero 40 z'ubugari.
2. Birabujijwe gutwara ku ntebe z'ikinyabiziga umubare w'abantu urenze umubare wateganyijwe n'uwayikoze.
3. Birabujijwe gutwara ku ntebe y'imbere y'imodoka abana badafite imyaka cumi n'ibiri iyo harimo indi myanya.
4. Umuyobozi wa kimwe mu binyabiziga byavuzwe ku gika cya mbere abujijwe gutwara abantu mu bice y'inyuma bya karisoro y'icyo kinyabiziga cyangwa ya romoruki yacyo.
5. Igare, velomoteri, n'ipikipiki ntibushobora gutwara abantu barenze umubare w'intebe ziteganyijwe.
6. Ibivugwa mu gika cya 5, bikurikizwa ku byerekeye ibinyamitende itatu, n'ibinyamitende ine bifite moteri cyangwa bitayifite, bidafite akazu k'umuyobozi.
b) Nyamara, umuyobozi ashobora kwemerera umuntu umwe cyangwa benshi gufata umwanya mu gice cy'ikinyabiziga kigenewe gutwara ibintu, iyo abona bishoboka kandi bidashobora kuvamo impamvu yatera impanuka. Agomba kuba yizeye ko ahantu hose umutekano w'abo atwaye udashobora guhungabana.
c) Ibimaze kubuzwa ntibikurikizwa n'abayobozi b'ibinyabiziga bikorehwa mu mirimo ya gisirikare cyangwa ya gipolisi; cyangwa mu mirimo y'abarwanya inkongi cyangwa y'abasukura imihanda.

Umutwe 3. UBUREMERE NTARENGWA BWEMEWE**Ingingo 67:**

1. A) Mu mijyi kimwe no ku mihanda y'igihugu igenwa na Minisitiri ushinze Gutwara Abantu n'ibintu, uburemere ntarengwa ku kinyabiziga cyangwa ku binyabiziga bikururana bushyizweho ku buryo bukurikira:
* ubwikorezi ntarengwa bwemewe kuri buri mutambiko ufungwaho ibiziga bine buzaba:
- kuri buri mutambiko usanzwe: toni 10;

- ku mitambiko ibiri ikurikiranye: toni 16;
- ku mitambiko itatu: toni 24; ikamyo iyo ariyo yose ntishobora na rimwe gutwara ibintu birenze toni 53. .

B) Ku yindi mihanda yagenwe na Minisitiri ushinzwe Gutwara Abantu n'Ibintu, uburemere ntarengwa bwemewe kuri buri kinyabiziga cyangwa ku binyabiziga bikururana bishyizweho ku buryo bukurikira:

- a) Ibinyabiziga bifite imitambiko 2 harimo makuzungu : toni 12;
- b) Ibinyabiziga bifite imitambiko itatu cyangwa irenga, hatarimo makuzungu : toni 16;
- c) ibinyabiziga bifatanye:

- bifite imitambiko itatu: toni 12;
- bifite imitambiko ine cyangwa irenga: toni 16

d) ibinyabiziga bikururana : toni 20

C) Mu mijyi kimwe no mu mihanda yavuzwe ku migemo A na B, y'iki gika, uburemere ntarengwa bwemewe kuri buri ruziga bushyizweho ku buryo bukurikira:

- inziga zihagwa: toni 3,20, ariko ingufu z'umwuka ntizirenga kg 5,5 kuri cm²;
- inziga zifite umwuka ariko zidahagwa: toni 15 DL; Inziga zidahagwa, izikoze mu byuma cyangwa izikoze muri kawucu gusa: toni 8 DL ariko, buri ruziga rukoze mu cyuma kandi rudahagwa ntirurenga kg 250.

Mu ndemeko zavuzwe haruguru D ivuga, muri metero, umurambararo w'inyuma y'umupira bapimiye mu butambike; naho L ikavuga ubugari busumba ubundi bwose bupimiye mu mugongo w'uruziga.

D) Uburemere ntarengwa kuri buri mutambiko bushyizweho ku buryo bukurikira:

a) mu mijyi kimwe no mu mihanda ivugwa ku mugemo A w'iki gika: toni 10 ariko umutambiko urushije iyindi kuremererwa mu mitambiko ikurikiranye ntube warena toni 8;

b) ku mihanda ivugwa ku mugemo B: toni 5,5 ariko umutambiko urushije iyindi kuremererwa mu mitambiko ikurikiranye ntube warena toni 4.

Ubwo buremere bugizwe n'igiteranyo cy'ubwikorezi bwose inziga zose zitsindagira k'ubutaka ishingiro ryabwo rikaba hagati y'ubuhagarike n'ubugari bukwirakwijwe mu bugari bwose bw'ikinyabiziga.

E) Ku yindi mihanda, uretse iyavuzwe ku migemo A na B, y'iki gika, uburemere ntarengwa bwemewe bw'ikinyabiziga cyangwa ubw'ibinyabiziga bikururana ntibushobora kurenza toni 7 kandi buri mutambiko ntushobora kurenza toni 3,5.

F) Uretse bibonewe uruhusa, ubundi birabujijwe gushyira no gukomeza kugendesha imodoka cyangwa remoruki mu nzira nyabagendwa byikoreye toni zirenga 5 ubariye kuri buri ntera ya metero imwe iri hagati y'imitambiko ibiri ihera cyangwa iyo uburemere bw'ibykorewe burenze uburemere ntarengwa bwemewe n'ikarita iranga ikinyabiziga.

2. Ibivugwa mu gika cya mbere ntibikurikizwa iyo ari imashini zikoreshwa mu kubaka imihanda ;

3. Ku byerekeye ibinyabiziga bigendeshwa n'ingufu za gazi n'ibigendeshwa n'ibyuma bibika amashanyarazi, uburemere bwavuzwe haruguru bwongerwaho hatarengejwe toni imwe, uburemere bw'ibyuma, uburemere bwa gazi, mu gihe ikinyabiziga kigenda, ibyuma bitwara iyo gazi cyangwa ibibitse amashanyarazi n'ibindi biyana n'ibyo

bikoresho ;

, I 4. Uburemere ntarengwa bw'ikinyabiziga n'ubwikorezi ntarengwa ku mitambiko itsindagiye ku butaka ntibushobora kurenga uburemere ikinyabiziga n'imitambiko yacyo byemerewe.

5. Ministiri ushinzwe Gutwara Abantu n'Ibintu ashobora:

a) gutanga uruhusa, ku bice bimwe avuze by'inziya nyabagendwa kugirango binyurwemo ku buryo busanzwe n'ibinyabiziga bifite uburemere burenze ubwavuzwe haruguru;

b) gutanga uruhusa akoresheje ibyemezo byihariye kandi by'igihe gito kugirango ibyo binyabiziga binyure mu mayira agenwe.

Iyo bibaye ngombwa, ateganya ibigomba kuzuzwa kugirango ibyo binyabiziga bishobore kunyura muri ayo mayira.

Ingingo 68:

1. Minisitiri ushinzwe Gutwara Abantu n'Ibintu ashobora kugabanya uburemere ntarengwa buteganyijwe mu ngingo ya 67, ku bice bimwe na bimwe by'umuhanda kimwe no ku mateme, ibyombo cyangwa ku bindi byubatswe ku nzira nyabagendwa ku buryo bukwiranye n'icyatuma ayo mayira n'ibyo byubatswe bitakwangirika no kurinda ibyago abagenda mu mihanda.

Igitanyo cy'uburemere bwemewe kizagaragazwa ku cyapa n° C,7 gishinze ku mpera z'imihanda cyangwa hafi y'ibyo byubatswe ku muhanda byavuzwe haruguru.

2. Iyo uburemere ntarengwa bwemewe bwashyizweho hakurikijwe ibivugwa mu ngingo ya 67 burenga toni eshatu, kimwe no ku modoka zose cyangwa romoruki byagenewe gutwara ibintu, ibiranga uburemere bw'ibinyabiziga n'ubw'ibyo bishobora kwikorera byandikishwa na nyirabyo mu rubavu rwabyo rw'iburyo ahagana imbere.

Ibyo bishobora kwandikishwa irangi kuri karisori cyangwa bikandikwa ku cyapa gifashe neza kuri karisori.

Inyuguti n'imibare bigomba kugira byibura santimetero 5 z'ubuhagarike n'umubyimba wabyo ukagira byibura milimetero 5.

Ibyanditseho n'uko byandikwa bigomba guhuza n'ibiri ku rugero rwa 2 rw'ingereka ya 8 y'iri teka.

Ibimaze kuvugwa ntibikurikizwa:

a) ku mashini zihinga;

b) ku mashini zihariye zikoresheya n'abapataniye imirimo;

c) kuri za otobisi no ku zindi modoka nini zitwara abantu;

d) ku byo ibinyabiziga bitwaye inyuma no ku tunyabiziga dukurura nk'utwikorera ingeri z'ibiti.

3. Iyo ubifitiye ububasha ashidikanya k'uburemere bukubiye hamwe bw'ikinyabiziga, umuyobozi ategatswe kumuba hafi no kumufasha mubyo agomba kugenzura bitagombye kurenza amasaha abiri.

Umutwe 4. IBINYABIZIGA BIKURURANA

Ingingo 69:

Ibivugwa mu ngingo ya 57 kugeza kuya 68 z'iri teka bikurikizwa kuri buri kinyabiziga cyose kiri mu bikururana.

Ingingo 70:

1. Ikinyabiziga kigendeshwa na moteri n'ikinyabiziga gikururwa n'inyamaswa ntibishobora gukurura ibinyabiziga birenze bibiri Nyamara ipikipiki ifite akanyabiziga ku ruhande ntishobora gukurura romoruki n'imwe.
 2. Gushyira mu muhanda ku buryo budasanze ibinyabiziga bikururana birenze bitatu bigomba gutangirwa uruhusa na Minisitiri ushinze Gutwara Abantu n'ibintu.
 3. Ibivugwa mu gika cya 1 n'icya 2 by'iyi ngingo ntibikurikizwa ku binyabiziga bikururana bivugwa hepfo, bipfa kuba bigenda bitarengeje umuvuduko wa kilometero 20 mu isaha.
 - a) ibinyabiziga bikururana bikoreshwa mw'imulika-gulishwa cyangwa na ba mukerarugendo iyo bivuye aho bibikwa bigiye gukora cyangwa se iyo byimutse aho byakoraga bijya gukora ahandi.
 - b) ibinyabiziga bikururana bikoreshwa n'abapataniye imirimo iyo bivuye aho bibikwa bigiye aho bikora cyangwa iyo bitahutse cyangwa se iyo byimutse aho byakoraga bijya gukora ahandi.
 - c) imashini zihinga zikururana iyo zigenda urugendo rutarenze kilometero 25 rw'aho zikorera.
 - d) ibinyabiziga bikururana bitwaye ibyamamazwa.
- Igiteranyo cy'uburebure bw'ibyo binyabiziga bikururana ntigishobora kurenga metero 25.

Ingingo 71:

1. Iyo hagati y'uruhande rw'imbere rwa romoruki n'uruhande rw'inyuma rw'ikinyabiziga kiyikurura hari umwanya urenze metero 3, ikibizirikanyije kigomba kugaragazwa:

- ku manywa: n'agatambaro gatukura gafite byibura santimetero 50 z'uruhande;
 - iyo amatara y'ikinyabiziga agomba gucanwa: n'ikimenyetso cy'itara risa n'icunga rihishije rigaragara mu mbavu keretse iyo ikibizirikanyije kimuritswe.
2. Ibizirikisho by'iminyururu cyangwa by'insinga kimwe n'ibindi bizirikisho by'ingoboka bikoreshwa gusa igihe ; nta kundi umuntu yabigenza kandi nta kindi bigiriwe, uretse gusa kugira ngo ikinyabiziga kigere aho kigomba gukorerwa kandi nturenze na rimwe kilometero 20 mu isaha.

Ibyo bizirikisho bigomba kugaragazwa n'icyapa cyera cya mpande enye zingana gifite nibura santimetero 30 kuri kuri buri ruhande, kiri ku ruhande rw'imbere rw'ikinyabiziga gikurura.
 3. Hanyuranyijwe n'ibivugwa mu gika cya 2 cy'iyi ngingo, iyo uburemere ntarengwa bwemewe bwa romoruki burenga ibiro 750 cyangwa icya kabiri cy'uburemere bw'ikinyabiziga gikurura kirimo ubusa kandi ibyuma bya feri bitifunga ubwabyo mu gihe ikizirikisho cy'ingenzi gicitse, iyo romoruki igomba kuba ifite n'ikizirikisho cyo gutabara gikozwe mu minyururu cyangwa mu nsinga, cyiyongera ku kizirikisho cy'ingenzi gituma ikurura kandi iyobora romoruki; bigatuma igihe ibyangombwa by'ingenzi biramutse bidakoze neza; bikurura iyo romoruki kandi bikayibuza no guta icyerekezo, bikanatuma icyo bifasheho kidakora hasi.

Igihe ibyangombwa by'ingenzi bicitse ikizirikisho cyo gutabara gikoreshwa gusa mu bihe biteganyijwe mu gika cya 2 cy'iyi ngingo.

Umutwe 5. UBURYO BUDASANZWE BWO GUTWARA IBINTU

Ingingo 72:

1. Gutwara ibintu bidashobora kugabanywamo ibice no kugendesha ibinyabiziga cyangwa za romoruki zikoreshwa mu gutwara ibyo bintu kandi ibiziranga bikaba birengeje ingero ntarengwa zashyizweho n'iri teka, bitangirwa uruhushya na Minisitiri ushinze Gutwara Abantu n'ibintu amaze kuvuga ibyangombwa bigomba kuzuzwa kugirango rutangwe.
 2. Iyo uruhushya rwasabwe rwerekeye ubugari, ubuhagarike cyangwa uburebure, rugomba kwandikwaho itariki, kandi byaba ngombwa, rukandikwaho amasaha ibyo bintu bizatwarirwaho kimwe n'aho bizanyuzwa.
 3. Uruhushya rwandikwaho ibigomba gukorwa kugirango baborohereze urugendo kandi bagende ntacyo bikanga mu nzira no kugirango hatagira icyangiza inzira nyabagendwa, impande zayo, ibiyubatsweho, n'umutungo uyikikije.
 4. Uwasabye uruhushya aruhabwa gusa ari uko yemeye gutanga indishyi n'amafaranga ashobora gukomoka kuri ubwo bwikorezi no gutanga bibaye ngombwa, amafaranga y'ingwate yemejwe muri urwo ruhushya.
 5. Uruhushya rushobora guhabwa urusabye ku rugendo rumwe gusa, keretse igihe ibitwawe bifitiye koko rubanda akamaro.
 6. Gutwara, mu binyabiziga bigendera ku mihanda, rukururana, za gari ya moshi zirimo ubusa cyangwa zipakiye, bishobora kwakirwa impushya zemewe ku rugendo rumwe gusa cyangwa ku ngendo nyinshi.
- Ibivugwa mu gika cya mbere n'icya kane bikurikizwa kuri ubwo buryo bwo gutwara ibintu.

Ingingo 73:

Iyo umuyobozi yaciye ku bivugwa ku ingingo ya 67 cyangwa ku byateganijwe kugirango uruhushya rutangwe hakurikijwe ingingo 72, agomba gupakurura, kuzitura cyangwa guhagarika ikinyabiziga cye hafi hatuwe, bitagenze bityo ikinyabiziga kizahagarikwa.

Umutwe 6. IBYEREKEYE FERI

Ingingo 74:

1. Mu kubahiriza ibivugwa muri uyu mutwe:

- a) Ijambo "ibiziga by'umutambiko" bivuga ibiziga biteganye cyangwa bijya gusa n'ibiteganye, uherye ku murongo ugabanya ikinyabiziga mu kabiri mu burebure, n'iyi ibyo biziga byaba bidafungiyemo ku mutambiko umwe, ubwo umutambiko ukurikiyeho ugafatwa nkaho ari imitambiko ibiri.
 - b) Ijambo "feri y'urugendo" bivuga uburyo busanzwe bukoreshwa kugirango ikinyabiziga kigende buhoro cyangwa gihagarare.
 - c) Ijambo "feri yo guhagarara umwanya munini" rivuga uburyo bukoreshwa kugirango ikinyabiziga kigume hamwe mu gihe umuyobozi atakirimo, yaba ari romoruki, ngo igume hamwe mu gihe itagifatanye n'ikinyabiziga;
 - d) Ijambo "feri yo gutabara" rivuga uburyo bukoreshwa kugirango ikinyabiziga kigende buhoro kandi gihagarare, igihe feri idakora neza.
 - e) Ijambo "romoruki" rikoreshwa gusa kuri za romoruki zigenewe gukururwa n'imodoka.
2. Ikinyabiziga cyose cyangwa ibinyabiziga bikururana bigomba kugira uburyo bwo gufunga feri butunganye kugirango hagenzurwe imigendekere y'ikinyabiziga, kugihagarika ku buryo bwihuse kandi bwizerwa no kubuza kwikaraga kw'ikiziga n'ukw'ibiziga bifunze, uko imodoka yaba yikoreye kose cyangwa igeze ahacuramye cyangwa ahaterera.
3. Feri y'imodoka a) Buri modoka igomba kugira uburyo bwo gufunga feri bushobora gukoreshwa n'umuyobozi ku buryo bworoshye kandi butuma imiyoborere y'imodoka

idahungabana kandi bugizwe na:

1° feri y'urugendo ituma imodoka igenda buhoro kandi igahagarara ku buryo bwizewe bubangutse kandi nyabwo, n'uko imodoka yaba yikoreye kose, yaba igeze ahacuramye cyangwa ahaterera;

2° feri yo guhagarara umwanya munini ituma imodoka iguma aho iri uko yaba yikoreye kose ku muzamuko cyangwa ku gacuri bya 16%, imyanya ya feri igomba gufata igakomeza kwegera kuburyo bw'ibyuma niyo umuyobozi yaba atarimo.

3° feri yo gutabara ituma imodoka igenda buhoro kandi igahagarara, uko yaba yikoreye kose, ku burebure bugereranije n'ubwo feri y'urugendo yaba idakora neza.

b) Uburyo bwo gufunga feri bushobora kugira ibice buhuriyeho mu gihe byibura bibiri mu biyikoresha bitandukanye.

c) feri y'urugendo igomba gufunga ibiziga byose by'imodoka, nyamara ku modoka zifite imitambiko irenga ibiri, ibiziga by'umutambiko umwe bishobora kudafungwa.

d) feri y'urugendo na feri yo guhagarara umwanya munini zigomba gufunga byibura umupira umwe wa buri ruhande rwo hirya no hino y'umurongo ugabanya imodoka mo kabiri mu burebure bwayo.

e) feri y'urugendo na feri yo guhagarara umwanya munini zigomba gufunga imyanya yose ifashe ku biziga ku buryo buhoraho hakoreshejwe ibyuma bikomeye bihagije.

f) Nta mwanya n'umwe feri ifungiraho ushobora kurekurana n'ibiziga keretse:

1° Iyo kurekurana ari iby'akanya gato, nk'igihe cyo guhinduranya vitesi;

2° Iyo bireba feri yo guhagarara umwanya munini, ubwo kurekurana ntibishoboka bidakozwe n'umuyobozi.

3° Iyo kurekurana bireba feri y'urugendo cyangwa feri yo gutabara, gufata feri bishobora no gukorwa ku buryo nyabwo bwavuzwe mu gika a) kibanza. 4. Feri ya za romoruki a) Buri romoruki uretse intoya, igomba kugira uburyo bwo gufata feri bukurikira:

1° feri y'urugendo ituma ikinyabiziga kigenda buhoro cyangwa gihagarara ku buryo bwemewe, bwihuse kandi nyabwo uko cyaba cyikoreye kose cyangwa kigeze ahacuramye cyangwa ahaterera.

2° feri yo guhagarara umwanya munini ituma romoruki iguma aho iri uko yaba yikoreye kose ku muzamuko cyangwa ku gacuri bya 16%, imyanya ya feri igomba gufata igakomeza kwegera ku buryo bw'ibyuma. Ibi ntibikurikizwa kuri za romoruki zidashobora kurekurana n'ikizikurura hadakoreshejwe ibikoresho, hapfa kuba hubahirijwe ibyerekeye feri yo guhagarara umwanya munini ku binyabiziga byose.

b) Ibyo byose bituma feri y'urugendo na feri yo guhagarara umwanya munini bishobora kugira ibice bihuriyeho.

c) feri y'urugendo igomba gufunga ibiziga bya romoruki.

d) feri y'urugendo igomba kuba ishobora gukoreshwa n'igitegeka feri y'urugendo y'ikinyabiziga gikurura.

Nyamara, iyo uburemere ntarengwa bwemewe bwa romoruki butarenga kilogarama 3.500, feri y'urugendo ishobora gukorwa ku buryo ikoreshwa gusa n'uburemere, ni ukuvuga ukwegera kwonyine kwa romoruki n'ikinyabiziga gikurura.

e) feri y'urugendo na feri yo guhagarara umwanya munini zigomba gufunga imyanya yose ifashe ku biziga ku buryo buhoraho hakoreshejwe ibyuma bikomeye bihagije.

e) Uburyo bwo gufunga feri bugomba kuba buteye kuburyo romoruki yihagarika igihe ikiyiziritse gicitse bigenda.

Nyamara ibi ntibikurikizwa kuri za romoruki zifite umutambiko umwe cyangwa iz'imitambiko ibiri itandukanijwe n'umwanya utageze kuri metero, uburemere ntarengwa bwazo bwemewe bupfa gusa kuba butarenza kilogarana 1.500 keretse makuzungu

n'ubwo kandi. habariwemo ibyuma kizizirikanya, zaba zifite ikindi cyuma cya kabiri kizifatanya nk'uko biteganywa ku ngingo ya 7 1,3, y'iri teka.

5. Ibyerekeye feri y'urukomatane rw'ibinyabiziga bikururana

Uretse ibivugwa ku gika cya 3 n'icya 4 by'iyi ngingo byerekeye imodoka na romoruki iri yonyine ibinyabiziga bikomatanye bigomba na none gukurikiza aya mategeko:

a) Ibyuma byose bituma feri ifata bifunze kuri buri kinyabiziga, bigomba kuba bikora kimwe.

b) Uko feri y'urugendo ikora kugomba kuba kumwe kandi ku gihe kimwe kuri buri kinyabiziga kigize ibikomatanze

c) uburemere ntarengwa bwemewe bwa romoruki idatite feri y'urugendo ntibushobora kurenga 1/2 cy'uburemere bw' ikinyabiziga gikurura n'ubw'umuyobozi.

6. Ibyerekeye feri ya velomoteri amapikipiki n'ibinyamitende 3 cyangwa 4.

Buri Velomoteri, ipikipiki, ikinyamitende itatu cyang ine, bigomba kugira ibyuma byo guhagarara kimwe nibura gifunga inziga z'inyuma indi ikaba ifunga byibura inziga z'imbere.

Iyo icyo kinyabiziga gifite akanyabiziga ko kuruhande, uruziga rwako ntirugomba feri. Uburyo bwo gufunga feri bugomba gutunga ikinyabiziga kigenda buhoro cyangwa guhagarara ku buryo bwizewe, bwihuse kandi nyabwo uko cyaba cyikoreye kose cyangwa kigeze ahacuranye cyangwa ahaterera.

7. Ibivugwa kuva ku gika cya mbere kugeza ku cya 6 by'iyi ngingo ntibikurikizwa:

a) ku tumodoka tw'abana n'utw'ibimuga cyangwa tw'abarwayi tugendeshwa n'undi muntu;

b) ku utunyabiziga dusunikwa twikorera uburemere butarenga kilogarama 150;

c) kuri za romoruki zifite umutambiko umwe gusa n'uburemere ntarengwa bwemewe butarenga kilogarama 500, nabwo butarenga 1/2 cy'uburemere bwite bw'ikinyabiziga gikurura;

d) ku binyabiziga bikururwa n'inyamaswa bifite ibiziga bibiri byikoreye uburemere butarenze kilogarama 1.000 kandi ikibizirikanije kikaba giteye ku buryo ikinyabiziga gihagararira icyarimwe n'inyamaswa igikurura.

Umutwe 7. AMATARA Y'IKINYABIZIGA N'IBIMENYETSO BIRANGA IBINYABIZIGA N'INYAMASWA.

Icyiciro 1. Amategeko rusange

Ingingo 75:

1. Amatara ya buri kinyabiziga agomba kuba ateye ku buryo nta tara na rimwe cyangwa akagarururumuri bitukura byaboneka ku ruhande rw'imbere rw'ikinyabiziga kandi nta tara cyangwa akagarururumuri byera cyangwa by'umuhondo byagaragara mu ruhande rw'inyuma rw'ikinyabiziga uretse itara ryo gusubira inyuma n'aranga icyerekezo.

2. Amatara n'utugarura rumuri bigomba gushyirwaho ku buryo nta gice na kimwe cy'ikinyabiziga cyangwa cy'imizigo cyabangamira ibonesha ryabyo.

3. Ikinyabiziga ntigishobora kugira amatara arenze abiri y'ubwoko bumwe kereka ku byerekeye itara ndanga mubyimba cyangwa itara ndangaburumbarare n'itara ryerekana icyerekezo.

4. Iyo ikinyabiziga gifite amatara abiri cyangwa menshi y'ubwoko bumwe, ayo matara agomba kugira ibara rimwe n'ingufu zingana; kandi akagomba gushyirwaho ku buryo buteganywe uhareye ku murongo ugabanywa ikinyabiziga mu kabiri mu burebure bwacyo. Ibimaze kuvugwa ntibikurikizwa ku byerekeye itara ribonesha icyapa kiranga numero

y'ikinyabiziga inyuma.

5. Utugarurumuri turi ku ruhande rw'imbere rw'ikinyabiziga tugomba gusa n'umweru, utw'inyuma tugasa n'umutuku, naho utwo mu mbavu tugasa n'umuhondo cyangwa icunga rihishije.

6. Amatara menshi y'ubwoko budahuje kimwe n'amatara n'utugarurumuli bishobora gushyirwa ahantu hamwe cyangwa mu kintu kimwe amurikiramo, buri tara na buri kagarurumuri bipfa kuba bikurikije amategeko abyerekeye kandi ku buryo budashobora kujijisha.

7. Nta tara na rimwe cyangwa akagarurumuri bishobora kuba bifunze ku buryo igice cyabyo cyo hasi cyane kimurika kitaba kiri hasi ya santimetero 40 kuva ku butaka, igihe ikinyabiziga kidapakiye. Ibimaze kuvugwa ntibikurikizwa ku matara kamenabihu no kw'itara ryo gusubira inyuma.

8. Gushyira amatara ku kinyabiziga kimwe cyangwa ku binyabiziga bikomatanye bigomba gukorwa ku buryo:

1° Amatara maremare, amatara magufi, amatara kamenabihu, amatara ndanga mbere, n'itara ribonesha icyapa kiranga ikinyabiziga ashobora gukoreshwa gusa mu gihe amatara ndanga ari ku mpera y'ikinyabiziga cya nyuma mu bikomatanye nayo acanye;

2° Amatara ndangambere yakira rimwe buri gihe n'amagufi n'amatara kamenabihu y'imbere

Nyamara, ibivugwa ku gika cya mbere ntibitegetswe ku matara maremare cyangwa magufi, iyo akoreshejwe bashaka kwerekana ibimenyetso bimurika bivugwa mu ngingo ya 47 y'iri teka.

Ingingo 76:

1. a) Ibinyabiziga, hakurikijwe urwego rwabyo, bigomba kuba bifite buri gihe amatara n'utugarurumuri bikurikira:

(rebaUumugereka wa VII ugararagaza imbonerahamwe y'amatara)

IBYITONDERWA

(1). Amatara maremare n'amagufi ashobora gushyirwa mu kirahure kimwe kimurika imbere y'imodoka urumuri rwera cyangwa rw'umuhondo rudahuma amaso.

(2). Itara ryo guhagarara rishyirwaho gusa iyo ingufu za moteri zirengeje santimetero kibe 125.

(3). Itara ndanga nyuma rigomba gushyirwa ahagereye inguni y'ibumoso y'ikinyabiziga.

(4). Itara rigufi rishobora gushyirwa cyangwa kudashyirwa ku binyabiziga bifite moteri y'ingufu zitarenga santimetero kibe 50.

(5). Amatara maremare n'ayo kubisikana ategetswe gukoreshwa gusa iyo urnuvuduko w'ikinyabiziga kidapakiye kandi kigeze ahategamye ushobora kurenga kilometero 20 mu isaha.

(6). Ibinyamitende itatu bifite moteri bigomba kugira amatara abiri ndanga mbere n'amatara abiri ndanga nyuma yerekana ko ikinyabiziga gihagaze n'utugarurumuri tubiri inyuma, iyo hakurikijwe ubugari bwabyo, ibitegekwa mu ngingo ya 77-3 bidashobora kubahirizwa hakoreshejwe itara rimwe gusa.

(7). Itara ribonesha icyapa kiranga numero z'ibinyabiziga ritegetswe gukoreshwa gusa iyo ikinyabiziga kigomba kugira bene icyo cyapa.

(8). 1. Za romoruki zigomba na none kugira inyuma, amatara yateganirijwe ibinyabiziga bikurura, iyo imbogamizi itewe nazo ituma amatara yazo atabona neza.

a) Ibinyabiziga ndakumirwa bigomba kugira itara ry'ubururu rimyatsa riboneka mu

mpande zose.

b) Ibinyabiziga bifite ubugari burenga metero 2 na santimetero 10 bigoinba kugira amatara ndanga-burumbarare.

c) Imodoka zose uretse izagenewe gutwara abantu kandi zifite imyanya umunani yicarwamo hatabariwemo intebe y'umuyobozi kimwe na romoruki zikururwa n'izo modoka zigomba kugira ibyapa bifite imirongo inyuranyemo itukura n'iyera ku buryo ku mpande zombi zigira inyuguti ya V icuramyeye nkuko bigaragara ku rugero ruri ku ngereka ya 9 y'iri teka.

Buri cyapa cyujuje ibimenyetso bivuzwe haruguru, kigomba mbere yo gutandikwa, kwemerwa na Minisitiri ushinze Gutwara abantu n'ibintu no gutumanaho.

2. Uretse amatara n'utugarururumuri bitegetswe mu gika cya mbere cy'iyi ngingo, hashobora gukoreshwa andi matara cyangwa utugarururumuri hakurikijwe izi ngingo:

a) Ibinyabiziga bishobora gushyirwaho amatara amurika kure cyane, amatara kamena-bihu amatara yo gusubira inyuma, n'itara rishakisha rifite ibara ryera cyangwa umuhondo.

b) Akagarururumuri gashobora gushyirwa kuri buri tara ndanga. Akagarururumuri kamwe cyagwa tubiri dushobora gushyirwa ku mpande z'ikinyabiziga cyangwa kubyo cyikoreye.

c) Ibinyabiziga bikoreshwa butagisi, bitegerereza abantu mu nzira nyabagendwa, bishobora gushyirwaho amatara, yerekana icyo bikora, n'imbere itara ry'icyatsi ryerekana ko ikinyabiziga kidakodeshejwe. Imodoka zigishirizwaho nazo zishobora gushyirwaho itara ryerekana icyo zikoreshwa.

d) Ibinyabiziga bigenewe imirimo ifitiye rubanda nyamwinshi akamaro cyangwa za otobisi bishobora gushyirwaho amatara yera agenewe kumurika ibyanditswe byerekana inzira bikurikira n'aho bijya.

Iyo ayo matara ari inyuma h'ikinyabiziga, ntashobora kohereza urumuri inyuma.

e) Ibinyabiziga bifite ubugari butarenga metero ebyili na santimetero icumi bishobora gushyirwaho amatara ndanga burumbarare.

f) Ikiranga imbere h'ikinyabiziga gashobora kongerwaho itara ryera cyangwa ry'umuhondo riri imbere, rireba inyuma kandi rimurikira uruhande rw'imbere rw'ikinyabiziga. Iryo tara ntirishobora kubera imbogamizi umuyobozi w'ikinyabiziga riteyeho cyangwa abandi bayobozi.

g) Buri modoka cyangwa buri romoruki ikuruwe n'iyi modoka bishobora kugira itara risa n'icyatsi kibisi bituma umuyobozi yerekana ko yabonye ikimenyetso cy'uwitegura kumunyuraho. Iryo tara rigomba gushyirwa inyuma kandi hafi y'impera y'ibumoso bw'ikinyabiziga.

h) Ibinyabiziga bihinga n'ibikoresho byabigenewe bikoreshwa n'abapataniye imirimo ntibigomba gushyirwaho amatara yateganijwe ku gika cya mbere cy'iyi ngingo iyo bitagenda hagati yuko izuba riranga n'iyi rirashe.

i) Za otobisi zigenewe gutwara abanyeshuri zishobora gushyirwaho amatara abiri asa n'icunga rihishije amyatsa, rimwe riri imbere irindi riri inyuma kugirango zerekane ko zihagaze no kwerekana ko bagomba kwitonda. Ayo matara agomba kumurika muri metero 100 muri buri ruhande rw'aho zihagarara.

Icyiciro 2. Amategeko yihariye

Ingingo 77:

1. Amatara ndanga yera cyangwa y'umuhondo ari imbere y'ikinyabiziga n'amatara

ndanga atukura ari inyuma y'ikinyabiziga agomba ariko kuba adahumishije cyangwa ngo atere imbogamizi abandi bayobozi, kandi agaragara nijoro igihe ijuru rikeye, muri metero 300 nibura, uherye imbere n'inyuma h'ikinyabiziga.

Nyamara, ku byerekeye amatara y'inyuma y'ibinyamitende na velomoteri, iyo ntera iba gusa metero 100.

2. Utugarurumuri tugomba, n'ijoro, igihe ijuru rikeye, kubonwa n'umuyobozi w'ikinyabiziga kiri muri metero 1 iyo tumuritswe n'amatera y'urugendo y'icyo kinyabiziga.

Utugarurumuri turi inyuma ha za romoruki tugomba gusa n'igishushanyo cya mpande eshatu zingana zifite kuva kuri santimetero 15 kugeza kuri 20 kandi rimwe mu masonga yayo rireba hejuru, uruhande ruteganye naryo rukaba rutambitse.

Romoruki zifite ubugari ntarengwa bwa santimetero 80 zishobora gushyirwaho akagarurumuri kamwe gusa, iyo zikuruwe n'ipikipiki idafite akanyabiziga ko ku ruhande. Utugarurumuri turi ku kindi kinyabiziga kitari romoruki ntidushobora gusa n'igishushanyo cya mpande eshatu.

3. Umuguno w'inyuma w'igice kimurika cy'amatera mato ndanga mbere na ndanga nyuma kimwe n'icy'utugarurumuri tw'imbere n'utw'inyuma, igomba kuba ahatarenga santimetero 40 ku mpande z'ubugari ntarengwa bw'ikinyabiziga.

4. Ahari hejuru cyane y'ubuso bumurika h'amatera ndanga mbere na ndanga nyuma, ntishobora kuba aharenze metero 1 na santimetero 90 hejuru y'ubutaka, iyo ikinyabiziga kidapakiye.

Ku byerekeye utugarura rumuri ubwo buhagarike ntibushobora kurenga metero 1 na santimetero 20.

5. Amatara ndanga burumbarare agomba kubonwa n'ijoro, igihe ijuru rikeye n'umuyobozi w'ikinyabiziga kiri ku ntera ya metero 200 nibura.

6. Amatara yo guhagarara umwanya munini agomba kwohereza imbere urumuri rwera, n'urutukura inyuma, kandi akubahiriza ibyangombwa bituma amatara ndanga-mbere na ndanga-nyuma agaragara.

Ingingo 78:

1. Amatara maremare y'ibara ryera cyangwa ry'umuhondo agomba n'ijoro igihe ijuru rikeye, kumurika mu muhanda ku ntera ya metero 100 nibura imbere y'ikinyabiziga. Iyo ntera ingana na metero 75 ku binyabiziga bifite moteri itarengeje ingufu zigera kuri santimetero kibe 125. Imuguno y'inyuma y'igice kimurika cy'amatera maremare ntigomba na rimwe iyo ayo matara agizwe n'umubare utari igiharwe, kwegera impera z'ubugari bwose no ku mikaba y'inyuma y'igice kimurika cy'amatera magufi.

2. Amatara yo kubisikana y'ibara ryera cyangwa ry'umuhondo, agomba, nijoro, igihe ijuru rikeye, kumurika mu muhanda, nibura mu ntera ya metero mirongo ine imbere y'ikinyabiziga.

Iyo ntera ingana na metero cumi n'eshanu ku binyabiziga bifite moteri itarengeje ingufu za santimetero kibe 125. Umuguno wo hejuru w'igice kimurika cy'amatera magufi ntushobora gusumba metero 1 na santimetero 20 uherye ku butaka igihe ikinyabiziga kidapakiye.

Ku binyabiziga bigomba kugira kuri buri ruhande amatara abiri magufi, isonga ry'igice kimurika uherye ku murongo ugabanya ikinyabiziga mo kabiri mu burebure bwacyo ntishobora kujya hirya ya santimetero mirongo ine kw'isonga y'ubugari bwose bw'ikinyabiziga.

Imodoka ntishobora kugira amatara arenze abiri magufi.

3. Iyo ikinyabiziga gifite itara ryo gusubira inyuma, iryo tara rigomba kuba ryarakozwe

kandi rigashyirwaho ku buryo ryohereza urumuri rwera cyangwa rw'umuhondo, mu ntera itarenga metero 2 andi rudahuma cyangwa rutabangamiye abandi bayobozi. Igituma iryo tara ryaka kigomba kuba ku buryo ryaka gusa iyo gusubira inyuma bitangiye.

Ingingo 79:

1. Itara ryo guhagarara ry'ibara ritukura, rigomba, ridahumisha, kugaragara n'ijoro igihe ijuru rikeye mu ntera nibura ya metero 150, no ku manywa igihe cy'umucyo mu ntera nibura ya metero 20.

Iyo itara ryo guhagarara riri hamwe n'itara ndanga-nyuma cyangwa rifatanye naryo, rigomba kugira urumuri rubonesha cyane kurusha iryo rifatanye naryo.

2. Ahari hejuru cyane h'ubuso bubonesha bw'itara ryo guhagarara ntihashobora gusumba metero 1 na santimetero 55 uhareye ku butaka, igihe ikinyabiziga kidapakiye.

3. Iyo ikinyabiziga gifite gusa itara rimwe ryo guhagarara, iryo tara rigomba gushyirwa mu murongo ugabanyije ikinyabiziga mo kabiri ku buryo bungana mu burebure bwacyo cyangwa hagati y'uwo murongo n'impembe y'ibumoso y'ubugari ntarengwa bw'ikinyabiziga.

4. Itara ryo guhagarara rigomba kwaka iyo feri y'urugendo ikoreshejwe.

Ingingo 80:

1. Amatara ndanga cyerekezo agomba kuba agizwe n'ibintu bifashe ku rumuli rummyatsa, biringanije ku buryo bigira umubare utari igiharwe, ku mpande z'imbere n'inyuma z'ikinyabiziga, amatara y'imbere akaba yera cyangwa umuhondo, ay'inyuma akaba atukura cyangwa asa n'icunga rihishije.

Ayo matara ashobora gufatanywa n'amatara ndanga n'amatara yo guhagarara.

2. Aho amatara ndanga cyerekezo ashirwa ku kinyabiziga hagomba kuba hatye ku buryo ibyerekezo byerekanwa nayo matara bibonwa ku manywa na n'ijoro, baba imbere cyangwa inyuma h'ikinyabiziga, n'abagenzi bakeneye kumenya imigendere y'ikinyabiziga.

3. Amatara ndanga cyerekezo agomba kugaragara n'ijoro, igihe ijuru rikeye, mu ntera nibura ya metero 150 no ku manywa igihe cy'umucyo, mu ntera ya metero 2-9.

4. Ahari hejuru cyane y'itara ndanga cyerekezo, ntihashobora kuba aharenze metero 1 na santimetero 90 hejuru y'ubutaka igihe ikinyabiziga kidapakiye.

5. Imikorere y'imyatsa igomba kuba inshuro 90 mu mount, hashobora kwiyongeraho cyangwa kugabanukaho inshuro z'imyatsa 30.

Ingingo 81:

Itara ribonesha icyapa kiranga numero y'ikinyabiziga rigomba kuba ryera, kandi nijoro igihe ijuru rikeye, rigomba gutuma izo numero zisomerwa muri metero 20 nibura, inyuma y' ikinyabiziga, iyo gihagaze.

Iryo tara ntirishobora kwohereza inyuma y'ikinyabiziga urumuri ruturutse mu isoko yarwo.

Icyiciro 3. Inyamaswa n'Ibinyabiziga bikururwa n'inyamaswa

Ingingo 82:

1. Iyo, amatare yateganyijwe ku ngingo ya 76 adashobora gushyirwa ku kinyabiziga bitewe n'imiterere yacyo cyangwa n'imizigo gitwaye, umuherekeza agomba gutwara ku ruhande rw'imbere kandi ibumoso bw'ikinyabiziga, itara ryera cyangwa ry'umuhondo rimurika ryerekeza imbere, naho umuherekeza wa kabiri agatwara ku rundi'ruhande rw'inyuma ibumoso bw'ikinyabiziga, itara rimurika ryerekeza inyuma.
2. Kuva bwije kugeza bukeye umuyobozi w'inyamaswa zikurura cyangwa izikorera ibintu zitaziritse cyangwa amatungo, biri mu nzira nyabagendwa agomba gutwara itara ry'urumuri rwera cyangwa rw'umuhondo ribonesha ku mpande zose.
3. Iyo umukumbi ugizwe n'amatungo maremare arenze ane cyangwa amatungo magufi arenze atandatu ugaragazwa: n'itara ry'urumuri ryera cyangwa umuhondo ritwawe imbere y'umukumbi, n'itara ry'urumuri rutukura ritwawe inyuma y'uwo mukumbi.

Umutwe 8. ANDI MATEGEKO**Icyiciro 1. Amahoni****Ingingo 83:**

1. Ibinyabiziga bigiye kuvugwa bigomba kuba bifite ibikoresho by' ihoni byumvikanira:

- ku ntera ya metero 100 ku binyabiziga bigendeshwa na moteri, iyo ntera igashobora kungana na metero 50, iyo umuvuduko w'ibinyabiziga bidapakiye udashobora kurenga kilometero 50 mu isaha ahategamye;
- ku ntera ya metero 20 kuri velomoteri.

Amahoni y'ibinyabiziga bigendeshwa na moteri agomba kwohereza ijwi ry'injyana imwe, rikomeza kandi ridacengera amatwi.

2. Ibinyabiziga ndakumirwa kimwe n'ibinyabiziga bikora ku mihanda, bishobora kugira ihoni ridasanzwe ridahuye n'ibiteganywa muri iki gika, uretse ihoni riteganywa mu gika cya mbere.

Icyiciro 2. Uturebanyuma**Ingingo 84:**

Ikinyabiziga cyose kigendeshwa na moteri kigomba kugira nibura akarebanyuma kamwe gateye ku buryo umuyobozi uri ku ntebe ashobora kugenzura ibigendera mu muhanda inyuma n'ibumoso bw'ikinyabiziga nko kubona ikindi kinyabiziga cyatangiye kumunyuraho ibumoso. Ni nako bitegetswe ku kinyabiziga gikururwa n'inyamaswa gifite akazu k'umuyobozi,

Iyo imiterere y'ikinyabiziga cyangwa ibyo cyikoreye bidatuma akarebanyuma kari mu kazu k'ikinyabiziga gashobora gukora neza umurimo kagenewe, uturebanyuma tugomba gushyirwa kuri buri rubavu rw'ikinyabiziga.

Icyiciro 3. Ikirahuri gihagarika umuyaga; ibirahuri; agahanagura-kirahuri**Ingingo 85:**

1. Ku kinyabiziga cyose no kuri buri romoruki:

- a) Ibintu bibonerana bigize igice cy'inyuma cy'ikinyabiziga habariwemo ikirahuri gihagarika umuyaga cyangwa ibigize ikibambasi cy'imbere, bigomba kuba bikoze ku buryo iyo bimenetse, ibyago byo gukomereka byagabanuka uko bishoboka kwose;
- b) Ibirahure byo guhagarika umuyaga bigomba kuba bikoze mu bintu bibonerana bidacuya kandi bikaba bikoze ku buryo bidahindura isura y'ibireberwamo kandi mu gihe bimenetse, umuyobozi agakomeza kubona bihagije inzira nyabagendwa.
2. Ikinyabiziga cyose kigendeshwa na moteri gifite igihagarika-muyaga, uretse amapikipiki, kigomba kugira nibura agahanagura-kirahuri kamwe, ku buryo mu kugakoresha bidasaba umuyobozi guhora agakoresha.
- Agahanagura-kirahuri kagomba guhanagura neza ubuso buhagije kugirango umuyobozi ashobore kubona neza umuhanda yicaye ku ntebe ye.
3. Buri kinyabiziga gitegetswe kugira nibura agahanagura-kirahuri kamwe kigomba no kugira akoza-kirahure gatuma umuyobozi abona neza cyane kandi buri gihe arebeye mu gihagarika-muyaga.

Icyiciro 4. Umwotsi, imyuka, insaku

Ingingo 86:

1. Ibinyabiziga bigendeshwa na moteri na velomoteri bigomba kuba bikoze ku buryo bitagenda bimena bidasanzwe amavuta binavubura ibyotsi bicumba, bicumba umwotsi, uretse moteri yakijwe, kandi bitabangamiye rubanda cyangwa ngo bitere ubwoba inyamaswa kubera urusaku, ibyo aribyo byose ntibishobora gusakuza birengeje ingero ntarengwa zivugwa mu mugereka wa 13 w'iri teka.
2. Moteri yose ikoresheya n'ubushyuhe igomba kugira impombo yohereza ibyotsi ku buryo nyabwo idasakuza kandi umuyobozi akaba atashobora kuyibuza gukora neza mu rugendo.
- Impombo yohereza ibyotsi idafite akagabanya-rusaku irabujijwe kimwe n'ikindi gikorwa cyose kigamije gukuraho cyangwa kugabanya imikorere myiza y'impombo yohereza ibyotsi idasakuza. Isonga y'impombo yohereza ibyotsi ntishobora kwerekezwa iburyo bw'ikinyabiziga.
3. Mu nsisiro, birabujijwe gusakurisha moteri igihe ikinyabiziga gihagaze moteri yaka.

Icyiciro 5.. Inziga.

Ingingo 87:

1. Ibiziga by'ibinyabiziga bigendeshwa na moteri n'ibya velomoteri kimwe n'ibya romoruki zabyo bigomba kuba byambaye inziga zihagwa zifite amano n'ubujyakuzimu butari muni ya milimetero imwe ku migongo yabyo yose n'ubudodo bwabyo ntibugire ahantu na hamwe bugaragara kandi ntibigire aho byacitse bikomeye mu mpande zabyo. Nyamara ibimaze kuvugwa ntibikurikizwa ku binyabiziga bidapakiye kandi bitajya birenga umuvuduko wa kilometero 25 mu isaha ahategamye.
2. Inziga z'ibiziga zigomba kugira imigongo itarangwaho utunogo n'udushyundu dushobora kwangiza inzira, nyabagendwa.
- Inziga zishobora gushyirwaho iminyururu irwanya ubunyerere, ibyo bigakorwa gusa kugirango kuva ahantu hari; urwondo cyangwa hanyerera bidasanzwe bishoboke.
3. Birabujijwe kugenza ibinyabiziga bigendeshwa na moteri na za romoruki zikururwa nabyo, iyo ibiziga byambaye inziga zidahagwa, cyangwa inziga zikururuka zifite umubyimba uri hasi ya santimetoro 4 cyangwa zifite ubugari, aho bwabarirwa hose, budashyitse kuri 2/3 by'ubugari bw'uruziga rukiri rushya.

4. Ibivugwa mu gika cya 3, ntibikulikizwa:

a) ku binyabiziga bihinga, iyo bigendeshwa mu karere katarenga kilometero 25 uvuye aho ziba;

b) ku bikoresho bidasanze bikoreshwa n'abapatanyi b'imilimo, biva aho bibikwa bijya aho bikoreshwa cyangwa iyo bitahutse cyangwa se iyo byimutse aho byakoraga bijya gukora ahandi, kimwe no ku binyabiziga bidasanze bibunza mu masoko ibicuruzwa bidashobora kugendera ku nziga zikozwe muri kawucu, iyo ugupakira kw'ibyo bikoresho n'ibinyabiziga bidasanze ku binyabiziga bisanzwe bigendera mu muhanda byatera imbogamizi cyangwa impanuka.

Nyamara, ibinyabiziga binyuranye byavuzwe ku bika a) na b) bishobora kunyuzwa mu nzira nyabagendwa gusa iyo bidashobora kuyangiza.

Icyiciro 6. Amategeko anyuranye.

Ingingo 88:

1. Buri kinyabiziga kigendeshwa na moteri kigomba kugira ibyuma biyobora bikomeye bituma umuyobozi akata ikinyabiziga cye ku buryo bworoshye, bwihuse kandi bwizewe.

2. Buri modoka igomba kugira uburyo bwo gusubira inyuma bukoreshwa bicaye ku ntebe y'umuyobozi.

3. Buri kinyabiziga gishobora kurenza umuvuduko wa kilometero 40 mu isaha kigomba kugira icyerekana umuvuduko kiri aho umuyobozi areba kandi kigahora kitabwaho kugirango kigumye gukora neza.

4. Buri modoka yagenewe gutwara abantu, ariko umubare wabo ntarengwa ukaba munsi ya 6, umuyobozi abariwemo, igomba kugira imikandara yo kurinda ibyago igenewe umuyobozi n'umugenzi wicaye ku ntebe y'imbere. Ishobora no kugira imikandara ku zindi ntebe z'inyuma.

Ibiranga imikandara yo kurinda ibyago bigenwa na Minisitiri ushinze Gutwara Abantu n'Ibintu

5. Buri kinyabiziga kigomba kugira ibintu bikurikira:

a) icyapa kiburira cya mpandeshatu zingana na santimetero 40 nibura buri ruhande imikaba y'ibara ritukura ya santimetero 5 nibura z'ubugari, nta ndiba cyangwa bifite indiba y'ibara rigaragara, imikaba y'ibara ritukura ikaba ibengerana cyangwa "ifite umusozo ngarururumuri, byose hamwe bikaba bishobora guhagarikwa ku buryo bufashe.

b) agahago k'ubutabazi karimo byibura ibipfuko 4 bitanduza byagenewe buri muntu, udufatisho tw'ibipfuko 4 cyangwa ibikwasi 4 bitifungura, agacupa k'umuti wo kwica mikorobi, inyandiko "ubutabazi bwihutirwa mu gihe hategerejwe muganga n'inyandiko " gufasha guhumeka umunwa ku w'undi".

6. Buri modoka igomba kugira ikintu kiyibuza kwibwa gituma itava aho iri cyangwa kigafunga icyuma cyayo cy'ingenzi igihe ihagaritswe igihe kirekire.

7. Ikinyabiziga kigendeshwa na moteri kiriho ibyuma ntamenwa cyangwa ikindi cyose gituma gikoreshwa mu gutera cyangwa kwitabara ntigishobora kugenda mu nzira nyabagendwa kidafite uruhusa rwihariye rwa Minisitiri ushinze Gutwara Abantu n'Ibintu cyangwa umuhagarariye. Ibimaze kuvugwa ntibikurikizwa ku binyabiziga by'ingabo z'Igihugu.

8. Birabujijwe kwongera ku mpande z'ikinyabiziga kigendeshwa na moteri cyangwa velomoteri imitako cyangwa ibindi bifite imigongo cyangwa ibirenga ku mubyimba bitari ngombwa kandi bishobora gutera ibyago abandi bagendera mu nzira nyabagendwa.

9. Uretse igihe gikururwa n'ikindi kinyabiziga, nta kinyabiziga gifite moteri gishobora kugenda mu mihanda, ahamanuka, igihe moteri itaka cyangwa igihe vitensi idakora.

Ingingo 89:

Haseguriwe amarengategeko ateganywa n'ingingo 59, 70-2 n'iya 72, nta kinyabiziga na kimwe gishobora kujyanwa cyangwa gukomeza kugendeshwa mu nzira nyabagendwa niba kidakurikije amategeko y'igice cya III cy'iri teka.

Nyamara ibinyabiziga byajyanywe mu mihanda hatarashira igihe cy'imyaka 2 iri teka ritangiye gukurikizwa, ntabwo bizarebwa n'ibivugwa ku ngingo ya 80-1, 85-1, 85-3, 88-3, 88-4 na 88-5.

Ingingo 90:

Ingingo 57, 61, 68, 70, 70-1 n'iya 72 kimwe n'ingingo 76, igihe ivuga itara ryo guhagarara n'amatara yerekana icyerekezo ntizikurikizwa ku binyabiziga by'Ingabo z'Igihugu, iyo imyubahirizwe yazo ibangamiye imiterere cyangwa umurimo w'umwanya muto cyangwa uzatinda by'ikinyabiziga.

Igice 4. IBIMENYETSO**Umutwe 1. AMATEGEKO RUSANGE****Ingingo 91:**

1. Ibimenyetso bigenga uburyo bwo kugendera mu muhanda birimo ibyiciro bitatu:

- a) ibyapa;
- b) ibimenyetso bimurika;
- c) ibimenyetso byo mu muhanda.

d) 2. Ibitegekwa byerekanwa n'amatara n'ibimenyetso bimurika birusha ububasha amategeko agenga ibitambuka mbere, ibitegekwa byerekanwa n'ibyapa bigenga ibigomba guhita mbere kimwe n'ibimenyetso byo mu muhanda.

3. Bitabangamiye ikurikizwa ry'ingingo 5, igika cya 6, abagendera mu nzira nyabagendwa bagomba kubahiriza ibitegekwa n'ibyapa, ibimenyetso bimurika n'ibimenyetso byo mu muhanda, n'iyi ibitegetswe aho bageze bisa n'aho binyuranye n'andi mategeko agenga ibigendera mu muhanda.

4. Ishyirwaho ry'ibimenyetso rigengwa na Minisitiri ushinze Gutwara Abantu n'ibintu ku mihanda y'Igihugu n'iy'imigi, rikagengwa na njyanama z'uturere ku byerekeye imihanda y'uturere.

Umutwe 2. IBYAPA BYO KU MUHANDA**Ingingo 92:**

1. Ibyapa byo ku mihanda bigizwe: n'ibyapa biburira, ibyo gutambuka mbere, ibimenyetso bibuza cyangwa bitegeka, n'ibyapa ndanga.

2. Ibyapa byo ku mihanda bigomba gushingwa ku ruhande rw'uburyo bw'umuhanda ku buryo umusozo wo hasi, udashobora kuba munsi ya metero 1 na santimetero 50 cyangwa hejuru ya metero 2 na santimetero 10 uhareye ku butaka uretse ibyapa by'agateganyo.

3. Igisobanuro cy'icyapa gishobora kuzuzwa, gusiganurwa cyangwa kugenwa n'ibyapa by'inyongera bigizwe n'ibyapa by'urukiramende bifite ibigereranyo cyangwa inyandiko

by'ibara ryirabura kiri ku buso bwera buzengturutswe n'umurongo wirabura cyangwa wera ku buso bw'ubururu kandi bigashyirwa munsu y'icyapa bicyegereye.

Icyiciro 1. Ibyapa biburira n'ibyo gutambuka mbere

Ingingo 93:

1. Ibyapa biburira bibereyeho kumenyasha umugenzi ko hali icyago kandi bikerekana imiterere yacyo kandi bikamutegeka ubwitonzi budasanze kugira ngo imigenzereze ye ihure n'imiterere n'ububi bw'icyago" cyerekanywe; naho ibyapa byo gutambuka mbere bibereyeho kumenyesha abagendera mu nzira nyabagendwa amategeko yihariye yo gutambuka mbere mu nkomanze; ibyo byapa byose bishobora kugira ibyo bibuza.
2. Ibyapa biburira n'ibyapa byo gutambuka mbere bishushanyije ku mugereka wa mbere w'iri teka hamwe n'ibigereranyo byerekana imiterere y'icyago bimeze nka mpandeshatu ndinganire ifite ubuso bwera buzengurutswe n'ibara ritukura, uretse ibyapa n° A, 28, a,b, na C; A, 30; A, 31; B.2 a na b; B4; B5; B6 na B7 a na b.

Ingingo 94:

1. Ibyapa biburira ibyago n'ibyapa byo gutambuka mbere bishyirwa iburyo hakurikijwe ibyerekezo abagenzi bireba baganamo bitewe n'imiterere y'aho hantu icyapa cya kabiri kimeze nk'icya mbere cyashyizwe iburyo gishobora gushyirwa ibumoso.
2. Ahatari mu nsiro, ibyapa biburira n'ibyapa byo gutambuka mbere bigomba gushyirwa mu ntera kuva kuri metero 150 kugeza kuri 200 y'ahantu habi byerekana. Iyo bitewe n'imiterere y'ahantu intera itandukanya icyapa n'ahantu habi iri munsu ya metero 150 ku buryo bugaragara, iyo ntera yerekanishwa icyapa cy'inyongera n° F,1.
3. Hanyuranyijwe n'ibivugwa mu gika cya 2 cy'iyi ingingo:

- a) ibyapa n° A, 22, B1 na B2 bigomba gushyirwa hafi cyane hashobotse y'amasangano byerekana, buri cyapa gishobora kubanzirizwa n'ikindi nkacyo gishyizwe ku ntera irenzeho uherye ku isangano kandi ikarangwa n'icyapa cy'inyongera no F,1.
- b) ibyapa n°A, 28 a, A, 28b, na A, 28c bigomba gushyirwa, kimwe muli metero 150 ikindi muli metero 100, ikindi muli metero 50, uherye ku masangano y'inzira nyabagendwa n'umuhanda wa gari ya moshu.
- c) Ibyapa n°B,7a na B,7b bigomba gushyirwa ku ruhande rw'iburyo bw'amasangano y'inzira nyabagendwa n'umuhanda wa gari ya moshu biranga.

4. Iyo ahantu icyago cyaranzwe kiri ari harehare, uburebure bw'igice cy'inzira nyabagendwa icyo cyago kirimo bushobora kwerekanwa n'icyapa cy'inyongera n° F,2.
5. Mu nsiro, ibyapa biburira bigomba gushyirwa iruhande neza y'ahantu habi. Nyamara, ibyapa A, 6; A,11 na A, 16 bigomba gushyirwa mu ntera iringaniye y'ahantu habi kandi iyo ntera igomba kwerekanwa n'icyapa cy'inyongera n° F,1.
6. Iyo icyapa kiburira gishinze aho inzira nyabagendwa irasukira, icyapa cy'inyongera kigizwe n'akarangakerekezo kirabura gashobora kwerekanwa icyerekezo cy'ahantu habi, iyo aho hantu hari kuri iyo nzira nyabagendwa.

Ingingo 95:

Icyapa n° A,22 gishobora gushyirwa ku nzira nyabagendwa gusa iyo andi mayira yose

arasukira mu masangano ariho icyapa n° B,1; B,2, a ; cyangwa B,2, b.

Ingingo 96:

Icyago, kiterekanywe n'ikigereranyo kiri mu mugereka wa mbere w'iri teka gishobora kurangwa n'icyapa cy'inyongera cyerekana icyo cyago , gishobora kandi kwerekanwa hakoreshejwe ikigereranyo kiboneye kitari mu mugereka wavuzwe.

Inyiciro 2. Ibyapa bibuza cyangwa bitegeka.

Ingingo 97:

1. Ibyapa byereka abagenda ibyo babujijwe cyangwa bategetswe, bimeze nk'ingasire. Iyo ngasire izengurutse n'ibara ritukura kandi ubuso bukera iyo igihe icyapa kibuzwa, uretse ibyerekeye ibyapa bibuza guhagarara umwanya muto cyangwa munini bifite ubuso bw'ubururu.

Ingasire igira ibara ry'ubururu, iyo icyapa gitegeka.

2. Ibigereranyo bisiganura imiterere y'ikibuzwa cyangwa y'igitegekwa bishushanyijwe mu mugereka ya 2 na 3, y'iri teka.

3. Ibyapa by'inyongera bishobora kumenyesha ubugerure cyangwa amarengamategeko rusange cyangwa ibibujijwe cyangwa ibitegetswe byihariye.

Ingingo 98:

Ibyapa bibuza n'ibitegeka bikurikizwa gusa mu gice cy'inzira nyabagendwa kiri hagati y'aho bishinze n'inkomane ikurikiye ku ruhande rw'inzira bishinzeho.

Ingingo 99:

1. Ibyapa bibuza bishyirwa iburyo hakurikijwe icyerekezo abagenzi bireba baganamo; bitewe n'imiterere y'aho hantu icyapa cya kabiri kimeze nk'icya mbere cyashyizwe iburyo, gishobora gushyirwa ibumoso.

2. Ibyapa n° C, 20a (guhagarara umwanya munini babisikana) na C,20b (guhagarara umwanya muto no guhagarara umwanya munini babisikana) bigomba gushyirwa kuri buri ruhande rw'inzira bigenewe, bikaba ari umubare uhagije kugirango bishobore kugaragara neza kuva ku cyapa kimwe kugeza ku kindi.

Nta na rimwe intera iri hagati y'ibyapa bibiri byavuzwe ishobora kurenga metero 100.

Ingingo 100:

Hanyuranyijwe n'ibivugwa mu ngingo ya 98, ibibujijwe biri ku byapa n° C,18 (kubuza guhagarara umwanya munini) na n° C,19 (kubuza guhagarara umwanya muto no guhagarara umwanya munini) bishobora kugarukira mu ntera iri hagati y'ibyapa bibiri bivuzwe haruguru byuzuzwa n'ibyapa by'inyongera bibiri: kimwe ni akarangacyerekezo k'umukara gahagaze gafite isonga ireba hejuru, ikindi ni akarangacyerekezo k'umukara gafite isonga ireba hasi.

Ingingo 101:

Iyo ibibuzwa byinshi byubahirizwa ahantu hamwe, ibigereranyo bibyerekeye bishobora gushyirwa hamwe ku ngasire imwe.

Nyamara umubare w'ibigereranyo biteraniye ku ngasire imwe ntushobora kurenga bitatu.

Ingingo 102:

Ibyapa bitegeka bishyirwa ahantu birushijeho kubonwa neza n'abo bigenewe.

Icyiciro 3. Ibyapa biyobora.**Ingingo 103:**

1. Ibyapa biyobora bigamiye kuyobora no gusobanurira abagenzi b'inzira nyabagendwa bishushanyije mu ngereka ya 4 y'iri teka.
2. Ibyapa biyobora bishyirwa ahantu haboneye kurushaho hakurikijwe uko icyo byerekana kimeze.

Umutwe 3. IBIMENYETSO BIMURIKA**Icyiciro 1. Ibimenyetso bimurika byerekana uko bagenda mu muhanda.****Ingingo 104:**

1. Amatara y'ibirnenyetso bimurika mu buryo bw'amatara atatu asobanuye atya:

a) Itara ritukura rivuga : birabujijwe kurenga icyo kimenyetso
b) itara ry'umuhondo: birabujijwe gutambuka umurongo wo guhagarara umwanya muto, cyangwa igihe uwo murongo werekane udahari icyo kimenyetso ubwacyo, keretse igihe ryatse umuyobozi akiri hafi cyane ku buryo yaba atagishobora guhagarara mu buryo butamuteza ibyago; nyamara iyo ikimenyetso kiri mu masangangano umuyobozi arenze umurongo wo guhagarara cyangwa ikimenyetso muri ubwo buryo, ashobora kwambukiranya amasangano gusa ari uko atateza abandi ibyago;

c) itara ry'icyatsi rivuga: uburenganzira bwo kurenga icyo kimenyetso.

2. Itara ritukura, itara ry'umuhondo ritamyatsa n'iry'icyatsi kibisi, ashobora gusimburwa uko akurikirana na kamwe cyangwa uturangacyerekezo tw'ibara ritukura, iry'umuhondo cyangwa icyatsi kibisi.

Utwo turangacyerekezo dusobanura kimwe n'amatara ariko icyo tubuza cyangwa icyo dutangira uburenganzira kigarukira ku byerekezo byerekanwa n'utwo turangacyerekezo.

3. Iyo itara rimwe cyangwa menshi y'inyongera agaragazwa n'akarangacyerekezo kamwe cyangwa twinshi ducaniwe rimwe n'itara ritukura cyangwa ry'umuhondo, uturangacyerekezo tuvuga uburenganzira bwo gukomeza urugendo gusa mu byerekezo byerekanwa n'utwo turangacyerekezo upfa kureka abandi bayobozi bakurikije amategeko kimwe n'abanyamaguru bagahita.

4. Iyo mu itara harimo ishusho y'umunyamaguru imuritswe cyangwa y'igare ibyo bireba gusa abanyamaguru cyangwa abayobozi b'amagare n'aba velomoteri y'imitende ibiri.

5. Amatara atukura n'ay'icyatsi kibisi y'ibimenyetso bimurika by'amabara abiri bisobanura kimwe n'amatara ahuje n'ayaka ku buryo butatu. Iyo yakiye rimwe asobanura kimwe n'itara ry'umuhondo mu buryo bwakamo amatara atatu.

Ibimenyetso bimurika mu buryo bw'amatara abiri bishyirirwaho nk'abanyamaguru; muli icyo gihe, itara ritukura n'iry'icyatsi kibisi asobanura uko akurikiranye ko bibujijwe n'uko byemewe kwinjira mu muhanda, urugero: kutangira kwemererwa kwerekanwa n'uko itara ry'icyatsi kibisi rimyatsa.

6. Iyo ikimenyetso kimurika cyagenewe ibinyabiziga kidakora, itegeko rigenga gutambuka mbere kw'iburyo rirakurikizwa, keretse iyo hari icyapa cyerekana ko uturutse inzira iyi n'iyi ariwe uhita mbere y'abaturutse mu zindi.

7. Iyo ikimenyetso kimurika cyagenewe ibinyabiziga bihagaze hakomeje gukora amatara atukura ku yindi nzira, abayobozi bagenda mu nzira nyabagendwa abo ikimenyetso kimurika cyakomeje kwaka bashobora kurenga icyo kimenyetso bapfa gusa kubigirana ubwitonzi budahugaga no kubanza kumenya, bakurikije nk'ibivugwa mu ngingo ya 15 n'ya 26, ko batatera ibyago cyangwa imbogamizi abandi bagenzi bo mu nzira nyabagendwa.

Ingingo 105:

1. Itara ritukura rishyirwa hejuru y'itara ry'icyatsi kibisi.

Iyo ikimenyetso kimulika gifite itara ry'umuhondo, iri rishyirwa hagati y'itara ritukura n'itara ry'icyatsi kibisi.

Amatara y'inyongera agizwe n'akarangacyerekezo k'ibara ry'icyatsi kibisi, ashirwa mu nsi cyangwa iruhande rw'itara ry'icyatsi kibisi.

2. Amatara akurikirana ku buryo bukurikira:

a) ku bimenyetso by'uburyo bw'amatara atatu

1. Itara ry'umuhondo ryaka nyuma y'itara ry'icyatsi kibisi;

2. Itara ritukura ryaka nyuma y'itara ry'umuhondo;

3. Itara ry'icyatsi kibisi ryaka nyuma y'itara ritukura;

b) ku bimenyetso by'uburyo bw'amatara abiri

Itara ritukura n'itara ry'icyatsi kibisi azima akurikirana yabanje kwakirizwa rimwe.

3. Ubuso bumurika bw'amatara bukoze n'uruziga rw'umurambararo wa santimetero 18 kugeza kuri santimetero 21 naho umurambararo ntarengwa ugeze kuri santimetero 5 ku matara y'inyongera yashyiriweho abanyamaguru ku buhagarike ntarengwa bungana na metero imwe na santimetero 50.

Ingingo 106:

1. Ibimenyetso bimulika byerekana uburyo bwo kugendera mu muhanda kw'ibinyabiziga bishyirwa iburyo bw'umuhanda ukurikije icyerekezo abagenzi bireba baganamo.

Ariko, bishobora no gushyirwa ibumoso cyangwa hejuru y'umuhanda n'ahandi hose bitunganiye uburyo bwo kugendera mu muhanda, kugira ngo birusheho kugaragara neza.

2. Ibimenyetso bimulika byo kugendera mu muhanda biri mu buryo bw'amatara abiri bishobora gushyirwa hejuru y'ibisate by'imihanda bikavuga ibi bikurikira:

a) itara ritukura, ryitiriwe umusaraba wa Mutagatifu Andreyo risobanura ko kugenda kuri icyo gisate cy'umuhanda rigenga, bibujijwe ku bayobozi bakigana;

b) itara ry'icyatsi kibisi risa n'akarangacyerekezo gafite isonga ryerekeye hasi, risobanura ko kugenda ku gisate cy'umuhanda rigenga byemewe ku bayobozi bakigana.

3. Ahantu uburyo bwo kugendera mu muhanda byerekanwa n'ibimenyetso bimurika, ibinyabiziga bishobora kuhagenda biteganye n'aho umubare wabyo utatuma biba ngombwa.

Icyiciro 2. Ibimenyetso bwamatara amyatse.

Ingingo 107:

1. Kugirango berekane ahantu habi cyane; hakoreshwa ikimenyetso cy'itara ry'umuhondo rimyatsa rivuga: uburengazira bwo gutambuka icyo kimenyetso barushijeho kwitonda. Iryo tara rigomba kugaragara nijoro no ku manywa, ntacyo rihindura ku mategeko agenga uguhita mbere.
2. Iyo itara ry'umuhondo rimyatsa rikoreshejwe mu masangano y'amayira ahwanyije agaciho, rishyirwa kuri buri nzira cyangwa hagati y'amasangano ku buryo ribonwa n'umuyobozi wese ugiye kuyinjiramo.
3. Iyo itara ry'umuhondo rimyatsa riri ku kintu kimwe n'ibimenyetso bimurika byerekana uburyo bwo kugendera mu muhanda, cyangwa hafi yacyo, ntirishobora kwakira rimwe na byo.

Icyiciro 3. Ibikoresho ngarura-rumuri.**Ingingo 108:**

1. Imbibi ziri ku mpera z'ubwihugiko bw'abanyamaguru kandi ziri mu muhanda kimwe n'imbibi n'ibindi bikoresho bigenewe gutuma bagenda mu muhanda nta muvundo zisigwa irangi ry'umuhondo ngarurarumuri.
2. Amatara cyangwa ibikoresho ngarura-rumuri bikoreshejwe kugirango bigaragaze inkengero z'inzira nyabagendwa bigomba gushyirwaho ku buryo abagendera kuri iyo nkengero ihwanye n'uburyo bwo kugendera mu muhanda babona gusa iburyo bwabo iby'ibara ritukura cyangwa risa n'icunga rihishije naho ibumoso bwabo, iby'ibara ryera.

Umutwe 4. IBIMENYETSO BIRI MU MUHANDA**Ingingo 109:**

Ibimenyetso byo mu muhanda ni ibimenyetso byashyizwe mu muhanda cyangwa ku nkengero z'utuyira tw'abanyamaguru cyangwa inkengero zigiye hejuru ku muhanda bigenewe gutunganya uburyo bwo kugendera mu muhanda cyangwa kuburira cyangwa se kuyobora abagendera mu muhanda. Bishobora gukoreshwa byonyine, cyangwa biri kumwe n'ibindi bimenyetso. Bishushanyije ku mugereka wa 6 w'iri teka.

Icyiciro 1. Ibimenyetso birombereje**Ingingo 110:**

1. Ibimenyetso birombereje bigizwe n'imirongo iteganye n'umurongo ugabanya umuhanda mo kabiri.
Bishobora kuba bigizwe na:
 - a) umurongo udacagaguye;
 - b) umurongo ucagaguye;
 - c) umurongo udacagaguye n'umurongo ucagaguye ibangikanye.
2. Umurongo wera udacagaguye uvuga ko umuyobozi wese abujijwe kuwurenga. Kandi birabujijwe kugendera ibumoso bw'umurongo wera udacagaguye, iyo uwo murongo utandukanya ibyerekezo byombi by'umuhanda.
3. Umurongo ucagaguye uvuga ko buri muyobozi abujijwe kuwurenga, keretse mu gihe agomba kunyura ku kindi kinyabiziga, gukatira ibumoso, guhindukira cyangwa kujya

mu kindi gice cy'umuhanda.

Iyo uduce tw'umurongo ucagaguye ari tugufi kandi twegeranye cyane, tuvuga ko umurongo ukomeza wegereje.

4. Iyo umurongo wera ukomeje n'umurongo wera ucagaguye ubangikanye umuyobozi agomba kwita gusa ku murongo urushijeho kumwegera.

Umuyobozi warenze umurongo ucagaguye n'umurongo udacagaguye ibangikanye kugirango anyure ku kindi kinyabiziga ashobora kwongera kuyirenga kugira ngo asubire mu mwanya we ukwiye mu muhanda.

5. Mu muhanda ufite igice banyuramo gikikijwe n'uduce tugari tudafatanye tw'ibara ryera, ibinyabiziga bigenda buhoro n'ibinyabiziga bitwara abantu muri rusange, bigomba kunyura muri icyo gice cy'umuhanda, bishobora nyamara kunyura mu gice gikurikiyeho ibumoso bishaka kunyura ku bindi binyabiziga bipfa gusa kugaruka mu mwanya wabyo ukwiye mu muhanda bikimara kubinyuraho.

6. Igice cy'inzira nyabagendwa kigarukira ku mirongo ibiri yera icagaguye ibangikanye kandi gifite ubugari budahagije kugira ngo imodoka zitambuke neza, kiba ari agahanda k'amagare.

7. Umurongo were udacagaguye ushobora gucibwa ku nkombe nyayo y'umuhanda, umusezero w'inzira y'abanyamaguru cyangwa w'inkengeri y'umuhanda yegutse kugirango biboneke ku buryo burushijeho.

8. Umurongo w'umuhondo ucagaguye uciye ku nkombe nyayo y'umuhanda, umusezero w'inzira y'abanyamaguru cyangwa w'inkengeri y'umuhanda yegutse, bivuga ko uguhagarara umwanya munini bibujijwe kuri uwo muhanda ku burebure bw'uwo murongo.

9. Umurongo mugari wera udacagaguye ushobora gucibwa ku muhanda kugirango ugaragaze inkombe mpimbano yawo.

Igice cy'umuhanda kiri hakurya y'uwo murongo kigenewe guhagararwamo umwanya muto n'umwanya munini keretse kubyerekeye imihanda irombereje y'ibisate byinshi n'imihanda y'imodoka.

Intangiriro n'iherezo by'aho hantu hahagararwamo umwanya munini bishobora kugaragazwa n'umurongo wera udacagaguye wambukiranya umuhanda. Imyanya ibinyabiziga bigomba guhagararamo ishobora kugaragazwa n'imirongo yera yambukiranya umuhanda.

10. Mu gihe iyo mirongo nta kundi yagenwe, imirongo yera irombereje igomba kugira ubugari buri hagati ya santimetero 10 na santimetero 15, naho imirongo migari igomba kugira ubugari buri hagati ya santimetero 40 na santimetero 60.

Uburebure n'ubutandukane by'uduce tw'umurongo ucagaguye bizaba ku buryo bukurikiranye hagati ya metero 1 na metero 5 na hagati ya metero 3 na metero 15.

11. Imirongo yera irombereje ishobora gusimburwa n'imitemeri hakurikijwe ibi bikulikira:

a) umurongo udacagaguye ugizwe n'imitemeri y'ibara ryera cyangwa risa n'icyuma, iri mu ntera ngufi igenda ingana hagati yayo;

b) umurongo ucagaguye ugizwe n'imitemeri y'ibara ryera cyangwa risa n'icyuma ishyizweho mu dutsiko muri two imisumari igashyirwa mu ntera ngufi kandi ikagenda ingana hagati yayo, utwo dutsiko twose natwo ubwatwo tukaba dutandukanijwe n'intera igiye isumbaho.

12. Ibimenyetso by'agateganyo bigizwe n'imitemeri y'ibara risa n'icunga rihishije bishobora gusimbura imirongo yera irombereje, idacagaguye n'icagaguye hakurikijwe amabwiriza yashyizweho mu gika cya 11 cy'iyi ngingo.

Ibimenyetso by'agateganyo bivanaho agaciro k'ibimenyetso birombereje byera biri

ahantu hamwe.

Icyiciro 2. Ibimenyetso byambukiranya

Ingingo 111:

1. Umurongo mugari wera udacagaguye uciye ku buryo bugororotse ku nkengero y'umuhanda werekana aho abayobozi bagomba no guhagarara akanya gato gategetswe babyeretswe n'icyapa n° B, 2 a, cyangwa na n° B,2b (STOP) cyangwa ikimenyetso kimurika cyerekana uburyo bwo kugendera mu muhanda.
2. Umurongo ugizwe na mpande-eshatu nyampanga zifite amasonga yerekeye aho abayobozi zireba baturuka kandi uciye ku buryo bugororotse ku nkengero y'umuhanda werekana aho abayobozi bagomba guhagarara akanya gato iyo bishoboka, kugira ngo batange inzira hakulikijwe icyapa n° B,1 (mpandeshatu ifite rimwe mu masonga rireba hasi).
3. Ahanyurwa n'abanyamaguru haciye imirongo yera iteganye n'umurongo ugabanya umuhanda mo kabiri mu burebure bwawo.
4. Ahanyura abayobozi b'amagare n'aba velomoteri zifite imitende ibiri bambukiranya umuhanda haciye imirongo ibiri icagaguye igizwe na kare cyangwa ingirwamyashi by'ibara ryera.
5. Imirongo yera yambukiranya umuhanda, igomba kuba ifite ubugari buri hagati ya santimetero 20 na santimetero 60.
Impande za kare zera zigomba kugira umubyimba uri hagati ya santimetero 40 na santimetero 60.
Ubutambike bwa mpande eshatu n'ubw'ingirwamyashi bugomba kugira ubugari buli hagati ya santimetero 40 na santimetero 60 kandi ubuhagarike bugomba kuba hagati ya santimetero 50 na santimetero 70.

Icyiciro 3. Ibindi bimenyetso.

Ingingo 112:

1. Uturangacyerekezo dutoranya tw'ibara ryera dushobora gushyirwa hafi y'amasangano. Utwo turangacyerekezo twerekana igisate cy'umuhanda abayobozi bagomba gukurikira kugira ngo bagane mu cyerekezo cyerekanwa n'utwo turangacyerekezo. Kandi mu masangano abayobozi bagomba gukulikira icyerekezo, cyangwa kimwe mu byerekezo byerekanwa ku gisate cy'umuhanda barimo.
2. Umurongo uciyemo uduce umenyesha ahagereye umurongo ukomeje ushobora kuzuzwa n'uturanga gukata tw'ibara ryera.
Utwo turangacyerekezo tumenyesha igabanurwa ry'umubare w'ibisate by'umuhanda bishobora gukoreshwa mu cyerekezo bajyamo.
3. Ibyandikishijwe ibara ryera mu muhanda bishobora kuzuza ibyerekanwa n'ibyapa.
4. Ibyerekezo binyuranye bishobora kwerekana ku bsate by'umuhanda.
5. Aho ibinyabiziga bitwara abantu muli rusange bihagarara, ahabujijwe guhagararwa igihe hakulikijwe ingingo 33, 3, g, hashobora kugaragazwa n'ibishushanyo by'ibara ryera.
6. Uturangacyerekezo n'inyuguti z'ibyanditse bigomba kugira nibura uburebure bwa metero 2 na santimetero 50 keretse aho imivuduko yo kwegera aho biri itarenga kilometero 50 mu isaha n'ubugari bwabyo bugomba kuba hagati ya santimetero 10 na santimetero 30.
7. Imyanya y'aho ibinyabiziga bibujijwe kunyura cyangwa bitegeka ibinyabiziga

kunyura mu cyerekezo iki n'iki, bishobora kugaragazwa ku butaka n'imirongo iberamye iteganye yera, ifite ubugari buli hagati ya santimetero 10 na santimetero 15 kandi itandukaniye na santimetero kuva kuri 20 kugeza kuri santimetero 30.

Umutwe 5. IBIMENYETSO BYEREKANA IMIRIMO N'INKOMYI.

Ingingo 113:

1. Ibimenyetso byerekana imirimo mu nzira nyabagendwa bishyirwaho n'uyikora. Iyo hagomba gukoreshwa ibyapa byerekeye gutambuka mbere, ibyapa bibuza, ibyapa bitegeka, ibyapa byerekeye guhagarara akanya gato n'akarekare cyangwa ibimenyetso birombereje by'agateganyo byerekana ibisate by'umuhanda, ibyo bimenyetso ntibishobora gushyirwaho nta ruhushya rwa Perefe cyangwa urw'intumwa ye. Urwo ruhushya rusobanura buri gihe ibimenyetso bizakoreshwa. Ibimenyetso byo mu muhanda bigomba kuvanwaho n'ukora imirimo ikimara kurangira.
2. Ibimenyetso by'inkomyi bishyirwaho:

- n'ubutegetsi bushinzwe inzira nyabagendwa, iyo ari inkomyi idaturutse ku muntu;
- n'uwateye iyo nkomyi.

Iyo uwateye iyo nkomyi atabikoze, ibyo bigomba gukorwa n'umutegetsi ushinze iby'umuhanda, amafanga yakoreshejwe muri iyo mirimo ashobora kwishyuzwa uwananiwe kuyikoresha.

Ingingo 114:

1. Iyo imirimo cyangwa inkomyi biri ahantu hatoya bigomba gushyirwaho ibimenyetso bikurikira:

a) hagati ya nimugoroba na mu gitondo amatara abishyiraho imbibi, abitandukanya kandi yaka ku buryo buhagije kugirango aboneke muri metero 150 byibura, igihe ijuru rikeye.

Amatara aba atukura ku mpande zambukiranya umuhanda uhereye k'umurongo w'indinganire w'umuhanda, kandi ayo matara akaba yera cyangwa asa n'amabara y'umuhondo ku ruhande cyangwa ku mpande z'uburebure bw'umuhanda abagenzi banyuramo.

b) hagati ya mu gitondo na nimugoroba, utubendera dutukura dufite byibura santimetero 50 z'uruhande.

Ikindi kandi, iyo hari imirimo ikorwa, ikimenyetso n° A,15 (imirimo ikorwa mu muhanda) gifite byibura santimetero 40 z'uruhande, gishyirwa kuri buri mpera ku buryo abahaza baza bakireba.

2.a) - Igihe ikorwa ry'imirimo ribangamiye cyane cyangwa buke uburyo bwo kugenda mu nzira nyabagendwa, ahakorerwa imirimo hagaragazwa ku buryo bukurikira:

- ahitaruye, ni ikimenyetso n° A, 15 (imirimo ikorwa mu muhanda);
- aho imirimo ikorerwa, n'uruzitiro ruri ku mpera zombi. Iyo, kubera impamvu iyo ariyo yose, mu muhanda cyangwa igice cyawo bibujijwe kunyurwamo bidashobora kuzitirwa hose ku manywa, utubendera dutukura twongerwa ku burebure bw'uruzitiro kugirango tugaragaze neza ubugari bwose bw'ahadashobora kunyurwa n'abagenzi.
- b) Iyo mu muhanda, imirimo yihariye ubugari butuma abayobozi bagomba kuva mu

mwanya wabo usanzwe kugirango bakomeze urugendo, ikimenyetso n° D,2 (ahategetswe kunyurwa) gifite akarangakerekezo kabogetse kareba hasi kuri dogere zenda kungana na 45 gishyirwa aho imirimo irangirira mu ruhande rugendwamo. Iyo ubwo bugari budatuma ibisikana ry'ibinyabiziga bibiri rishoboka hagomba guteganywa ahabigenewe mu ntera zitegeranye kugira ngo abayobozi bashobore kuhahagarara. Iyo myanya igaragazwa n'ikimenyetso n° D, Lc (kwirinda). Iba yegeranye bihagije umwe n'undi kugirango buri gice cy'umuhanda kiyitandukanya kibonwe neza mu burebure bwacyo bwose n'umuyobozi wegereye umwe muri yo mu burebure bwacyo bwose.

Uburyo bwo kugendera kuri buri gice bigengwa n'ibimenyetso n° B, 5 (birabujijwe kunyura mu mpatanwa iyo ikinyabiziga kiguturutse imbere) na no B,6 (gutambuka mbere ku binyabiziga biturutse imbere).

c) Iyo kugenda byemewe gusa ku gice cy'umuhanda cyasigaye gishobora kugenderwamo, utuzitiro turi ku mpera y'aho imirimo ikorerwa ari naho bahera kubuzwa kugenda, rugomba kuzuzwa hagati yarwo n'ikimenyetso no C,1 (icyerekezo kibujijwe kunyurwa n'umuyobozi wese).

d) Iyo bibujijwe kugenda mu byerekezo byombi by'umuhanda ukorerwamo imirimo, uruzitiro ruri kuri buri mpera zaho rugomba kugira hagati yarwo ibyapa n° C,2 a (birabujijwe kunyura mu byerekezo byombi ku muyobozi uwo ariwe wese) cyangwa icyapa n° C, 2b (birabujijwe kunyura mu byerekezo byombi ku muyobozi uwo ari wese, keretse abahatuye).

e) Iyo kuyobya umuhanda ari ngombwa, bigaragazwa kuva aho uhera no ku burebure bwawo wose n'icyapa cyerekana gishushanyije kuri n° E,5a cyangwa kuri n° E, 5C z'umugereka wa 4 w'iri teka. Iyo aho umuhanda uyoborejwe atariho imirimo itangirira icyapa n° C, 2b gishyirwa iruhande rw'icyapa n° E, 5 a cyangwa E,5 c.

f) Kuva bwije kugeza bukeye, uruzitiro n'ibyapa biramurikwa kandi amatara atukura ashirwa ku bugari bwose bw'igice cy'inzira nyabagendwa kitagendwamo kandi hagati ya rimwe n'irindi hakaba intera itarenze metero imwe. Ku burebure bw'uruhande cyangwa bw'impande abagenzi bagendaho ahakorerwa imirimo hashyirwa imbibi zigizwe n'amatara yera cyangwa yenda kuba umuhondo hagati y'itara n'irindi hakaba intera itarenze metero 30.

3. Uruzitiro rugizwe n'umugozi ufite ubugari buri hagati ya santimetero 10 na santimetero 20, rumanitswe ku buhagarike buri hagati ya santimetero 80 na metero 1 na santimetero 10 uhareye ku butaka, cyangwa kigizwe n'urudandi rufite ubugari buri hagati ya santimetero 5 na santimetero 10.

Uwo mugozi n'izo ndandi bigabanyijwemo ibice bifite hafi santimetero 50, bitukura n'iby'umweru ku buryo bukurikiranye kandi biriho ibikoresho cyangwa ibintu ngarururumuri.

4. Ibyapa bikoreshwa mu kugaragaza ahakorerwa imirimo bigomba kuba bifite ibipimo bikulikira:

a) Ibyapa biburira: santimetero 90 z'uruhande, nyamara iyo bitewe n'aho bishyirwa icyo gipimo gishobora kugabanywa kugeza kuri santimetero 70;

b) Ibyapa bibuza n'ibitegeka: santimetero 70 z'umurambararo.

Ibyo byapa bigomba kugaragazwa kuva bwije kugera bukeye n'urumuri rwihariye cyangwa n'amatara yo ku muhanda, cyangwa n'ibintu ngarura-rumuri; igihe ijuru rikeye, intera y'ahagaragara igomba kuba byibura metero 100.

Umutwe 6. AMATEGEKO ANYURANYE

Ingingo 115:

Ibyapa byavuzwe kuva ku ngingo ya 92 kugeza kuya 103, kubyerekeye uko bikoze, amabara, ibigereranyo, n'ibyanditsweho bigomba guhura n'ingero zishushanyije mu migereka ya 1 kugeza kuwa 4 y'iri teka.

Ingingo 116:

1. mihanda yagenwe na Minisitiri ushinzwe Imirimo ya Leta, ibyapa biburira n'ibyapa byerekana bigomba kugaragazwa kuva bwije kugera bukeye n'urumuri rwihariye cyangwa n'amatara ku mihanda cyangwa n'ibintu ngarurarumuri, igihe ijuru rikeye, intera y'ahagaragara igomba kuba byibura metero 100.
2. Kuri iyo mihanda nyine ibyapa bibuza n'ibitegeka bigomba kugaragazwa ku buryo bumwe iyo abagenzi bagomba kubikurikiza nijoro no ku manywa.
3. Ibyapa B,7a na B,7b bigomba iteka kumurikwa cyangwa kugarura urumuri ku buryo bigaragarira nibura mu ntera ya metero 100 igihe ijuru rikeye.

Ingingo 117:

Birabujijwe kwandika ku cyapa kigenga uburyo bwo kugendera mu muhanda ikintu cyose kidafitamye isano n'icyo kihabereye.

Nyamara ibyapa biburira uretse icyapa n° B,1 (amasangano umuyobozi agomba guhamo inzira abagenda mu nzira agiye kwinjiramo) n'ibyapa byerekana, bishobora gushyirwaho urwibutso rw'uwabitanze cyangwa rw'umuryango wemerewe gushyiraho ibyo byapa, urwo rwibutso rupfa gusa kudafata umwanya urenze 1/6 cy'ubuso bw'icyapa.

Ingingo 118:

Birabujijwe gushyira ku nzira nyabagendwa ibyapa byamamaza, ibimenyetso biranga cyangwa ibindi bikoresho bituma abayobozi bahuma, bibayobya, byerekana cyangwa byigana, n'iyi byaba igice, ibyapa byakwitiranywa n'uri kure n'ibyapa cyangwa bikagirira nabi ku buryo ubwo aribwo bwose akamaro nyako k'ibimenyetso bihuje n'amategeko.

Birabujijwe kumurikisha itara rijya gutukura cyangwa rijya gusa n'icyatsi kibisi, ku cyapa cyose cyamamaza ikimenyetso kiranga cyangwa igikoresho cyose kiri ahantu ha metero 75 uvuye ku kimenyetso kimurika, ku buhagarike buri muni ya metero 7 uhareye ku butaka.

Ingingo 119:

Inkombe z'inzira nyabagendwa cyangwa z'umuhanda zishobora kugaragazwa n'ibikoresho ngarurarumuri.

Ibyo bikoresho bigomba gushyirwaho ku buryo abagenzi babona gusa iburyo bwabo iby'ibara ritukura cyangwa ibisa n'icunga rihishije naho ibumoso bwabo bakabona iby'ibara ryera.

Ingingo 120:

1. Uretse ibivugwa ku buryo bweruye muri iri teka, ibimenyetso byose biteganywa naryo bishyirwa gusa ku nzira nyabagendwa n'abo itegeko ribihira ububasha. Iyo amashami y'umuhanda alimo ibinyabiziga byinshi, abapolisi bashinzwe kubahiriza umutekano mugihe byihutirwa bashobora gushyiraho ibimenyetso bigenewe kuyobya ibigendera mu muhanda; ibyo bimenyetso biherako bivanwaho iyo ibinyabiziga bitangiye kugenda ku buryo busanzwe. Ibyapa bikoreshwa bisa na kimwe mu byatanzweho urugero n° A, 30 na A,31 biri ku ngereka n° I y'iri teka.
2. Birabujijwe gukoresha ibimenyetso byerekeye uburyo bwo kugendera mu muhanda

ibindi bitari ibiteganyijwe muri iri teka.

3. Ibimenyetso byateganyijwe muli iri teka n'ibyo byonyine bishobora gukoreshwa byereka abagenzi icyo bishaka kuvuga.

Igice 5. IBIRANGA IBINYABIZIGA

Umutwe 1. IYANDIKWA RY'IBINYABIZIGA

Ingingo 121:

1. Hashyizweho "ibitabo bitandatu" by'amashakiro byanditsemo numero zikurikiranye z'ibinyabiziga bigendeshwa na moteri kimwe n'iza romoruki n'iza makuzungu, uretse iza romoruki ntoya:

- 1) igitabo cy'amashakiro y'ibinyabiziga by'abikorera ku giti cyabo;
- 2) igitabo cy'amashakiro y'ibinyabiziga bya za ambasade n'iby'imiryango ifite ubusonerwe nk'ubwa ambasade ku misoro no ku mahoro, kimwe n'iby'abakora muri izo za ambasade no muri iyo miryango;
- 3) igitabo cy'amashakiro y'ibinyabiziga by'ubutegetsi bwa Leta, iby'imishinga ya Leta n'iby'ibigo bya Leta byigenga n'ibigengwa na Leta;
- 4) igitabo cy'amashakiro y'ibinyabiziga by'Ingabo z'Igihugu;
- 5) igitabo cy'amashakiro y'ibinyabiziga bya Polisi y'Igihugu ;
- 6) igitabo cy'amashakiro y'ibinyabiziga byinjijwe mu gihugu by'agateganyo.

2. Imikoreshereze y'igitabo cy'amashakiro y'ibinyabiziga by'abikorera ku giti cyabo, icy'ibinyabiziga byinjijwe mu gihugu by'agateganyo. n'icy'ibinyabiziga bya za ambasade n'imiryango ifite ubusonerwe, bishinzwe ibiro by'imisoro.

3. Imikoreshereze ya buri gitabo mu bindi bitabo by'amashakiro, bishinzwe umutegetsi cyangwa abategetsi bashyirwaho ku buryo bwihariye na Perezida wa Repubulika.

Ingingo 122:

1. Ibinyabiziga byavuzwe mu ngingo ya 121 ntibishobora kugenda mu nzira nyabagendwa bitarabanje kwandikwa bisabwe na nyirabyo ku giti cye cyangwa undi muntu ubikoresha.

2. Nyamara, ntibigomba guhabwa inomeru zo mu Rwanda:

a) ibinyabiziga byinjijwe mu Rwanda by'agateganyo n'abantu badasanze bahatuye kandi ibyo binyabiziga bifite inomeru ibiranga yatanze n'ubutegetsi bw'igihugu cyemeye amasezerano y'i Viyeni yo kuwa 8 ugushyiraho 1968 yerekeye uburyo bwo kugendera mu muhanda, kimwe n'ikimenyetso kibiranga giteganyijwe mu ngingo ya 37 y'ayo masezerano.

b) mu gihe kitarenze amezi cumi n'abiri y'igihe byinjiriye, ibinyabiziga byinjijwe mu Rwanda bizanywe n'abantu bahatuye cyangwa se bagomba kuhatura kandi bifite inomeru ibiranga n'ikimenyetso kibiranga gikurikije ibyategetswe haruguru.

Ingingo 123:

A. Iyandikwa ry'ibinyabiziga by'abantu bikorera ku giti cyabo cyangwa ibya za ambasade cyangwa imiryango ifite ubusonerwe nk'ubwa za ambasade no ku bakozi b'izo za ambasade n'iyi miryango risabwa ibiro by'imisoro. Iryo saba rihekerezwa n'ibi

bikurikira:

1. Iyo ari ikinyabiziga gishya: icyemezo cy'uwigikoze cyangwa cy'uwigicuruje, cyemeza ko ikinyabiziga cyatanze ari gishya kandi kikerekana:

- a) ingeri y'ikinyabiziga;
- b) ikimenyetso cyangwa izina ry'uwigikoze ikinyabiziga;
- c) ubwoko bwacyo;
- d) inomeri ya shasi y'ikinyabiziga;
- e) inomeri ya moteri y'ikinyabiziga;
- f) ingufu za moteri;
- g) uburemere bw'ikinyabiziga igihe gifite ibyangombwa byacyo byose;
- h) uburemere ntarengwa bwemewe bw'ikinyabiziga;
- i) umubare ntarengwa w'abagenzi;
- j) umwaka ikinyabiziga cyakorewemo.

2. Iyo ari ikinyabiziga gishaje:

- a) niba ikinyabiziga cyari cyarandikishijwe mu Rwanda iryo saba riherekewe n'ikarita iranga ikinyabiziga yatanze mu gihe ikinyabiziga giherutse kwandikwa;
 - b) niba ikinyabiziga kitarandikishwa mu Rwanda, iryo saba riherekewe n'inyandiko y'ibigaragaza ibinyabiziga byavuzwe mu gika cya mbere cy'iyi nteruro.
3. Ukurikije uko ikinyabiziga kimeze, isaba riherekewe n'inyandukuro y'icyemezo kivuga ko icyo kinyabiziga gitangiye gukora cyangwa cyaje kitazatinda.
- B) Ibinyabiziga by'ubutegetsi n'iby'ibigo byigenga kimwe n'ibinyabiziga by'Ingabo z'igihugu bihabwa inomeri n'ubutegetsi bubigenga kandi bakamenyesha ibiro by'imisoro ibiranga ibyo binyabiziga kimwe n'ibimenyetso byahawe.

Umutwe 2. IKARITA IRANGA IKINYABIZIGA

Ingingo 124:

1. Iyandikwa ry'ibinyabiziga by'abantu bikorera ku giti cyabo cyangwa ibya za ambasade cyangwa imiryango ifite ubusonerwe cyangwa abakozi b'izo za ambasade n'iyi miryango rigaragazwa no guhabwa ikarita ikiranga "ikarita y'ibara ry'umuhondo" ikurikije urugero ruri ku mugereka wa II w'iri teka.
 2. Ikintu cyose cyatuma hahindurwa ibyanditswe bireba nyiri karita cyangwa ibiranga ikinyabiziga kigomba kumenyeshwa mu minsi umunani ibiro by'imisoro, haba mu magambo cyangwa mu ibarwa ishinganye; iyo karita igomba hakurikijwe uko ibintu bimeze, gushyikirizwa ibiro by'imisoro, itangishijwe intoki cyangwa yometse ku ibaruwa ishinganye kugirango bayihindure.
 3. Mu gihe ikinyabiziga gitanzwe ikarita ikiranga yatanze mbere yandikwa ku izina ry'ugihawe hamaze gutangwa amahoro agenwa n'iteka rya Minisitiri ushinze imari. Utwara ikinyabiziga agomba kwerekana ako kanya ikarita iranga ikinyabiziga igihe cyose umukozi ubigenewe ayimwatse.
- (iteka rya Perezida n° 72/01 ryo ku wa 30/10/2003) Ikarita iranga ibinyabiziga by'imiryango ifite ubusonerwe izajya igira agaciro katarengeje umwaka. Iyo karita izaba ifite ibara ry'umuhondo, naho uko izaba imeze n'uko izaba iteye bizagenwa n'ibiro bishinzwe imisoro.

Umutwe 3. INOMERO IRANGA IKIBITANDUKANYA, IBIMENYETSO NDANGA.

Ingingo 125:

a) Ibinyabiziga by'abikorera ku giti cyabo, ibya za Ambasade, iby'imiryango ifite ubusonerwe, iby'abakozi b'izo za ambasade cyangwa b'iyo miryango:

- 1) Buri kinyabiziga na buri romoruki bihabwa numero ibiranga ishyirwa ku cyapa cy'inyuma gifite ibikiranga biteganyijwe mu ngingo ya 126. Ku byerekeye ibinyabiziga bigendeshwa na moteri, iyo numero itangwa hakoreshejwe ibyapa bibiri.
- 2) Ikinyabiziga cyemererwa gusa kugenda mu nzira nyabagendwa iyo cyambaye numero iranga cyahawe.
- 3) Iyo ikinyabiziga kitagikora, cyangwa cyoherejwe mu mahanga burundu, ibyapa ndanga bigomba mu gihe cy'amezi abiri gukurwaho bikoherezwa mu biro by'imisoro, biherekejwe n'ikarita ndanga n'inyandiko isobanura impamvu byoherejwe. Iyo mu gihe kimaze kuvugwa, ny'iri numero ndanga aronse ikindi kinyabiziga ashobora gusaba ibiro by'imisoro uruhushya rwo kwambika ikinyabiziga cye gishyashya ibyapa yari asanganywe; iryo saba riherezwa n'ikarita ndanga kugira ngo ivugururwe.

B) Ibinyabiziga bya Leta, iby'Ingabo z'Igihugu n'ibya Polisi y'Igihugu.

- 1) Numero ziranga z'ibyo binyabiziga zishyirwa ku byapa by'icyuma bikorwa hakurikijwe amabwiriza y'ubutegetsi bugenga ibyo binyabiziga.
- 2) Ihinduka ryose rikozwe ku cyapa kiranga kimwe n'ihagarika burundu ry'imikorere y'ikinyabiziga bigomba kumenyeshwa ibiro byatanze icyo cyapa.

Ingingo 126: (Iteka Rya Perezida n° 72/01 ryo ku wa 30/10/2003)

I. IBYAPA BY' IBIGENZWA MU MUHANDA Ibyapa by'ibigenzwa mu muhanda bikozwe mu ibati kandi birangwa n'ibimenyetso bikurikira:

1. Ibinyabiziga bya Leta, iby'ibigo bigengwa na Leta, n'iby'imishinga

A. Imodoka

A.1 Imodoka za Leta n'iz'ibigo bigengwa na Leta

Imbere :

Inyuguti GR zikurikiwe n'imibare 3 kuva kuri 001 kugeza kuri 999, n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

Inyuma:

Inyuguti za GR ziri hejuru y'imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

A.2. Imodoka z'imishinga Imbere

Imbere:

Inyuguti GP zikurikiwe n'imibare 3 kuva kuri 001 kugeza kuri 999 bikurikiwe n'inyuguti

kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

Inyuma:

Inyuguti za GP ziri hejuru y'imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

B. Amapikipiki n'ibindi byuma by'imipira myinshi bifite moteri

1° Amapikipiki n'ibindi byuma by'imipira myinshi bifite moteri bya Leta
Inyuguti GRM ziri hejuru y'imibare 3 kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

2° Amapikipiki n'ibindi byuma by'imipira myinshi bikoreshwa n'imishinga
Inyuguti GPM ziri hejuru y'imibare 3 kuva kuri 001 kugeza kuri 999 bikurikiwe n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

3° Rumoruki na za makuzungu bya Leta
Inyuguti GL ziri hejuru y'imibare 4 kuva kuri 0001 kugeza kuri 9999.
Ariko inyuguti GL zishobora gukurikirwa n'iriya mibare ine iyo umwanya wateganyirijwe icyapa inyuma uhagije, bityo icyapa cy'inyuma kikagira ingero zimwe n'icy'imbere.

4° Rumoruki na za makuzungu by'imishinga
Inyuguti LP ziri hejuru y'imibare 4 kuva kuri 0001 kugeza kuri 9999.
Ariko inyuguti LP zishobora gukurikirwa n'iriya mibare ine iyo umwanya wateganyirijwe icyapa inyuma uhagije bityo icyapa cy'inyuma kikagira ingero zimwe n'icy'imbere.

2. Ibinyabiziga by'Abikorera ku giti cyabo

A. Imodoka

Imbere :

Inyuguti R isobanura Rwanda ikurikiwe n'inyuguti 2 kuva kuri AA kugeza kuri ZZ zerekana urwego ruto, imibare 3 kuva kuri 001 kugeza kuri 999 n'inyuguti igaragaza urwego runini kuva kuri A kugeza kuri Z. Inyuguti ya O izasimbukwa.

Inyuma :

Inyuguti R isobanura Rwanda ikurikiwe n'inyuguti 2 kuva kuri AA kugeza kuri ZZ zerekana urwego ruto byose bikajya hejuru y' imibare 3 kuva kuri 001 kugeza kuri 999 n'inyuguti igaragaza urwego runini kuva kuri A kugeza kuri Z. Inyuguti ya O izasimbukwa.

B. Amapikipiki n'ibindi byuma by'imipira myinshi bifite moteri

Inyuguti R ikurikiwe n'inyuguti imwe kuva kuri A kugeza kuri Z yerekana urwego ruto, ziri hejuru y'imibare 3 kuva kuri 001 kugeza kuri 999 n'inyuguti yerekana urwego runini kuva kuri A kugeza kuri Z. Inyuguti ya O izasimbukwa.

C. Rumoruki na za makuzungu

Inyuguti RL ziri hejuru y'imibare 4 kuva kuri 0001 kugeza kuri 9999.
Ariko inyuguti RL zishobora gukurikirwa n'iriya mibare ine iyo umwanya wateganyirijwe icyapa inyuma uhagije bityo icyapa cy'inyuma kikagira ingero zimwe n'icy'imbere.

3. Ibinyabiziga byavanywe mu mahanga n'abacuruzi babyo

Imbere :

Inyuguti za M (bisobanura ko bicuruzwa) na R isobanura Rwanda, zikurikiwe n'imibare 3 kuva kuri 001 kugeza kuri 999 n' inyuguti kuva kuri A kugeza kuri Z bigaragaza urwego. Inyuguti ya O izasimbukwa.

Inyuma:

Inyuguti MR ziri hejuru y'imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti imwe kuva kuri A kugeza kuri Z igaragaza urwego. Inyuguti ya O izasimbukwa.

4. Ibinyabiziga by'abahagarariye ibihugu byabo mu Rwanda, imiryango mpuzamahanga n'iyuturere n'abantu bagengwa n'amategeko yerekeye uburenganzira buhabwa abahagarariye ibihugu byabo mu byerekeye imisoro na gasutamo n'ibindi nkabyo uretse ba Konsuli bahagarariye ibihugu byabo n'abakozi ba za Konsula

A. Imodoka

Imbere :

Inyuguti CD zibanzirizwa n'umubare werekana uko bagiye bagera mu Rwanda kandi zikurikiwe n'imibare itatu kuva kuri 001 kugeza kuri 999 n'inyuguti R isobanura Rwanda.

Inyuma :

Inyuguti za CD zibanjirijwe n'umubare ugaragaza uko bagiye bagera mu Rwanda byose bikajya hejuru y'imibare 3 kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti ya R isobanura Rwanda.

Ariko, imodoka z'abayobozi bahagarariye ibihugu byabo n'imiryango mpuzamahanga n'iyuturere bizagira ibyapa byanditse mu nyuguti za CMD zikurikiwe cyangwa ziri hejuru y'imibare ibiri kuva kuri 01 kugeza kuri 02.

B. Amapikipiki n' ibindi byuma by'imipira myinshi bifite moteri.

Inyuguti CD zibanjirijwe n' umubare ugaragaza uko bagiye bagera mu Rwanda byose biri hejuru y' imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n' inyuguti ya R isobanura Rwanda.

5. Ibinyabiziga bikoreshwa na za Konsula

A. Imodoka

Imbere :

Inyuguti CC zibanzirizwa n'umubare werekana uko bakurikirana bagera mu Rwanda kandi zikurikiwe n'umubare kuva kuri 01 kugeza kuri 99 n'inyuguti R isobanura Rwanda.

Inyuma :

Inyuguti CC zibanzirizwa n'umubare werekana uko bakurikirana bagera mu Rwanda byose bikajya hejuru y'imibare 2 kuva kuri 01 kugeza kuri 99 ikurikiwe n'inyuguti ya R isobanura Rwanda.

B. Amapikipiki n' ibindi byuma by'imipira myinshi bifite moteri

Inyuguti CC zibanjirijwe n' umubare ugaragaza uko bagiye bagera mu Rwanda byose biri hejuru y' imibare kuva kuri 01 kugeza kuri 99 ikurikiwe n' inyuguti ya R isobanura Rwanda.

6. Ibinyabiziga biva mu mahanga by'agateganyo

A. Imodoka

Imbere :

Inyuguti IT zikurikiwe n'imibare itatu kuva kuri 001 kugeza kuri 999 hamwe n'inyuguti R isobanura Rwanda bigakurikirwa n'inyuguti kuva kuri A kugeza kuri Z zigaragaza urwego. Inyuguti ya O izasimbukwa.

Inyuma :

Inyuguti za IT zose zikaba hejuru y' imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n' inyuguti ya R isobanura Rwanda bigakurikirwa n'inyuguti kuva kuri A kugeza kuri Z yerekana urwego. Inyuguti ya O izasimbukwa.

B. Rumoruki na za makuzungu

Inyuguti RL ziri hejuru y'imibare 3 kuva kuri 001 kugeza kuri 999 zikurikiwe n'inyuguti IT.

Ariko inyuguti RL zishobora gukurikirwa n'iriya mibare itatu n'inyuguti IT iyo umwanya wateganyirijwe icyapa inyuma uhagije bityo icyapa cy'inyuma kikagira ingero zimwe n'icy'imbere.

C. Amapikipiki n'ibindi byuma by'imipira bifite moteri:

Inyuguti R (isobanura Rwanda), ikurikiwe n'inyuguti za IT byose bikajya hejuru y'imibare itatu kuva kuri 001 kugeza kuri 999 n'inyuguti kuva kuri A kugeza kuri Z yerekana urwego. Inyuguti ya O izasimbukwa.

7. Ibinyabiziga by' Imiryango ishamikiye ku Muryango w' Abibumbye

A. Imodoka

Imbere :

Inyuguti za UN zikurikiwe n'imibare itatu kuva kuri 001 kugeza kuri 999 n' inyuguti ya R isobanura Rwanda, n'inyuguti kuva kuri A kugeza kuri Z yerekana urwego. Inyuguti ya O izasimbukwa.

Inyuma :

Inyuguti za UN ziri hejuru y' imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti ya R isobanura Rwanda n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego, hakazasimbukwa gusa inyuguti ya O.

B. Amapikipiki n' ibindi byuma by' imipira myinshi bifite moteri

Inyuguti za UN ziri hejuru y' imibare itatu kuva kuri 001 kugeza kuri 999 ikurikiwe n'inyuguti ya R isobanura Rwanda. n'inyuguti kuva kuri A kugeza kuri Z igaragaza urwego, hakazasimbukwa gusa inyuguti ya O.

8. Ibyapa by' ibinyabiziga byanditswe mu mazina bwite y'abantu cyangwa amasosiyete Izina bwite ry'umuntu cyangwa isosiyeti ribanjirijwe n'inyuguti ya R isobanura Rwanda.

II. AMABARA

Amabara y'ibyapa agenwe ku buryo bukurikira :

Ibyapa byose biranga imodoka bifite ibara ry'umweru ku ruhande rw'imbere, n'umuhondo ku ruhande rw'inyuma; bikagira ibara ry'umuhondo ku mapikipiki n'ibindi byuma by'imipira myinshi kimwe na za romoruki na makuzungu.

Amabara y'inyuguti n'imibare azaba :

-Umukara ku modoka z'abikorera ku giti cyabo.

-Umukara ku binyabiziga byavanywe mu mahanga n'abacuruzi babyo.

-Ubururu ku modoka, amapikipiki n'ibindi byuma by'imipira myinshi, rumoruki na makuzungu bya Leta n'ibigo biyishamikiyeho.

- Icyatsi kibisi ku modoka, amapikipiki n'ibindi byuma by'imipira myinshi, rumoruki na makuzungu by'abahagarariye ibihungu byabo mu Rwanda, Konsula , imiryango mpuzamahanga n'iy'uturere ikorera mu Rwanda , no ku mudoka z'abantu bagengwa n'amategcko yerekeye uburenganzira buhabwa abahagarariye ibihugu byabo mu byerekeye imisoro na gasutamo n'ibindi nkabyo bafite ubudahangarwa.

- Umukara ku modoka, amapikipiki n'ibindi byuma by'imipira myinshi, rumoruki na

makuzungu byinjijwe mu Rwanda by'agateganyo.

- Ubururu ku modoka, amapikipiki n'ibindi byuma by'imipira myinshi, rumoruki na makuzungu by'imishinga ikorera mu Rwanda.

- Ubururu ku modoka, amapikipiki n'ibindi byuma by'imipira myinshi, rumoruki na makuzungu bikoreshwa n'amashami y'umuryango w'abibumbye.

- Umutuku ku modoka zifite ibyapa byanditse mu mazina bwite y'abantu cyangwa amasosiyete.

- Umutuku ku mapikipiki y'abikorera ku giti cyabo

III. INGERO Z'IBYAPA N'INYUGUTI BITEYE KU BURYO

BUKURIKIRA:

A. Imodoka

Inyuguti n'imibare bingana bitya:

- Ubugari bw'inyuguti: mm35
- Uburebure bw'inyuguti: mm75
- Ubunini bw'imirongo: mm10
- Hagati y'inyuguti n'indi: mm10
- Hagati y'imibare n'inyuguti : mm 10

- Icyapa cy'imbere kigomba kuba gifite nibura mm 440 z'uburebure na mm 120 z'ubugari naho icyapa cy'inyuma kikagira nibura mm 250 z'uburebure na mm 205 z'ubugari.

- Icyapa cy'inyuma kandi gishobora kugira uburebure bwa mm 383 n'ubugari bwa mm 120 bitewe n'imiterere y'imodoka.

B. Amapikipiki n' ibindi byuma by'imipira myinshi

Icyapa kigomba kugira nibura uburebure bwa mm200 n' ubugari bwa mm150.

- Ubugari bw'inyuguti: mm 35
- Uburebure bw' inyuguti: mm 75 - Ubunini bw'imirongo: mm 10
- Hagati y' inyuguti n'indi: mm 10
- Hagati y'imibare n'inyuguti : mm 10

*Umurongo uzenguruka inyuguti ugomba kugaragara; hagati y'impande z'icyapa n'icyanditseho hagomba gusigara nibura milimetero 10.

Ingingo 127:

Ibimenyetso, amabara n'ubunini by'ibyapa by'ibinyabiziga bikoreshwa n' Ingabo z'Igihugu na Polisi y'Igihugu bigenwa na Minisiteri zifite izo nzego mu nshingano zazo.

Ingingo 128:

Ibimenyetso , amabara n'ubunini bw'ibyapa by'ibinyabiziga bikoreshwa n'abayobozi bakuru b'Igihugu bigenwa na Minisitiri ushinze Gutwara Abantu n'Tbintu.

ICYITONDERWA

Ikirangantego cy'igihugu kigomba kugaragara ku cyapa cy'imbere mu nguni y'ibumoso; naho ku cyapa cy' inyuma ku modoka kimwe n'icyapa cy' amapikipiki, kikagaragara mu mwanya uri hejuru mu nguni y'iburyo. Icyo kirangantego kigomba kugira nibura mm32/30

Umutwe 4. KUVUGURURA IBYAPA N'AMAKARITA ARANGA IBINYABIZIGA**Ingingo 129:**

1. Kubura icyapa ndanga cyangwa ikarita iranga ikinyabiziga bigomba kumenyeshwa bidatinze ibiro byabitanze.
2. Nyirubwite ashobora guhabwa ibyapa bishya cyangwa agahabwa inyandukuro y'ikarita iranga ikinyabiziga bisimbura ibyabuze. Iyo amaze kubivugurura; icyapa cyangwa ikarita iranga ikinyabiziga byabuze nyirabyo yongeye kubibona, ategetswe kubisubiza bidatinze.
3. Inyandukuro y'ikarita iranga ikinyabiziga yangiritse, ishobora gutangwa n'ibiro byatanze iya mbere. Icyo gihe, uwayisabye agomba gusubiza ikarita yononekaye akimara kubona inyandukuro yayo.
4. Iyo icyapa cyononekaye ibiro bibishinzwe bizatanga ikindi cyapa kigizwe na bibiri iyo ari imodoka.
5. Icyo gihe, uwayisabye agomba gusubiza cya cyapa cyangwa bya byapa yari yahawe mbere akimara kubona ibindi byapa.
6. Umuntu wese ushoboye kubona icyapa cyangwa ikarita iranga ikinyabiziga byatakaye asabwe kubisubiza bidatinze ibiro byabitanze.

Umutwe 5. ISHYIRWAHO N'ISOMEKA RY'IBYARA NDANGA N'IKIMENYETSO GITANDUKANYA**Ingingo 130:**

1. Ikimenyetso ndanga kigomba gushyirwa inyuma no hagati y'ikinyabiziga ku buryo bugaragara bituma gisomeka neza. Kandi ikimenyetso ndanga kigomba kuba giteye ku buryo bwenda kuba buhagaze kandi ari nyanguni ku murongo ugabanya ikinyabiziga mo kabiri umuguno wo hejuru ukaba uri kuri metero zitarenga ebyiri uheryeye ku butaka kandi uri ku murongo uteganye nabwo. Nyamara ku byerekeye imodoka, romoruki na za makuzungu, icyapa ndanga gishobora gushyirwa inyuma ibumoso bw'ikinyabiziga.
 2. Icyapa ndanga kigomba no gushyirwa imbere ya buri modoka kandi giteye imbere h'imodoka mu buryo bumwe n'ubuteganyijwe ku cyapa ndanga giteye inyuma.
 3. Iyo ikimenyetso gitandukanya gishyizwe ku cyapa cyihariye icyo cyapa kigomba guterwa ku buryo cyanga guhagarara kandi ari nyanguni ku murongo ugabanya ikinyabiziga mo kabiri mu burebure bwacyo.
- Iyo ikimenyetso gitandukanya gishyizwe ku kinyabiziga ubwacyo, kigomba kuba

gihagaze cyangwa cyenda guhagarara ku ruhande rw'inyuma rw'ikinyabiziga.

4. Ibyapa ndanga n'ikimenyetso gitandukanya bigomba igihe cyose kuba bisomeka neza kandi byitaruye.

5. Birabujijwe gushyira inyuguti, imibare cyangwa ibimenyetso ibyo aribyo byose hafi y'ibyapa ndanga n'ikimenyetso gitandukanya ibiranga. Igihe byatuma bitewe n'uko bisa, ingano yabyo cyangwa aho biri, hashobora kwitiranywa icyo ibyo byapa bishaka kuvuga n'icyo izo nyuguti, imibare cyangwa ikimenyetso nabyo bivuga.

**Umutwe 6. IYEREKANA KU BINYABIZIGA BIMWE NA BIMWE
RY'AMAZINA, ICUMBI NA NUMERO YO MU GITABO CY'UBUCURUZI BYA
BANYIRABYO N'IYEREKANA RY'UMUBARE NTARENGWA WEMEWE
W'ABAGENZI.**

Ingingo 131:

1. Izina, izina ry'ingereka n'icumbi bya nyirabyo bigomba kwandikwa ku buryo bugaragara imbere kandi ku ruhande rw'ibumoso h'ibinyabiziga bikurikira:

a) ibinyabiziga bigendeshwa na moteri byikorera ibiro birenze 1.000 kandi bidatwara abantu gusa;

b) ibinyabiziga bikururwa;

c) ibinyabiziga bisunikwa n'abantu;

d) ibinyamitende bidasorerwa.

2. Ikinyabiziga cyose gikoreshwa gusa mu mirimo y'ubucuruzi kigomba kwandikwaho, uretse ibyanditswe biteganyijwe mu gika cya 1 cy'iyi ingingo kandi ku buryo bugaragara, ahantu nyiracyo yandikiwe mu gitabo cy'ubucuruzi na nimero ye nk'uko bitegekwa n'ingingo 19 y'itegeko ryo kuwa 23 Mutarama 1971 ryerekeye igitabo cy'ubucuruzi.

3. Ikinyabiziga cyose kigenewe gutwara abantu bariha kigomba kwandikwaho, ku buryo bugaragara, ku rugi rw'umuyobozi no ku rugi cyangwa ku nzugi z'aho abagenzi binjirira, umubare ntarengwa w'abagenzi bashobora kugendamo, uwo mubare ntushobora kujya hejuru y'uwo uwakoze ikinyabiziga yagenywe.

Inyuguti n'imibarwa bigize inyandiko imaze kuvugwa, bigomba kugira ubuhagarike buto ntarengwa bwa santimetero 4 naho imibyimba yabyo ikagira ubugari buto ntarengwa bwa milimetero 5.

**Umutwe 7. UKUGENDERA MU MUHANDA KW'IBINYABIZIGA
BYAHEREWE NOMERO IBIRANGA AHATARI MU RWANDA**

Ingingo 132:

1. Niba ikinyabiziga cyinjijwe mu gihugu kitagomba kukigumamo cyemerewe kugendera mu muhanda cyambaye ibyapa ndanga by'igihugu giturutsemo, gipfa gusa kugira uruhusa mpuza-mahanga rwo kugendera mu muhanda cyangwa inyandiko irusimbura. Nyir'ikinyabiziga ategetswe kwerekana urwo ruhushya cyangwa izo mpushya igihe cyose umukozi ubigenewe azimusabye.

a) Iyo nyir'ikinyabiziga afite ikarita ikiranga ikurikije ingingo 35 y'amasezerano mpuza-mahanga y'i Viyeni yo kuwa 8 Ugushyngiro 1968 yerekeye kugenda mu muhanda,

agomba akigera mu Rwanda, kwereka iyo nyandiko umutegetsu ubifitiye ububasha kandi akandikisha ibyapa ndanga by'icyo kinyabiziga

b) Iyo ikarita iteganiye mu gika cya 1, a) cy'iyi ngingo idashoboye kwerekanwa, nyir'ikinyabiziga agomba akigera mu Rwanda, kandi mu gihe kitarenze iminsi 8, kwandikisha ibyapa ndanga n'ibiranga ikinyabiziga, agahabwa inyandukuro y'iyi nyandiko imara amezi atarenga atandatu amaze kuriha umusoro ugenwa n'Iteka rya Minisitiri w'Imari.

c) Ikarita iranga ikinyabiziga cyangwa inyandukuro y'inyandiko bigomba kwerekanwa igihe cyose umukozi ubigenewe abisabye.

2. Uruhusa rwo kugenda mu gihugu igihe gito rutanzwe hakurikijwe ibiteganywa mu gika cya 1 kimaze kuvugwa haruguru rugira agaciro gusa igihe impapuro ziherekeza ikinyabiziga nazo zikigafite.

3. Ibinyabiziga byinjijwe mu gihugu bitagomba kukigumamo nyirabyo atifuza kubisubiza mu mahanga kubera impamvu iyo ariyo yose, bishobora igihe cyose kumenyakanishwa ko bikorera mu Rwanda no kuhafatira ibibiranga.

Ntibishobora gutangirwa ubuntu cyangwa kugurishwa, bitabanje gukorerwa iyo mihango.

Umutwe 8. IBINYABIZIGA BIGERAGEZWA

Ingingo 133:

1. Cyitwa ko kiri mu igeragezwa ikinyabiziga kigendeshwa mu muhanda n'abagikoze, abagiteranyije, abashyiraho karoseri, abakigurisha, abongera kukigurisha cyangwa abasannyi b'ibinyabiziga:

a) bamaze kugiteranya cyangwa kugisana kugirango basuzume imikorere myiza y'ikinyabiziga;

b) bacyerekana kugirango kigurishwe;

c) kugirango ikinyabiziga gishyikirizwe umuguzi.

2. Ibinyabiziga bigeragezwa bishobora kugendeshwa mu nzira nyabagendwa bifite ibimenyetso bibiranga, byakozwe na Minisitiri ishinze Transiporo. Ibyapa bigomba gushyirwa ku kinyabiziga ku buryo buteganiye n'ingingo 130. 1 na 2 y'iri teka.

3. Ukoresha ikinyabiziga agomba kugira igitabo cyandikwamo uko numero z'ibyapa by'igeragezwa zikurikirana.

Numero igezweho y'icyapa cy'igeragezwa yandikwa buri munsu mu gitabo cyandikwamo n'abakora cyangwa abacuruzwa ibinyabiziga hakurikijwe ingingo 4 y'iteka rya Ministiri n° 11/071/Fin ryo kuwa 20 ukubozwa 1973 ryerekeye imisiro y'umutungo kimwe no ku nyandiko ihinnye y'igitabo cya buri munsu umuyobozi w'ikinyabiziga agomba kwerekana igihe cyose abisabwe n'umukozi ubifitiye ububasha.

Umutwe 9. IBINYAMITENDE, VELOMOTERI N'IBINYABIZIGA BISUNIKWA N'ABANTU

Ingingo 134:

1. Ukuranga ibinyamitende, velomoteri n'ibinyabiziga bisunikwa n'abantu bikorwa buri mwaka, hakozwe imihango yerekeye umusoro w'umutungo w'ikinyabiziga.

(Ibinyamitende n'ibinyabiziga bidatangirwa umusoro ntibirangwa).

2. Ibinyamitende, velomoteri n'ibinyabiziga bisunikwa n'abantu bigomba kugira imbere ku ruhande rw'ibumoso, ikimenyetso gitandukanya bihabwa igihe byandikwa giteye ku

gifatamutende cyangwa kuri mwaye.

Umutwe 10. IMISORO

Ingingo 135:

1. Ugutangwa kw'ibyapa ndanga biri kumwe n'ikarita iranga ikinyabiziga bibanza gutangirwa imisoro igenwa n'iteka rya Ministri w'Imari.
 2. Ugutangwa kw'inyandukuro y'ikarita iranga ikinyabiziga bibanza gutangirwa umusoro ugenwe n'iteka rya Minisitiri ushinze iby'imari ya Leta.
 3. Ugutangwa kw'ibyapa bibiri hakurikijwe amategeko agenga ibinyabiziga bicuruzwa bibanza gutangirwa umusoro no mu gihe byagenwe n'iteka rya Minisitiri w'Imali.
 4. Ugutangwa kw'ibyapa by'igeragezwa gutangirwa umusoro ugenwa n'iteka rya Minisitiri ushinze iby'imari ya leta
- Akimara kubona ibyapa bishya, uwabisabye agomba gusubiza mu biro bibishinze icyarangaga ikinyabiziga mbere yaba yarasigaranye.

Igice 6. IMIGENZURIRE Y'IMITERERE Y'IBINYABIZIGA

Umutwe 1. IKIGO GISHINZE IGENZURA RY'IMITERERE Y'IBINYABIZIGA

Icyiciro 1. Ibisobanuro

Ingingo 136:

Cyitwa ikigo gishinze igenzura ry'imiterere y'ibinyabiziga, ikigo cyose cyemewe na Minisitiri ushinze Gutwara Abantu n'ibintu kandi gikora imirimo yo gusuzuma imiterere y'ibinyabiziga. Bene icyo kigo kigomba kuzuza ibyangombwa bigenwa n'iri teka.

Ingingo 137:

Minisitiri ushinze Gutwara Abantu n'ibintu atanga inyandiko yemerera ikigo gukora imirimo y'igenzura ry'imiterere y'ibinyabiziga amaze gusuzuma ko ibigenwa byose muri iri teka byujwe.

Icyiciro 2. Ibisabwa mu kwemererwa

I. Ibirebana n'abakozi

Ingingo 138:

Ikigo cyose gishinze igenzura ry'imiterere y'ibinyabiziga kigomba kugira mu bakozi bacyo nibura umugenzuzi umwe wujuje ibi bikurikira:

1. Umugenzuzi agomba kuba yaravanye mu mashuri yabizobereyemo ubumenyi buhagije bw'imiterere y'ibinyabiziga.
2. Agomba kuba yakoze nibura imyaka itanu mu byerekeranye no gukora ari umukanishi wemewe.
3. Agomba kuba ashoboye gusuzuma ikitameze neza no guteganya ingaruka zacyo kandi agasesengura ibitameze neza muri rusange ku binyabiziga.

4. Agomba kuba ashoboye kugaragaza mu nyandiko ku buryo busobanutse ibyo yasuzumye ku miterere y'ibinyabiziga.
5. Agomba kuba ashoboye kuyobora no gucunga abakozi akoresha.
6. Agomba kuba yarahuguwe mu gihe cy'amezi 3 mu byerekeye igenzura ly'imiterere y'ibinyabiziga harimo amezi 2 yakoze mu kigo gisanzwe gikora iyo mirimo.

II. Ibirebana n'ibikoresho

Ingingo 139:

Ikigo cyose gishinzwe igenzura ry'imiterere y'ibinyabiziga kigomba kugira mu bikoresho bwite ibi bikurikira:

A. Urutonde r'ibikoresho byagenewe gusuzuma ibinyabiziga nyenganda.

Ibikoresho by'ibanze bipima n'ibyigerageza.

- A.1: Umunzani wo gupima uburemere kuri buri mutambiko.
A.2: Icyuma cyagenewe gusuzuma feri.
A.3: Imashini isuzuma icyerekezo cy'ibitara bimurika cyane.
Ibikoresho bipima n'ibigerageza by'ingereka.

- A.4: Ibipimisho by'urumuri.
A.5: Igipimisho cya moteri.
Ibikoresho shingiro bikoreshwa by'inyongera.

- A.6: Ijeki kabuhariwe(ikoresheya kuri fosse).
A.7: Icyuma gipima niba imodoka itayumbayumba.

B. Urutonde rw'ibikoresho byagenewe gupima ibinyabiziga bitaremereye

Ibikoresho bipima n'ibyigerageza by'ibanze

- B.1: Umunzani wo gupima uburemere kuri buri mutambiko
B.2: Icyuma cyagenewe gusuzuma feri
B.3: Imashini isuzuma icyerekezo cy' ibitara bimurika cyane.

Ibikoresho bipima n'ibyigerageza byangombwa.

- B.4: Icyuma gisuzuma ibyotsi bivuburwa n'imodoka.
B.5: Igipimisho cya moteri.
B.6: Icyuma gipima uburinganire bw'amapine.
Ibikoresho by'inyongera bya ngombwa

- B.7: Ijeki kabuhariwe(ikoresheya kuri fosse)
B.8: Icyuma gipima niba imodoka itayumbayumba.
C. Ibindi bikoresho byakenerwa kuri izo ntonde ebyiri

- C.1: Kompureseri y'umwuka n'igipimo cyo guhaga imipira
C.2: Ijeki isunikwa
C.3: Itara rigendanwa

C.4: Ibikoresho binyuranye bikenewe mu gufata neza ikigo.

D. Imfunguzo

D.1: Imfunguzo zifite umutwe usatuye(4X5 kugeza kuri 32X33)

D.2: Imfunguzo zifite ku mutwe hahese(8-9-10-12-14-16-17-19-21-23-26

D.3: Imfunguzo ndende zihese ku mutwe((5/64-3/32-1/8-5/32-3/16-7/32-1/4-5/16)

D.4: Urufunguzo rw'amaburo anyuranye

D.5: Ipenzi Isanzwe

D.6: Ipenzi ikata ihese

D.7: Turunevisi z'umutwe ugororotse

D.8: Turunevisi z'umutwe usongoye

D.9: Inyundo ebyiri zo kugorora

D.10: Igifashi kizenguruka

D.11: umukasi w'abanyamashanyarazi

D.12: Ipompo itera girisi

D.13: Akabobeza byuma

D.14: Igipimisho cya metero ebyiri

D.15: Imfunguzo ebyiri z'umusaraba

D.16: Imfunguzo za buji

D.17: Imashini isuzuma muri rusange

Umutwe 2. INZEGO Z'IBINYABIZIGA ZIGOMBA ISUZUMWA- MITERERE

Ingingo 140:

Igenzurwa ry'imiterere y'ibinyabiziga rishyirwaho n'umutwe wa III (ingingo 3 kugeza kuri 5) z'itegeko n°34/1987 lyo kuwa 17 Nzeli 1987 ryerekeye imihanda n'uburyo bwo kuyigendamo rirebana n'inzego z'ibinyabiziga zikurikira:

ibinyabiziga bikoreshewa na moteri bigenewe gutwara abagenzi, ibinyabiziga bikoreshewa na moteri bigenewe gutwara ibintu, ibinyabiziga bikoreshewa na moteri bigenewe kwidagadura, ibinyabiziga bikoreshewa na moteri byigirwaho gutwara. ,ibindi binyabiziga bikoreshewa na moteri.

Umutwe 3. IMITUNGANYILIZE Y'IGENZURA

Ingingo 141:

Gukoreshe igenzura ni itegeko ku binyabiziga byose guhera ku myaka ibiri nyuma yo gushyirwa mu muhanda.

Igenzurwa ryose ryakozwe ritangirwa icyemezo kigenerwa urugero ku mugereka wa 12 w'iri teka.

Ingingo 142:

Inshuro zisuzumwa ngombwa zizakurikira zigenwa mu buryo bukurikira:

a) Buri mezi atandatu hasuzumwa:

*ibinyabiziga bigenewe gutwara abagenzi muri rusange;

*ibinyabiziga bigenewe gutwara ibintu birengeje toni 3,5. .

*ibinyabiziga bigenewe ibigo byigisha gutwara;
b) Buri mwaka ku bindi binyabiziga bitavuzwe haruguru.

Ingingo 143:

Ibinyabiziga bitujuje ibisabwa ntibihabwa icyemezo kibyemerera gushyirwa mu mihanda nyabagendwa.
Hagomba gukorwa irindi genzurwa ryemeza ko amakosa yakosowe mbere yo guhabwa icyemezo.

Ingingo 144:

Amafaranga y'imirimo y'igenzurwa arihwa na ba nyir'ibinyabiziga. Umubare wayo mafaranga ugenwa n'Iteka rya Minisitiri ushinzwe Ubucuruzi abisabwe na Minisitiri ushinzwe Gutwara Abantu n'Tbintu.

Igice 7. KOMITE Y'IGIHUGU ISHINZWE UMUTEKANO MU MUHANDA

Umutwe 1. ABAYIGIZE

Ingingo 145:

Komite y'Igihugu ishinzwe umutekano mu mihanda yitwa Komite mu ngingo zikurikira, cyangwa mu magambo ahinnye CNSR igizwe n'aba bakurikira
- Umuyobozi wo Gutwara Abantu n'Tbintu muri Minisiteri ishinzwe Gutwara Abantu n'Tbintu: Perezida;
Komanda w'Umutwe wa Polisi y'Igihugu ushinzwe umutekano mu mihanda: Visi-Perezida;
Umuyobozi ushinzwe amateme n'imihanda muri Minisiteri ifite mu nshingano zayo
Imirimo ya Leta : ugize mama;
Ushinzwe ishami ry'umutekano mu muhanda muri Minisiteri ifite mu nshingano zayo
Gutwara Abantu n'Tbintu: Umunyamabanga.

Ingingo 146:

Komite ishobora gutumira umuntu wo mu butegetsi bwa Leta cyangwa undi wese ibona ko yagira icyo imarira ikamugisha inama ariko ntatore.

Ingingo 147:

Komite ifite inshingano zikubiye mu ngingo ya 6 yo mu itegeko n° 34/87 ryo kuwa 17 nzeri 1987 ryerekeye imihanda n'uburyo bwo kuyigendamo.

Umutwe 2. IMIKORERE

Ingingo 148:

Iyo Komite iterana rimwe buri mezi ane kandi igatumizwa na Perezida wayo. Ishobora guterana mu bihe bidasanzwe bisabwe n'umwe mu bayigize.
Ibyemezo bifatwa ku bwiganze busanzwe bw'amajwi, irya Perezida niryo rikemura impaka iyo zivutse. Iyo Perezida adahari cyangwa afite impamvu imubuza kuza,

asimburwa na Visi-perezida.

Ingingo 149:

Ntacyo Komite ishobora kwiga ngo kigire agaciro iyo hatari nibura 2/3 by'abayigize Komite itegura amategeko yayo y'ubutunganya-mirimo. Ayo mategeko yerekeye gutumiza inama, ibigomba kuzigirwamo, imitunganyirize yayo, impaka n'itora. Amategeko y'ubutunganya-mirimo ashyikirizwa Minisitiri ushinzwe Gutwara Abantu n'Tbintu kugirango ayemere.

Ingingo 150:

Komite ishobora gushyiraho za Komite z'Intara, iz'Imijyi n'Uturere zizayifasha mu mitunganyirize y'imirimo ishinzwe.

Igice 8. GUFUNGA IBINYABIZIGA

Ingingo 151:

Gufunga ikinyabiziga ni ukukijyana ahantu hagenwe n'umutegetsu wa Leta ubifitiye ububasha, kihakaguma kugeza igihe abitegekeye kandi kikishingirwa na nyiracyo ku byerekeye amafaranga agatangwaho. Uko gufungwa gushobora kubanzilizwa no kukibuza kugenda biteganywa n'ingingo 24 y'itegeko n° 34/1987 ryo kuwa 17 Nzeri 1987 ryerekeye imihanda n'uburyo bwo kuyigendamo.

Ingingo 152:

Gufunga ikinyabiziga bitegekwa n'umushinjacyaha mu karere akoreramo, biturutse ko cyaba cyarabujijwe kugenda, bikarenza amasaha 48 icyatumye gihagaliywe kitavaho cyangwa se ku mpamvu ziteganwa n'ingingo 36 y'itegeko n° 34/1987 ryo kuwa 17 Nzeri 1987 ryerekeye imihanda n'uburyo bwo kuyigendamo.

Mu bihe biteganywa n'iyi ingingo, Umukozi wabikoreye inyandiko-mvugo abimenyesha umushinjacyaha ubifitiye ububasha muri ako karere. Iyo bibaye ngombwa, abikora amaze kukibuza kugenda mu buryo buteganywa n'ingingo 31 y'itegeko n° 34/1987 ryo kuwa 17 Nzeri 1987 ryerekeye imihanda n'uburyo bwo kuyigendamo.

Ingingo 153:

Ahagenwe gufungirwa ibinyabiziga ni za parikingi zemejwe na Minisitiri ushinzwe Gutwara Abantu n'Tbintu. Abakuru b'Intara n'Abayobozi b'uturere bashobora kugena ahandi hose hashobora gufungirwa ibyo binyabiziga kandi hakarindwa.

Ingingo 154:

Hakorwa inyandiko-mvugo yemeza ko ikinyabiziga gifunzwe. Buri nyandiko-mvugo ikagaragaza ibi bikurikira:

Ikosa ryatumye ikinyabiziga gifungwa

Umunsi n'isaha ikinyabiziga cyabujijweho kugenda

Ibimenyetso biranga ikinyabiziga (pulaki,ubwoko, nimeru ya moteri n'iya shasi)

Amazina y'umushoferi n'ay'uwakoze inyandiko-mvugo na numero y'uruhushya rwo gutwara ikinyabiziga. Imiterere y'ikinyabiziga mu gihe cy'ifatirwa n'ibindi bijyana nacyo.

Inyandiko-mvugo ikorwa mu mpapuro 2, rumwe rugahabwa nyiri ugufatirwa urundi

rugasigarana umukozi ubishinzwe.

Ingingo 155:

Umubare w'amafaranga agenewe ifungwa ry'ikinyabiziga uzagenwa n'iteka rya Minisitiri ushinze ubutabera mu mirimo ye abisabwe n'urwego rushinzwe kugenzura ibigenda mu muhanda.

Igice 9. AMATEGEKO Y'INZIBACYUHO, AVANWAHO N'ATANGIRA GUKURIKIZWA.

Ingingo 156:

Ibyapa byashyizwe ku nzira nyabagendwa mbere y'itariki y'ugutangira gukurikizwa kw'iri teka bitazaba bikurikije ibyapa biri mu migereka kuva ku wa 1 kugeza ku wa 6 y'iri teka bizakomeza gukurikizwa mu gihe cy'amezi 6 nyuma yo gutangira gukurikizwa ku iri teka bipfa kuba bisa n'ibyapa biteganiye mu migereka y'itegeko n°660/206 ryo kuwa 11 Nzeli 1958.

Ingingo 157:

Icyemezo n° 660/206 cyo kuwa 11 Nzeri 1958 kivuyeho.

Ingingo 158:

Itegeko n°34/1987 ryo kuwa 17 Nzeri 1987 ryerekeye imihanda-n'uburyo bwo kuyigendamo rishyirwa mu bikorwa kuva umunsi iri teka ritangira gukurikizwa.

Ingingo 159:

Iri teka ritangira gukurikizwa umunsi ritangarijweho mu igazeti la Leta ya Repubulika y'u Rwanda.

Kigali, ku wa 02/09/2003